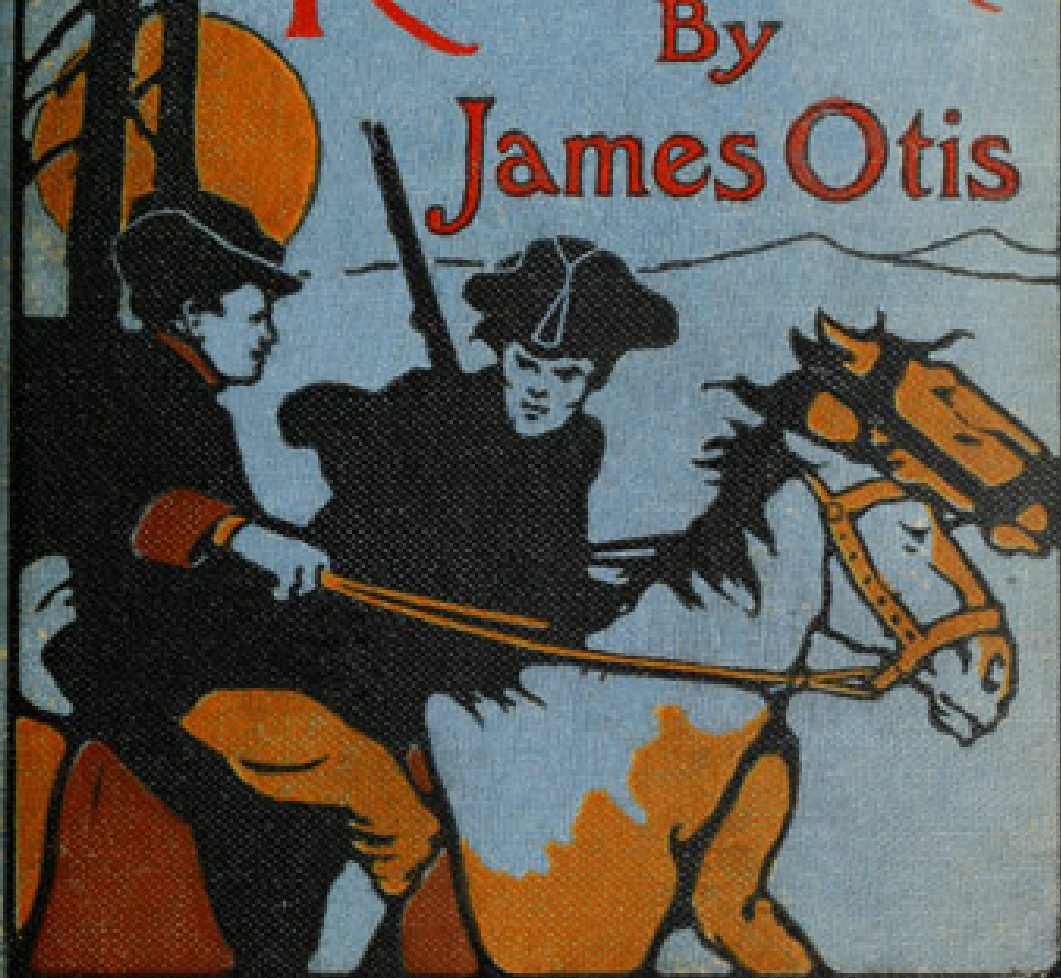


THE BOY SPIES WITH THE REGULATORS

By
James Otis



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WITH THE REGULATORS ***

Transcriber's Note:

Obvious typographical errors have been corrected.
Inconsistent spelling and hyphenation in the original document have been preserved.



Sandy looked around quickly and saw Sidney standing with his rifle aimed and resting on the branch of the tree.—[Page 22](#).

The Boy Spies With the Regulators

**The Story of how the Boys assisted the
Carolina Patriots to drive the British
from that State.**

BY JAMES OTIS



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Under the Title of With the Regulators



THE BOY SPIES WITH THE REGULATORS

CONTENTS.

CHAPTER		PAGE
I.	OURSELVES	<u>1</u>
II.	A TREASONABLE ACT	<u>20</u>
III.	PROMISES	<u>41</u>
IV.	THE RESCUE	<u>62</u>
V.	AT BRUNSWICK	<u>83</u>
VI.	BESIEGED	<u>104</u>
VII.	TIMELY AID	<u>125</u>
VIII.	SANDY WELLS	<u>146</u>
IX.	TRYON'S DEMONSTRATION	<u>167</u>
X.	THE LONG NIGHT	<u>188</u>
XI.	THE TRIAL	<u>209</u>
XII.	THE PROCLAMATION	<u>231</u>
XIII.	WAR DECLARED	<u>249</u>
XIV.	THE CONVOY	<u>269</u>
XV.	THE BATTLE	<u>289</u>

The Boy Spies With the Regulators

CHAPTER I.

OURSELVES.

It is not for one like me to make any pretense at trying to fashion a scholar's story out of the poor efforts of Sidney Hubbard, and myself, Clare Butler, to second the brave work of those noble men who, by enduring countless hardships and sparing not their own blood, finally rid the Carolinas of those leeches who claimed to be the king's servants—Governor William Tryon, Edmund Fanning and others of like brood.

I count to set down on these pages such an account as I may be able to give concerning what we of the Carolinas did in those dark days eight years before the first patriot blood was shed at Lexington, and this task is to be performed simply that my descendants may, by reading our story, use their utmost efforts to preserve the fair country which has cost their forefathers so much of blood, anguish and bodily suffering.

To begin, Sidney Hubbard is my first cousin, his mother and mine being sisters. We lived, in 1768, on the Alamance, near where, later, was fought what may rightly be termed the first battle in the struggle of the colonies for independence. Our fathers were humble farmers, with a scanty store of this world's goods, and continually ground down by those whom the king had set in authority over us, chief among which may be reckoned the Irishman Tryon, and Fanning, who was born on Long Island, if I remember rightly.

I cannot set down in my own words a picture of the Carolinas at the time when Sidney Hubbard and I were come sixteen years of age, therefore, in order that all the conditions of public affairs may be fully understood, I shall copy here what was written many years later by one who may justly style himself a historian.^[1]

"The passage of the Stamp Act produced great uneasiness in the public mind in North Carolina, as well as in the other provinces. Already the extortions of public officers in the exactions of fees for legal services had

greatly irritated the people, and they regarded the requirements of the Stamp Act as a more gigantic scheme for legal plunder.... William Tryon had been acting governor and commander-in-chief of the province from the death of Governor Dobbs, April 1st, 1765, and now began his career of misrule in America. He was appointed governor toward the close of the year. This was the same Tryon, afterward governor of New York, haughty, innately cruel, fond of show, obsequious when wishing favors, and tyrannical when independent; he was entirely incompetent to govern a people like the free, outspoken colonists of the Upper Carolinas.

"For several years previous to the Stamp Act excitement, rebellion had been ripening among the people in the western counties. The rapacity of public officers, and the corrupt character of ministers of justice, weighed heavily upon the property and spirits of the people. The most prominent evils complained of were the exorbitant charges of the clerks of the Superior Courts, whereby these courts had become instruments of oppression; and oppressive taxes exacted by the sheriffs, and the outrages committed by those officers when their authority was questioned in the least. These evils everywhere existed, and every petition of the people for redress appeared to be answered by increased extortions."

It was William Husband, a Quaker from Pennsylvania, who banded our people together in what was called "A Regulation," and each member signed an agreement to pay no more taxes "until satisfied they were legal; to pay officers no more fees than the strict letter of the law required, unless forced to, and then to show open resentment; to be cautious in the selection of representatives, and to petition the governor, council, king and parliament for a redress of grievances; to keep up a continual correspondence with each other; to defray all necessary expenses, all differences in judgment to be submitted to the whole Regulation, the judgment of the majority to be final."

Each member was bound by a solemn oath to stand faithful to the cause until matters had been brought to a true and just regulation. Meetings were held regularly in the vicinity of Hillsborough, and in a few weeks the Regulation was a permanent and a powerful body.

About this time "the pride and folly of Governor Tryon led him to demand" from the Assembly an appropriation of twenty-five thousand dollars that he might build a palace, and this burden, together with the many which had been laid upon us, was most oppressive.

"The inhabitants of North Carolina were now thoroughly awakened to the conviction that both the local and imperial government were practically hostile to the best interests of the colonists. The taxes hitherto were very burdensome; now the cost of the palace, and the appropriation to defray the expenses of running the dividing line between their province and the hunting-grounds of the Cherokees, made them insupportable. A poll tax of one dollar and fifty cents was levied on every male, white or black, between the ages of sixteen and sixty years of age.

"The rapacity of public officers appeared to increase, and the people saw no prospect of relief. Among the most obnoxious men who had grown rich by extortionate fees, was Edmund Fanning, a lawyer of ability. He was regarded as a co-worker with the government. The people detested him, and avoided no occasion to express their displeasure. His first open rupture with the Regulators was in the spring of 1768. Tryon issued a proclamation, half menacing and half persuasive, evidently intended to awe the Regulation and persuade the other inhabitants to avoid that association. He sent his secretary, David Edwards, to cooperate with Fanning in giving force to the proclamation among the people.

"They directed the sheriff to appoint a meeting of the vestry-men of the parishes and the leading Regulators, to consult upon the public good and settle all differences. Fair promises dispelled the suspicions of the Regulators, and their vigilance slumbered while awaiting the day of meeting. They were not yet fully acquainted with the falsity of their governor, or they would never have heeded the fair words of his proclamation. They were soon assured of the hollowness of his professions, for, while they were preparing, in good faith, to meet government officers in friendly convention, the sheriff, at the instigation of Fanning, proceeded, with thirty horsemen, to arrest Herman Husband and William Hunter on a charge of riotous conduct.

"These, the most prominent men among the Regulators, were seized and cast into Hillsborough jail. The whole country was aroused by this treachery, and a large body of the people, led by Ninian Bell Hamilton, a brave old Scotchman of threescore-and-ten-years, marched toward Hillsborough to rescue the prisoners."

Some idea may be had of our unhappy province, by aid of the above account, written in all fairness, and yet not stating our grievances as thoroughly as they should be set down, and now I feel warranted in saying that from the day of Masters Husband's and Hunter's arrest Sidney Hubbard and I began to prove ourselves *men* of the Carolinas.

We were both just turned sixteen, Sidney being but two days older than I, and already had the sheriff warned us that we must pay the taxes which had been assessed, or be sent to jail where many a poor wretch was confined, simply because he had not the money with which to satisfy the governor's unjust demands.

It was on the day after the arrest of our neighbors that we two lads met old Jacob Peyster, a God-fearing man, and one who was ready and willing to lay down his life for the good of the Carolinas.

"Why are ye abroad this morning?" he asked, reining in a mettlesome horse which he had raised from a colt, and we were forced to bring our steeds to a halt, or give fair proof that we lacked good breeding.

"We came out to learn if there was any news concerning those honest men whom the king's knaves took into custody yesterday," Sidney made answer before I, who was ever slow of speech, could do so much as open my mouth.

"Masters Husband and Hunter have been clapped in prison at Hillsborough," the old man said sorrowfully, "and unless the true men of the Carolinas take the matter in hand, they are like to be held by the brute Tryon till the little property they own has passed into the hands of his majesty's gluttons."

"You speak as if there was some hope the men of the Carolinas would resist this outrage," Sidney cried excitedly.

"Aye, lad, and so they will. Hamilton, the Scotchman, is in arms and enlisting under his flag those who love the colony better than they do the king. Have you youngsters paid the tax which is levied on all who have lived sixteen years or more?"

"It is not likely that I shall be able to do so," I hastened to make answer.

"My father cannot give me the money, and the little I had hoarded up from the sale of my furs, went toward paying the last levy made against our poor home."

"It looks much as though both Clare and I might soon join Masters Husband and Hunter at Hillsborough, for I have heard it said that but a short time will be allowed us of the Carolinas in which to gather the money to pay the tax, so eager is Governor Tryon to build his palace," and as he spoke Sidney tried in vain to appear unconcerned, but I, who knew that which was in his mind, had good proof that he was in deadly fear of the arrest concerning which he spoke so glibly.

"Aye, lads, the time will be made short indeed. I hear that Lawyer Fanning is issuing warrants for those who are not down on the governor's books as having paid the unjust assessment. You are like to be deprived of liberty soon, unless——"

"Unless what?" Sidney asked eagerly as Master Peyster hesitated.

"Perhaps it is wrong for me to speak further without knowing of what minds are your parents."

"That can be easily learned; our fathers have not the money with which to pay their own tax, after giving up all they owned to aid in satisfying the thirst for gold with which the king's officers in this colony are afflicted," Sidney said with a laugh which had in it nothing of mirth.

"Then how will you answer the collectors?" old Jacob asked, eyeing us sharply.

"If it so be I can find a hiding-place, there will be no answer given," I made haste to reply. "Sidney and I were discussing the matter even as we met you."

"By joining the force which Ninian Hamilton is gathering you may be free from the sheriffs for a time; but it is possible that by so doing you will be charged with treason."

"Do you count on serving with him, Master Peyster?" Sidney asked, and the old man replied quickly,

"I have already set down my name as one who will serve the colonies to the best of my poor powers, for I am of the Regulation, as are your fathers. I am but now summoning all of the association to the rescue of those who are so unjustly imprisoned—those who were taken because they put faith in Tryon's sworn word."

"Where may Master Hamilton's force be found?" I asked eagerly, for now my mind was made up to join those who would measure strength against the king.

My plight could not well be worse in case I should be charged with treason, for of a verity the inability to raise such an amount of money as the hungry officeholders demanded was, in the Carolinas, a greater crime than that of conspiring against the king himself.

"The rendezvous is near Chapel Hill, where the highway crosses the New Hope River. You will not be welcomed, however, unless you go armed, for the association can provide neither weapons nor money."

Having said this much old Jacob spurred his horse on, as if afraid of saying anything which might influence us in our decision; but he need not have been so particular, because even before he ceased speaking both Sidney and I were resolved.

The dear lad turned to me with a question in his eyes when Master Peyster rode away, and I answered it by saying:

"There is naught else left for us to do. From what the old man said we know that the sheriff's officers will soon be at our heels, and anything is better than rotting in Hillsborough jail."

"Then we have only to turn back for our weapons, and the treason is complete," he said with a laugh, wheeling his horse around as he spoke.

I could see nothing of mirthfulness in the act we were about to commit, although I was none the less determined to join Master Hamilton's forces.

This hurried visit to our homes would be the last, perhaps, forever, and even under the most favorable circumstances, hiding as we should be from the sheriff's officers, neither Sidney nor I would be able to visit our loved ones, save by stealth, until many months had passed.

I say again, it was a desperate act for two lads hardly more than sixteen years of age, and yet there appeared to be no alternative.

We rode to our homes swiftly, and without indulging in conversation; each of us had so much food for thought that he could not speak of ordinary matters.

The Hubbard plantation was no more than two miles from my home, and it came first on our road.

I remained outside, not dismounting, while Sidney entered, and when perhaps half an hour had passed he joined me, turning his head ever so little lest I should see traces of tears on his cheeks.

He had with him his rifle, a brace of pistols which had been his father's, a new hunting knife, and a package which I fancied was made up of provisions.

"Did your father make any protest?" I asked while he was mounting.

"He set off for the rendezvous an hour ago," Sidney replied, doing his best to suppress a sob. "Mother believed it was best for me to join him rather than go to Hillsborough jail, and did what she might to hasten my departure."

When he was mounted we rode on to my home, and he remained outside while I broke the news to my mother.

She, dear soul, was not surprised. Old Jacob had stopped there to summon father, who was one of the Regulators, and almost before I could speak she clasped me to her bosom, saying gently and lovingly:

"Yes, you must go, my boy, and my share of the heavy burden which the Lord has laid upon the colony will be to remain here alone, trembling at every sound lest it betokens the coming of some one who brings tidings that my son or my husband has been killed. If perchance such a blow is dealt me, I shall know that you died like brave men in the performance of duty—for it is your duty to aid the oppressed. Do not delay, gather up such articles as will be needed, and then kiss me farewell; I cannot linger on the parting."

In less than half an hour I joined Sidney, giving no heed as to whether he could see the tears in my eyes, and during a full hour we rode at a gentle pace towards the rendezvous without speaking.

In that time it seemed to me that I had passed the age of boyhood and was become a man, for of a verity I had set my face towards a man's work whether I might accomplish it or no.

Then we both struggled to throw off the grief which enveloped us until the day was like unto the night, and spoke of what might be done if all who had joined the Regulation came forward in response to duty, little dreaming of that dreadful day when so many of our friends and neighbors would lie stark and cold upon the field of battle.

It was but natural that we should speak of the possible glory to be won, and not to be wondered at that each of us believed he could perform all which might be required. We had yet to learn how great was the task set the men of the Carolinas before the yoke of the oppressors was finally thrown off.

From our homes to New Hope River was but little more than twelve miles, and when we judged that half the distance had been traversed we drew rein to give the horses a breathing spell, for they had traveled ten miles or more before we came upon old Jacob.

We drew from our store of provisions sufficient for the noonday meal, picketed the horses where they might feast on the rich grass, and gave ourselves up to a brief time of repose.

The meal had no more than been eaten, however, when hoof-beats in the distance told that a horseman was approaching, and I seized my rifle, for the sorrows which had been mine during the day made me apprehensive of danger from every point.

"Don't be foolish," Sidney said sharply. "It will be said that we are afraid of our own shadows, if some friend finds us ready for an attack. There are others beside ourselves who will ride to New Hope River this day, and he who comes is most likely one of Master Hamilton's party."

"If so he is headed in the wrong direction," I replied; but I drew back from my weapon nevertheless, and an instant later regretted having done so when Sandy Wells, one of the sheriff's officers, rode up beside us.

"We are well met, young sirs," he said in a mocking tone as he drew from his pocket two folded papers. "I was but this moment counting the miles 'twixt me and your homes, for if I mistake not you are Clare Butler," he said looking at me, and, turning toward my comrade, added, "You are Sidney Hubbard."

It was useless to deny the fact, since Sandy knew our faces full well, and I asked, steadying my voice till it sounded reasonably firm:

"What have we two lads to do with so gallant an officer as you, sir?"

"Nothing whatsoever, if it so be you have paid the poll tax which his worshipful excellency has levied on all males, white or black, between the ages of sixteen and sixty."

"You must know we have not paid that extortion to provide the governor with a palace, for it is hardly more than six weeks since a levy was made of two shillings to the acre of all tilled lands, and we, who owned not a single rod, were forced to help our fathers pay that," I said stoutly, noting the fact that Sidney was drawing his rifle toward him.

"Then must I serve these warrants to the end that I may legally take you to Hillsborough until such time as you shall pay the just and lawful demands of his worshipful excellency, Governor Tryon."

"And how may we come by the money while we are shut up in jail?" I asked, beginning to have an inkling of what Sidney would do.

"That is not for me to say, my pert gentleman. If you cannot pay the tax, here is my authority for taking you to Hillsborough," and the conceited

rascal proceeded to read in a loud voice the documents he had drawn from his pocket.

I could understand but little of their purport, so filled were they with attorney's words and phrases, nor did I cudgel my brains overmuch, because of what I could see out of the tail of my eye.

Sidney had his rifle in hand, and the expression on his face told me that he had no intention of going to Hillsborough as Sandy Wells' prisoner.

CHAPTER II.

A TREASONABLE ACT.

So great was my excitement, knowing Sidney meditated an attack upon the king's officer, which could be called neither more nor less than rank treason and would put us beyond the pale of ordinary offenders, that I could not understand one word Sandy Wells was reading.

His voice came to me like the droning of bees in the summer, and it sounded far off. I could neither hear nor think; but all my faculties were centered in my eyes as I watched Sidney's stealthy movements.

Without really having the power of connected thought, I realized that to resist the sheriff's officer was an offense which Governor Tryon would never pardon, particularly since that officer was engaged in the effort to collect taxes. From the moment we made forcible resistance we would be the same as outlawed, and shut off from the possibility of returning again to our homes until the king's rule had been set aside in the Carolinas.

Desperate indeed would be our position once an overt act against the recognized authority of the colony had been committed, and yet I would not have checked Sidney by so much as a hair's breadth had it been possible.

Sandy Wells continued to read as if delighting in the sound of his own voice, and my comrade made his preparations leisurely, being slightly in the rear of the sheriff's officer where he could not well be seen, while the latter's eyes were fixed upon the paper.

When Sidney cautiously drew himself up to his feet by aid of an overhanging bough, clutching his rifle firmly, I knew the struggle was about to begin, and during an instant there was a film before my eyes, red like blood.

Then everything came plain within my line of vision; the tremor of fear passed away, and I was on the alert to second anything Sidney should attempt, even though our lives might be the forfeit.

Sandy Wells had nearly come to an end of the warrants which had been filled out that two lads who could not pay the sum of three dollars might be thrust into jail, when Sidney, his rifle leveled at the officer's head, said sharply and sternly:

"Do not so much as move, Master Wells, else I will send a bullet into your brain. Be careful not to take your hands from that piece of stamped paper, or I shall believe that you mean mischief!"

Sandy looked around quickly; only his eyes moved, for he must have understood that my comrade meant every word which had been spoken, and he saw Sidney standing with his rifle aimed and resting on the branch of the tree.

At such short range there could be no mistake as to the course of the bullet, and, realizing this, the officer's face grew white with fear, for of a verity he was standing very near to death at that moment.

"Would you resist me in the performance of my sworn duty?" he asked, his voice trembling and his teeth literally chattering with fear.

"That is what I count on doing. Neither Clare nor I will be taken to Hillsborough jail simply because we cannot pay the poll tax."

"Do you know that this is treason, now the warrants have been read?"

"I can well fancy that Lawyer Fanning will twist it in that way."

"Not only is it treason against the king, but you are laying yourself open to the penalties made and provided for resisting an officer of the colony."

"You cannot serve Tryon and the colony at the same time, Master Wells, and that you know right well. Does it so chance that you have any weapons about you?"

"I am armed, as you may well see."

"I am more concerned to know if you have other weapons which cannot be seen. Keep your hands on that paper, Master Wells, while Clare lays violent hands upon your sacred person in order to learn to what extent you are fitted out for taking into custody two lads whose only crime is their lack of money."

"You might have been forgiven the tax; but that which you are about to do will bring you close to the gallows," Sandy cried in impotent rage.

"Even while standing there we shall be no nearer death than you are at this instant if it so be you so much as raise a finger. Clare, take away his rifle, and search him for other weapons."

I lost no time in doing his bidding, for now was Sidney Hubbard the leader and commander.

Sandy, the livid hue of fear yet on his cheek, offered no resistance as I made thorough search, bringing to light two pistols and a long knife which would have served at a pinch as sword, and Sidney cried derisively as I laid the weapons at his feet:

"You were bravely armed, Master Wells, for the arrest of two boys who are worth in the eyes of Governor Tryon's law but one dollar and a half per head, and in fact, not the value of a penny."

"I shall live to see you hanged!" Sandy snarled.

"In which case, as I figure it, you will live to a green old age, and it may be, suffer not a few discomforts before you die."

"Now that you two villains have robbed me, I suppose I may go my way," Master Wells cried as Sidney lowered his rifle.

"Not unless your way is the same as ours, for I am not minded to set you loose until after learning what Captain Hamilton has to say on the subject."

"What?" Sandy cried in mingled rage and surprise. "Would you also take me prisoner?"

"It is no more than you would have done by us, and surely turn about is fair play."

Now it was that I lost courage. The crime of resisting one of the sheriff's officers was as great as I felt willing to commit; but to actually take him prisoner seemed the height of folly.

Sidney seemed to read my thoughts in my eyes, for he said quietly, thus showing himself to be the brave soldier he afterward proved:

"We can make matters no worse by taking him to Master Hamilton, and it seems to me wise that we get that gentleman's opinion before setting this worthy officer loose to spread the tiding of our misdeeds. Fanning and Tryon can never overlook the fact that we have refused to pay the tax; but I'm thinking it won't trouble them greatly if Master Wells suffers a little discomfort."

Sandy began to bluster, threatening us with the direst vengeance of his master and himself; but Sidney soon cut the flow of words short by saying sternly:

"You will mount your horse, Master Wells, and also do well to remember that a silent tongue oftentimes stands a man as friend."

Our prisoner ceased his threats, probably understanding that Sidney's temper was none of the best once it had been aroused, and clambered into the saddle obediently, my comrade holding his rifle ready for immediate use in case the fellow made any attempt at leaving us.

Once Sandy had mounted, Sidney fastened his legs beneath the animal's belly, as a precaution against escape, and, bringing up his own steed, seated himself in the saddle as he slipped the bridle of the prisoner's horse over his arm.

If it had been possible to do so without being overheard by Master Wells, I would have tried to dissuade my comrade from this last portion of the business, for it seemed to me that by carrying him to the rendezvous we were but bringing additional trouble upon our own heads without due justification. I was unwilling, however, to let Sandy suspect that there was any difference of opinion between us, therefore held my tongue, meekly climbing into the saddle when Sidney showed himself impatient to continue the journey.

The one fear in my mind as we set out, Sidney leading the way with our prisoner and I bringing up the rear, was that Master Hamilton and his associates would reprove us severely for having brought the officer to the rendezvous, for it seemed certain that Sandy would hamper the Regulators to considerable extent.

However, the deed was done, and I question whether I could have changed the situation in the slightest, however good an argument I might have brought to bear. Therefore it was that I resolved to give Sidney the leadership, obeying his orders scrupulously, and standing by him as a comrade should in case our actions were condemned by the Regulation.

Sandy Wells evidently had no desire for conversation, and we two lads could not speak one with another save he heard every word, therefore the three of us rode forward in silence, keeping a sharp lookout both ahead and behind lest we might inadvertently come upon one of the officer's friends.

There is little need for me to set down all the thoughts and fears which came into my mind as we rode forward, for there is more of importance than my timorousness to be written before I shall come to an end of the sufferings endured by the people of the Carolinas in that struggle which, God be praised, finally resulted in the freedom of this fair country.

It is enough if I pass over the remainder of our journey in silence, and describe our reception when we were in the midst of the men of Carolina who, having chosen Master Hamilton as their leader, were in the act of what Governor Tryon was pleased to term "open rebellion."

The people were gathered in a thick bit of woods near-by the highway, and we were forced to give an account of ourselves to the sentinels before being allowed to ride into the midst of the large assembly, which was little less than a veritable army.

The first person we saw was my father, and toward him Sidney rode, telling our story in few words, after which he asked:

"Does it please you that Master Wells be kept a prisoner, sir?"

"I am at a loss to give you an answer, lad," my father replied in evident perplexity. "It has only been decided that we would release those who are

confined in Hillsborough jail, and I cannot guess how the gentleman will view your bold act. Give him into my charge, and we will soon have the case before the Regulation."

He laid hold of Sandy's bridle, leading the horse further into the woods, while we lads were forced to remain where we had halted, because of the crowd which suddenly gathered to learn how we had chanced to come in company with a sheriff's officer.

Once our story was told it could plainly be seen that we had won the good opinion of those who listened, for without exception each man bestowed praise upon us, until my cheeks were flushed a deep red from hearing myself spoken of as a brave lad who would one day do his full share toward freeing the Carolinas from the money-gluttons who were impoverishing the people.

Well, we were made much of, and all with whom we spoke agreed that we should be allowed to become members of the Regulation, as if we were indeed men grown; but I observed with sorrow that every one treated it as a matter of course that we could not return to our homes until great changes had taken place in the colony.

The idea that years might elapse before I could see my mother again had in it sufficient to prevent me from being puffed up with pride because of what was said concerning me, and when the gentlemen were come to an end of questioning us I unsaddled my horse, taking up quarters at the foot of a huge gum tree.

In this army which had gathered responsive to the call of Master Hamilton, there were no tents or camp equipage of any kind. Each man brought everything he might need, including provisions, and the place where the Regulators encamped had more the appearance of being used for religious or social purposes, than as a military rendezvous.

Here and there, wherever it best pleased them, were the recruits which had been so hastily brought together. Horses were picketed where the best feeding places could be found, and their owners lay under the shade of the trees, walked as fancy dictated, or gathered in little squads, having no care save to keep within the lines marked out as the bounds of the encampment.

Twenty or more sentinels paced to and fro, rather for the purpose of marking the limits of the camp than because any attack was to be apprehended, and these were not so strict in their duty as to prevent those from straying outside the lines who felt the inclination to do so.

Sidney found a friend with whom he went away hoping to gain speech with our general, Master Hamilton, and I remained alone a good hour or more, when my father came up in search of me.

"The prisoner will be held until after we have marched to Hillsborough," he said by way of explaining what had been decided upon, and added with a sigh: "It is to be regretted that your evil fortune brought you in Sandy Wells' path, my son."

"It was he who crossed our path, sir," I said, trying to speak in a cheery tone, although my heart was like lead in my bosom.

"It recks little which way it was. What affects us is, that you and Sidney will be forced to remain in hiding, no one knows how long—certainly until some arrangement can be made to obtain pardon for what has been done."

"I thought the Regulators had assembled for the purpose of taking into their own hands the government of the colony, in which case there can be no question but that our sins against the person of Sandy Wells will be forgiven."

"It is not probable that the Regulation will be able to effect any very radical change in the condition of affairs. We shall march to Hillsborough to demand the release of the prisoners, and if they are given liberty, there is no longer any pressing need for us to remain under arms."

"Might the Regulators not also demand that we be pardoned?" I asked, growing cold with fear.

"I question if the gentlemen would be willing, after this display of force in order to demand justice, to ask that an offender against the laws of the colony be forgiven."

"Then what is to become of us?" I cried in fear. "Surely these gentlemen will not deliver us up to the king's officers!"

"Certainly not; your deliverance must come about without the aid of the Regulation, however. If it becomes necessary for you to remain in hiding, go with all speed to your uncle's home in Virginia, on the bank of the Dan River, and there remain until word comes from me that you may safely return."

There was no longer an opportunity for him to give me the advice which I needed. Word was passed from one to another that the order had been given to begin the march toward Hillsborough, and in a few moments all was bustle and confusion as each member of the party made his preparations for the journey.

Half an hour later the Regulators were in line, awaiting the final word, and a goodly array they presented. There were upwards of four hundred horsemen, all fully armed, and at their head Master Hamilton, a patriarch of seventy years.

The word was given, and we set off at a gentle pace, Sidney and I riding side by side, and a short distance in advance of us, Sandy Wells, guarded by two men.

The rebellion against the king's authority was begun, and from that day we might be counted by those in office as traitors to his majesty; but it could never be said that there was any treachery in our hearts against the colony of the Carolinas which we were ever ready to defend with our heart's blood.

The march had been begun near nightfall in order that we might arrive at Hillsborough early in the morning, and since the distance was but twenty miles, we were put to it to keep the animals back, instead of trying to urge them forward.

Some of the men fell asleep in their saddles; but neither Sidney nor I had any desire for slumber because of the disquiet in our hearts. With the exception of Master Hamilton, who would likely be charged with having stirred up the people to sedition, we were in a worse plight than the others, and whichever way the matter turned, it was probable we must hide ourselves in Virginia for a time.

With the rising of the sun our party halted on the bank of the Eno, opposite Hillsborough, and there discovered that the king's officers had received

news of our coming, being greatly disturbed thereat.

Twenty or more men were standing near the edge of the river on the Hillsborough side, and foremost among them was Attorney Fanning, he who was equally guilty with Governor Tryon in burdening us with taxes which were beyond our power to pay.

To have seen him then, when he was in fear of his life, one would have said that the Regulators of the Carolinas had no warmer friend than he. When we were drawn up in line, waiting for the word to ford the river, Fanning shouted, holding up a bottle of rum in one hand and a bottle of wine in the other:

"We have been waiting for you, my brave Hamilton, knowing that you will not willingly do that which will cause blood to flow. Let's you and I have a glass together, and decide this troublesome business without such a warlike parade."

"You may keep your liquor for those who do not know you as well as do I," Master Hamilton cried scornfully, and our people set up a shout of satisfaction.

Master Fanning waved his hands as if asking for silence, and after a time, when those on our side of the river were inclined to hear what kind of a proposition Tryon's tool had to make, he called out as if addressing his best friend:

"Send a horse over that I may cross, my worthy Master Hamilton. I fain would give your people some refreshments," and here he held up the bottles again, "in addition to having a friendly chat with you."

Some of our men would have made a contemptuous reply, but the others motioned for silence in order that Master Hamilton might act as spokesman, which was his right.

"I'll send no horse," our brave leader cried. "You're none too good to wade, and wade you shall if you come over!"

I supposed Attorney Fanning would go back to his home in anger after receiving such a reply, and said as much to Sidney; but no sooner had I

spoken than the lawyer waded into the stream, and over he came, holding out his bottles as if believing that Master Hamilton would be rejoiced at having an opportunity of drinking with him.

Our leader waved him away in short order, and then the scheming rascal went from man to man of the front rank, asking each to have a glass of liquor in token of friendship; but none would accept, and more than one gave him such insults as a truckling knave like himself deserved.

Before he had come to an end of the line, and when it must have been made plain that not one of the Regulators cared to bestow the commonest civility upon him, he espied Sandy Wells.

"What, have you resigned your office?" the attorney asked sharply, and our prisoner replied whiningly:

"I'm held here by force, good Master Fanning, having been taken prisoner by two lads."

Our people burst into laughter at this mournful reply, and hoping, most likely, to curry favor with the Regulators, the lawyer said with a grin:

"If two lads took you prisoner, I'd advise you to hold your tongue about it. Not many hours since you declared yourself to be a match for any three men in the Carolinas, providing you were not come upon in ambush."

"I was taken by surprise, even while reading the warrants for their arrest, and it's by no means to my shame, since I never dreamed they would be bold enough to make an attack upon the representative of our worthy sheriff."

"You'd best give over reading warrants, Sandy," some person shouted, and Fanning laughed at the gibe as he continued on along the line of horsemen, trying in vain to find one who would drink with him.

I must set down here, at risk of interfering somewhat with the thread of the story, two verses which were afterward written about this effort of the attorney's to curry favor with those who had come in the name of justice to rescue innocent men from prison:

"At length their head man they sent out
To save their town from fire;
To see Ned Fanning wade Eno,
Brave boys, you'll all admire.

"With hat in hand, at our command,
To salute us every one, sir,
And after that, kept off his hat,
To salute old Hamilton, sir."

I must admit that the poetry is not what might be called exceedingly fine; but it was made next night in camp by one of our Regulators, and because of such fact I think it well to set it down in this story.

Well, bow and cringe as he might, our people would not listen to Fanning, and Master Hamilton told him sharply to get to the rear lest he be trampled under the feet of the horses.

"We'll have neither you nor your liquor," he cried angrily, "and unless you get out of sight I'll not be answerable for the temper of these good friends who have come in search of Masters Husband and Hunter."

CHAPTER III.

PROMISES.

"The sooner we march into Hillsborough and make an attack on the jail, the better for the Cause," Sidney Hubbard whispered to me when Fanning had come to understand that not one in all our company was willing to hob-nob with him. "To sit idly here is much like admitting we are afraid to do that which we have threatened, or as if we doubted the righteousness of our mission."

It was not for one like me, who knew nothing whatsoever of warfare, to criticize what Master Hamilton might see fit to do, and yet I held much the same opinion as did Sidney.

It would have been more to my liking had we crossed the river at full speed, surrounded the jail, and forced the keepers to deliver up the keys without parley.

I would have had the matter settled in one way or another, within ten minutes, and surely there would be no more treason in the act if done quickly, than if we dawdled around half a day listening to the vaporings of those who claimed to be loyal servants of the king.

We were yet drawn up in line, gazing at the town as if trying to decide whether we would go forward or back, when Master David Edwards, Governor Tryon's secretary, rode up opposite us, halted an instant to view the scene properly, and then began fording the stream.

"Whether yonder royalist will try to frighten or cajole us, he is setting about the business in proper fashion," Sidney whispered approvingly. "He can't be accused of wasting time."

"Hush!" I said, laying my hand on his to still him. "I would hear his speech with Master Hamilton, for if I mistake not he will settle the matter in short order, one way or another."

The secretary had by this time crossed the river and was spurring his horse toward where Master Hamilton was posted, and as Sidney and I watched he saluted our commander courteously, not in lick-spittle fashion as had Fanning.

"Why this war-like array, sir?" he asked, and Master Hamilton replied:

"We have come for our friends who were made prisoners even while depending upon the governor's assurance that he wished simply to hold a parley. It was a breach of faith not seemly in one who represents his majesty, and we will never brook such high-handed proceedings."

"In that you are to be commended, sir," the secretary replied, speaking fair and softly; "but I warrant you have not fully considered what may be the result of such show of force. Your friends have been taken into custody in what appeared to his excellency like a lawful manner, and it is meet they should be released with due form, else may you plunge this fair colony into all the horrors of civil war. For the sake of the people, Master Hamilton, I beg of you to withdraw, at least until his majesty's judges have time to deliberate upon the matter."

"We are here, and can work our will, therefore it would be little less than folly to abandon the advantage."

"You need not do so. I pledge my word as a gentleman that all the grievances of the people shall be redressed, if you allow this unhappy business to be settled in lawful fashion. Retire, and the matter will speedily be arranged as you desire. By so doing you may avoid bloodshed and the charges of treason."

"And we have your sacred word, Master Edwards, that all this shall be done without loss of time?" one of the party who sat near our commander asked.

"Aye, sir," the secretary cried, raising his voice that all might hear, "the affair shall be inquired into as soon as may be."

"There are other matters that need attention, sir," Master Hamilton said stoutly. "Money has been extorted by Edward Fanning, from very many here, and without color of lawfulness."

"Master Fanning shall answer to the judges of this colony, and, if found guilty of illegal proceedings, will be punished as should be the lowest of our citizens," Master Edwards cried, holding up his right hand as if taking a solemn oath.

"And will you also pledge yourself that whatsoever has been done by those who belong to the Regulation, in the effort to gain redress, remains in abeyance until the first question has been settled?" our commander asked, and the secretary replied in the affirmative.

"Here is one of your tax-collectors who, while attempting to arrest two lads, was himself made prisoner," and Master Hamilton pointed toward Sandy Wells. "Such resistance might be given the name of treason, if you were inclined to play us false."

"The act shall pass as if it had never been committed, provided that you release your prisoner. Go to your homes, and at the earliest possible moment Governor Tryon will take the necessary steps to have all this unhappy business disposed of to your satisfaction."

Master Hamilton wheeled his horse around, and, addressing our party, cried:

"You hear, gentlemen all, what the representative of the governor has promised in the name of his master. Are you agreed to do as he proposes to the end that bloodshed may be averted?"

"We are agreed," our people cried as if with one voice, and an instant later Sandy Wells was allowed to ride out from among the party, when he forded the river hurriedly as if fearing some one might try to hold him back.

"We yet have his weapons as spoils of war," Sidney said gleefully to me, "and I warrant you he will not venture near Alamance for many days to come."

"Think you we shall go free after having raised our hands against him?" I asked, hardly able to believe that such good fortune might be ours.

"We have the secretary's solemn word for it," Sidney replied, and he had no more than spoken when the command was given for our people to wheel about in the direction of Maddock's Mill.

The return was made at a rapid pace, and when we were arrived at this place a general halt was called, the assembly being told that the Regulation would be in session at George Sally's house next day "to consult upon the public good."

Sidney and I thought just then more about our own bodies than the burning questions of the hour, and after taking care of our horses we camped in a grove near the mill, with nothing save the bushes to shelter us from dew and sun.

We slept nearly eighteen hours, which atoned for the repose that was lost during the march to Hillsborough, and then, on the morning after our appearance before Hillsborough, were ready to discuss the condition of the "rebellion."

That we were included in the truce was a matter of rejoicing, for it had seemed certain we would become fugitives, hiding on the Dan River; but both of us decided that it would not be well to venture within reach of Sandy Wells, unless we were so well armed as to be able to care for ourselves.

As a matter of course we two lads went to George Sally's with the Regulators, but neither of us ventured to take any part in the proceedings, although much was done of which we did not approve.

In the first place the Regulation prepared a petition to be presented to Governor Tryon, begging that Messrs. Husband and Hunter be speedily released in accordance with the promise made by Master Edwards; that the taxes of those who, by reason of their poverty, could not raise the required amount of money, be abated; and that Master Fanning and other court officers be restrained from oppressing the people by exorbitant fees whenever a legal document was required or served.

As I chanced to know full well, neither my father nor Master Hamilton approved such a course as pleading with the governor after showing his minions that the Regulation was sufficiently strong to make demands; but the majority of the gentlemen were in favor of proving that the Regulators were not disposed to transgress the laws, and the petition was written out by Malichi Tyke, who had once served as clerk of courts.

Sidney and I were both very much dissatisfied with the turn of affairs, although we took good care not to give words to our discontent in the hearing of the gentlemen who formed the Regulation.

In our opinion we should have encamped near about Hillsborough until all which Master Edwards promised had been performed, for Governor Tryon could better be moved by a show of force than an humble petition.

However, as Sidney wisely said, it was no real concern of ours, since the elders of the association would contrive to manage affairs after their own fashion, without giving overly much heed to boys or hot-heads, and if we wished to be numbered among the Regulators it stood us in hand to obey the voice of the majority without grumbling.

It was also decided at this meeting in George Sally's barn, that Masters Rednap Howell and James Hunter be appointed deputies of the Regulation to present the petition to Governor Tryon, and that they set out at once for Brunswick, where his excellency then was.

Now the upper Carolina was not in as peaceful a state as could have been desired. Some of the more wealthy inhabitants favored the representatives of the king, and upheld them in all their iniquitous proceedings; calling themselves royalists, and us of the Regulation rebels. They oftentimes, when a fair opportunity presented itself, took the right to discipline the people who grumbled against the money-gluttons.

It was not impossible that some of these aristocrats might meet our deputies, and, being the stronger in numbers, attempt to prevent them from appearing before Tryon, therefore to put a check upon such a possibility it was decided that at least two others should accompany Masters Howell and Hunter.

It was my father who proposed that Sidney and I be chosen as the escort, giving as a reason why we two lads should be selected, that it was possible, despite the promise of Master Edwards, Sandy Wells might try to make trouble for us because of our taking him prisoner. It was better, so he urged, that we be kept out of sight until the Regulation had accomplished its work, and by accompanying the deputies to Brunswick, Sandy would not readily find us.

Master Howell himself seconded the proposition, kindly stating that he desired no abler escort than our two selves, and thus was the matter settled, much to my satisfaction, even though there was more than the shadow of a suspicion in my mind as to the reception with which we might meet.

The Regulation also decided that we four should set out as soon as Master Malichi Tyke had made a fair copy of the petition, and he was so expeditious with the work that everything was in readiness for our departure on the following morning.

We had before us a ride of about two hundred miles, and to Sidney and me, who had never before traveled an eighth part of that distance from home, the journey offered much in the way of novelty.

There were no preparations to be made save saddling our horses: we would sleep wheresoever night overtook us, and procure food at such dwellings as we came across, or, failing in this, depend upon finding game enough to satisfy our wants.

"Remember that Masters Howell and Hunter are to be obeyed strictly by you, lads," my father said to us as we were saddling the steeds, "and do not put me to shame by behaving other than as gentlemen."

As a matter of course we promised faithfully to heed his words, and with high anticipations set off, riding immediately behind those whom we were supposed to guard.

During this first day, when we were yet within our own home neighborhood, the ride was without especial incident, save that at nightfall, when we were encamped in a lean-to which Sidney and I had put up while the gentlemen were cooking a couple of hares I had killed late in the afternoon, Master Howell amused himself with writing the verses I shall set

down below, and which I afterward saw in a pamphlet entitled "A Fan for Fanning," that had been printed in Boston in 1771:

"When Fanning first to Orange came,
He looked both pale and wan;
An old patched coat upon his back—
An old mare he rode on.

"Both man and mare wa'n't worth five pounds,
As I've been often told,
But by his civil robberies
He's laced his coat with gold."

When these lines had been read to us Master Hunter declared that it was no more than right Master Howell should touch up Thomas Frohock, who, as clerk of the Superior Court in Salisbury, had done quite as much as Fanning to extort money from the people, and then it was that our deputy wrote these verses, which were afterward published in the same pamphlet of which I have spoken:

"Says Fanning to Frohock, to tell the plain truth,
When I came to this country I was but a youth;
Me father sent for me; I wa'n't worth a cross,
And then my first study was to steal for a horse.
I quickly got credit, and then ran away,
And haven't paid for him to this very day.

"Says Fanning to Frohock, 'tis a folly to lie;
I rode an old mare that was blind of an eye;
Five shillings in money I had in my purse,
My coat it was patched, but not much the worse:
But now we've got rich, and 'tis very well known
That we'll do very well if they'll let us alone."

Master Howell laughingly said that as poetry the verses were of little account; but the sentiment could not be bettered, according to my ideas, and before we went to sleep that night I could repeat the lines without missing a word.

We set out on our journey next morning shortly after sunrise, and, just before noon, when we were looking for a place in which to camp, two men, attended by a negro slave, undertook to make us explain our business.

The whites had halted in the middle of the road, with the black immediately behind them, and when we advanced made a great showing of pistols.

"Halt, gentlemen, and make us acquainted with your destination and your purpose in traveling this way!" one of them cried peremptorily, and in a twinkling Sidney and I, who were slightly in the rear of the deputies, had our rifles ready for use.

"Why shall we make explanations to you or any other in the Carolinas?" Master Hunter cried angrily.

"Fair and softly, good sir," the spokesman said, looking well to the priming of his weapon. "We are told that there are in the Carolinas those who speak against his majesty the king, and with such as they we would have a few words."

"Except we are so minded, you will have no words with us," Master Howell said sharply, and I observed that he was fingering his revolver as if itching to draw it from the holster.

"You will at least explain from what part of the colony you have lately come," the stranger said, this time speaking in a more gentle tone.

"I am willing to give you so much information as that; but no more, for I deny that any person, save the king's representatives, have the right to question me. We are lately from Hillsborough."

The two strangers exchanged glances, and he who had first spoken said quietly:

"I have heard that the good people near there talk of banding together to resist the king's officers in their duty of collecting lawful taxes."

"It can now be seen how much the governor's secretary meant when he gave us such fair promises," Sidney whispered. "Edwards himself has sent these fellows in advance to prevent us from going to Brunswick."

There was much the same thought in my own mind; but I made no answer just then, for the very good reason that Master Hunter was replying to what was little less than a question.

"Our people have banded together; but it is for the purpose of declaring ourselves against *unlawful* taxation."

"And you are one of the so-called Regulators, I may suppose?" the stranger said with a sneer.

Sidney and I moved nearer until we were almost side by side with our deputies, for now did it seem certain that we were fallen upon those who would make trouble.

"We have not come out either for the purpose of discussing politics with strangers, or indulging in a brawl," Master Hunter said stoutly, drawing his pistols deliberately. "It is our purpose to ride forward without too great delay, and if you oppose us the blood which is shed will be upon your heads."

"Might it not interest you to know who we are?" the stranger asked menacingly.

"Not a whit; we are peaceful travelers who pursue our journey without molesting any man who does not seek a brawl. We shall go forward at whatever cost."

Now it was that I believed a fight would be begun in a twinkling, and my rifle was raised, ready to do my share, when we heard the trampling of horses' hoofs in the distance.

"There is some treachery afoot," Master Howell said in a low tone. "These fellows have kept us in conversation until the remainder of the party can come up. It would be useless to oppose an overwhelming force."

"True," Master Hunter added, and then, as if seized by a sudden thought, he added in a low tone to me, who sat nearest him, "You two lads may

perchance escape and carry to our companions of the association the information of our trouble. Back your horses off till you are partially screened by the trees, and then ride at full speed."

"There are four of us, and each one ready to give a good account of himself," Sidney said, much as if he was eager to take part in a fray where blood must inevitably be spilled.

"Do not stop to argue, lad. It is necessary the Regulation know that our passage is barred by some treachery of Edwards and Fanning, and you must carry the news."

I remembered what my father had said, and pulled my horse back, step by step, until he was amid the bushes that bordered the road on either side.

The strangers gave but little heed to my maneuvers, probably because they believed that a lad like me was of but little importance as compared with the deputies—I had no doubt but that they were acquainted with the purpose of Masters Howell and Hunter—and, therefore, I was soon partially screened from view.

Sidney delayed until a party of horsemen numbering four or five came into view, and then he wheeled around suddenly, riding at full speed past me as a couple of pistol balls whistled by his head.

I joined him, as may be supposed, and we rode at a sharp pace for a mile or more, when we pulled up as if by common consent.

No chase had been given, and thus was I all the more strongly convinced that these highwaymen knew full well who were acting as deputies of the Regulation.

We two lads looked at each other in silence as our horses came to a standstill, and not until perhaps a minute had passed did we speak.

"The Regulators did well to listen to such knaves as Edwards and Fanning!" Sidney said angrily. "We should have released the prisoners when it was in our power. Now the poor men will remain in jail until the brute Tryon gets tired of holding them."

"It is childish to cry over spilled milk!" I replied, angry because my comrade was inclined to give way to repinings when they could be of no avail. "It is our duty to get speech with Master Hamilton without delay."

"Yes," Sidney cried scornfully, "and while we are riding toward Maddock's Mill, where I question if any of the Regulators can be found, those scoundrels will carry our companions to some jail in which they may die before we learn of their whereabouts."

"We can only do as Master Hunter commanded," I replied meekly, realizing the truth of all Sidney had said.

"I don't count on anything of the kind; but intend to turn back."

"To what purpose?" I cried, now thoroughly alarmed, for I knew my comrade well enough to understand that he did not make such assertions without fully intending to carry out whatever plan might be in his head.

"It stands to reason that those fellows who have taken the deputies prisoners came from near about Hillsborough, in which case they will camp somewhere on the road to-night. It is not probable they count two lads as of any great importance, and will never suspect us of coming back once we get away."

"Well?" I asked, determined that he should unfold his scheme without assistance from me.

"I shall turn back, follow those fellows if possible, and try to come upon them unawares to-night, when there should be a chance to aid our friends."

"Suppose you fail?" I asked, turning over in my mind the possibilities of his being able to accomplish anything of importance.

"If I find that they are on the alert against a rescue, or if there are too many, it will yet be time to turn my horse's head toward Maddock's Mill."

CHAPTER IV.

THE RESCUE.

When Sidney had thus announced his purpose I asked myself what might be the chances of success, and after due reflection it appeared to me as if the possibilities were rather in his favor, because it did not seem probable the royalists would anticipate any attempt at a rescue.

They must have overheard the command given us to ride back with all speed, and could hardly suppose two lads like ourselves would take the chances of making an attack, therefore we were likely to find them off their guard.

Yes, so I decided, the scheme might be worked if we proceed cautiously, and even in case we found it impossible to do anything, the delay would be trifling, provided Sidney was willing to give over the effort if a rescue could not be brought about that same night, therefore I asked:

"Will you agree to set your horse's head toward Maddock's Mill by sunrise, in case you fail in the purpose during this night?"

"Yes, that much I promise, for I'm of the opinion that unless the work can be done before to-morrow morning there is no chance for us to carry it through without assistance."

"Then I shall do what I may toward aiding you."

He clasped me by the hand, saying as he did so:

"I knew full well you would not ride away and leave me to make the venture alone."

"I am taking no part in it save as your assistant. You are the leader, and I shall simply obey orders, because I have no head for such work, while you are a born soldier."

Sidney laughed loud and long at my words, and said when it was possible for him to speak:

"Now you are talking nonsense. If we free Masters Howell and Hunter from the governor's friends, it will simply be a case of good fortune, rather than anything deserved because of the intellect brought to bear on the matter. Let us make camp here for a time; the horses need rest and food."

"Are you not afraid that our enemies will get too much the start on us?"

"I am reckoning that we were near their camping-place when the two showed themselves. If they count on carrying our friends back to Hillsborough to give them quarters with Masters Husband and William Hunter, this road is the one they must take, and we shall see the party ride by. In case they have a comfortable halting place, I am counting that the return journey will not be begun until to-morrow morning."

I understood from this remark that Sidney had already settled all the details in his mind, and, therefore, since I refused to take any part in making his plans, there was nothing for me to do save patiently hold my tongue.

We unsaddled the horses, led them into the forest where was a small clearing covered with rich grass, and made a hearty dinner for ourselves from the contents of our haversacks.

When this was done we had nothing with which to occupy our attention, save the task of keeping watch over the highway to make certain the enemy did not pass without our knowledge.

Although I had so readily agreed to aid my comrade, I was far from feeling comfortable in mind regarding the outcome. I knew full well that even in event of success we must run many chances of losing our lives, for now that the royalists had begun to make prisoners of citizens of the Carolinas without legal warrant, they would not hesitate to take the lives of two lads who might interfere with their plans.

To risk our lives in a battle where glory might be won, was one thing; but to be killed like thieves in the night, when none of our friends would be able to say whether we died like heroes or cowards was quite another matter.

Do not let it be understood that I was regretting having agreed to the venture; on the contrary, I would have acted in the same manner had the question been put at that late moment, yet I weighed the possibilities once more, and found them less promising than when first considering the proposition.

We did not indulge in conversation to any extent during that afternoon. Now and then Sidney spoke of the treachery displayed by Master Edwards, and the possible fate of the deputies in case we failed to rescue them; but for the greater portion of the time we remained silent, each giving way, perhaps, to gloomy forebodings.

The sun was no more than an hour high when my comrade said as he rose to his feet and set off toward the clearing where the horses had been left:

"I reckon the time has come for us to make a start. We'll ride to the place where the villains met us, and then you shall take to the woods with the horses, while I follow the trail on foot."

"Why should we not boldly ride down the road until we find ourselves somewhere near their camping-place?" I asked, even after having promised myself to take no part in the plan of rescue.

"Because I'm of the opinion that we shall find the villains within half a mile or less of where we were halted, and it would be a most serious mistake to let them see us."

As he had proposed so we did, and I soon had good reason for congratulating myself that my advice was not taken.

The hoof-prints of the horses told us plainly when we were come to the scene of the encounter, and then, leading both animals, I struck into the woods, advancing slowly because of the underbrush, while my comrade pushed rapidly ahead.

The night had not yet come when Sidney returned, and as I involuntarily came to a halt he whispered:

"They are camped half a mile further on. There are six horses picketed near by, in addition to those ridden by the deputies, therefore I reckon that the odds are not heavily against us."

"Did you see our friends?"

"Yes; they are in a lean-to, tied, and guarded by the negro. We can take the horses within two hundred yards of the place, where is a good bit of grass which will keep them quiet; but it is well to wait here a couple of hours."

Once more we came to a halt, and while waiting until the time for action should come I asked Sidney to tell me how he proposed to set about the rescue.

"I shall find no fault with your plans, for you are the leader; but it is necessary I know fully your purpose, in order to play my part properly."

"We'll leave our horses hobbled, so that we may unfasten them quickly. Then, say in two hours, you and I are to creep around to where their animals are tethered. We must procure two, with saddles and bridles, and bring them to where ours are. Not till then are we to give the deputies any idea of our having disobeyed orders. We should be able to get them away safely, and a start of five minutes will be enough. The rising of the moon is to be our signal for work."

"What about the negro who is on guard?"

"Unless he is different from every other black I ever saw, he will be asleep. If not, or if one of the white men has taken his place, we must fall upon him in such a way that he can make no noise, after which a gag will do the rest."

"Where are the others?"

"In a lean-to nearer the road, and a good fifty yards from where our friends are lying."

The two hours which followed were the longest I have ever known, although since that time I have been engaged in many and more dangerous

ventures. Each second seemed like a minute, and I began to think that we had been mistaken in the belief that the moon rose at ten minutes past nine o'clock. The souging of the wind through the trees sounded in my ears like a prophecy of evil, and the cry of a night-bird came to me like the shout of an enemy.

Had we been forced to remain there inactive an hour longer, I believe of a verity that the courage would have oozed out of my finger-ends entirely; but, fortunately, before I was overcome by timorousness the time for action had arrived.

Sidney led the way through the underbrush, gliding noiselessly along as if we were stalking a deer, and I copied his every movement.

In order to get at the horses we were forced to make a detour through the forest to the rear of the place where the deputies were held prisoners, and this required a good half hour of most laborious work.

Once we were there, however, it became evident that the royalists counted on beginning a journey very shortly, for the animals were not only saddled, but bridled, and we understood that the remainder of our task must be performed quickly, or it might chance that our enemies took to the road before we could warn Masters Howell and Hunter of the help which was near at hand.

Now we did not dare carry our plan to the extent of taking the animals over to where our steeds were hobbled; but fastened them by the bridles in the rear of the lean-to, and then crept cautiously forward.

It was so dark in this place, owing to the foliage, that although the moon was half an inch high, we could not distinguish objects five paces distant, and Sidney led the way by the sense of touch, rather than because of any aid from his eyes.

When we were close at the rear of the lean-to I could hear the sound of heavy breathing; but nothing more, and Sidney whispered in my ear:

"I will make my way through the brush, and you are to wait here. If I should be captured, do your best to carry the information to Maddock's Mill. Don't try to aid me."

I made up my mind on the instant that I would do my full share in a fight before leaving the brave lad to his fate, and as the thought formed itself in my mind he disappeared through the branches which went to make up the shelter.

I listened with painful intentness; but could hear no more than a faint rustling of the brush, and then a man crept slowly out into my arms.

It was Master Howell, and when I would have conducted him to where the horses were tethered, he motioned for me to remain quiet.

Another moment of most painful suspense, during which my heart beat so loudly that it seemed certain our enemies would be aroused by the noise, and then Master Hunter appeared, followed closely by Sidney.

We four crept softly to where the two horses were standing, and my comrade explained to the deputies that we must keep within the thicket until having come to where our steeds had been left.

"We had best turn in the other direction, keeping under cover until you ride by, when we can dash out," Master Howell said, and I was mystified by his words.

"But we shall not ride past here," Sidney replied in a cautious tone. "To do so would be going directly away from Maddock's Mill!"

"Our destination is Brunswick," Master Howell said, as if that was sufficient explanation.

"Brunswick!" I repeated in astonishment. "Surely you are not counting on trying to continue the journey after all that has happened?"

"Of a verity we are," Master Hunter said emphatically. "It is not in our minds to ride back with the story that we allowed ourselves to be frightened by six men after two lads have shown themselves so brave and so quick-witted. Go for your horses, and, having mounted them, ride directly out on the main road, moving cautiously until arriving opposite where these scoundrels are encamped. Then use your spurs; we will join you some distance on."

"But think of the danger which you incur!" I pleaded, although it would have been more seemly for a lad like myself to keep a silent tongue and obey orders.

"We count on presenting this petition to the governor if it be possible to arrive at Brunswick," Master Howell said sharply, and then, by way of putting an end to the conversation, the gentlemen began leading the animals back past the lean-to from which we had so lately rescued them.

There was nothing left for Sidney and I but to perform the parts assigned us, although I am certain there was much the same thought in his mind that filled mine, which was that the latter portion of this venture would be needlessly dangerous and ill-advised.

We did not speak one with another, however, until we had found our horses and made them ready for the journey, when Sidney said solemnly:

"If I had fancied the deputies would have continued on toward Brunswick, of a verity we would be well toward Maddock's Mill by this time. Even if we two get past the camp in safety, we're likely to fall into the hands of others who are ready and willing to deprive honest men of their liberty."

But for the fact that the deputies awaited our coming as the signal for them to come out of the forest into the road, I would have urged my comrade to leave them then and there that we might save our own skins by joining the members of the Regulation, wherever they might be by this time.

Then, feeling in our hearts that there was no good reason for exposing ourselves to this additional danger, we led the steeds down the road to a point, as nearly as Sidney could determine, opposite the encampment of the enemies.

We mounted in silence, and loosened our weapons that they might be ready to hand, after which Sidney started with a rush.

It can well be fancied that I clapped the spurs to my horse, for the hindmost in this race was likely to be the one who would suffer severely, and we clattered past the camp at the best possible speed.

When a mile or more had been traversed we heard the hoof-beats of horses both before and behind, telling that the deputies had taken to the road, and also that the royalists were in full pursuit.

Masters Howell and Hunter must have checked the speed of their steeds somewhat in order to allow us to come up, after which all four settled down to such a race as I never rode before, for liberty, perhaps like itself, was the stake.

Not until our horses were so nearly blown that it became absolutely necessary, did we draw rein, and then it was no longer possible to hear the sounds of pursuit.

"We have out-ridden them, that is all," Master Howell said in a quiet tone, as if he was not greatly interested in the final result. "We will give the nags time to breathe, and then push on again. For a time our traveling must be done by night."

"If you count so surely that there are others on the road who will try to prevent us from gaining Brunswick, why is it not reasonable to suppose Governor Tryon may play us false?" I asked timidly, for I feared the gentlemen might think me a coward, and yet was I determined they should discuss the possible dangers which awaited us at the journey's end.

"I think it very likely he will treat us as rebels rather than deputies," Master Howell replied quietly.

"And yet you make every effort to give him the opportunity?" I cried in dismay.

"Aye, lad. We accepted the mission, and having done so it became our bounden duty to perform it whatever might be the result. Before the people of the Carolinas can force the representatives of the king to treat us fairly and honestly, many a good gentleman must come to grief, and it is not for us to hold back."

There was no reply to be made to such a remark as this, and I would have held my peace but that the gentlemen insisted on being told why we had worked to rescue them, instead of pushing on toward Maddock's Mill.

"All the credit belongs to Sidney," I replied, determined that my comrade should have the praise. He argued that we would be wasting but little time by trying to effect a rescue, and in case of failure we could have carried out your orders within six hours from the moment they were given.

Sidney claimed that he could not have made the attempt unless I had been willing to remain with him, and regarding this we fell into quite a discussion, which lasted until we heard once more the trampling of horses in the distance.

It was high time we continued the race, and, the horses having had quite a breathing spell, we sent them ahead once more at their best pace.

After this we stopped twice to give the animals water, and once to breathe them, before the gray light told that a new day was upon us.

Then it was that Master Howell proposed we take to the thicket, and after we were screened by the trees we led the horses a mile or more parallel with the road. Then we crossed over to the other side, taking good care to cover such hoof-prints as had been left on the highway.

After these precautions it seemed as if we might consider ourselves reasonably well hidden from those who came in pursuit, and surely I was not sorry of an opportunity for rest.

We had been in the saddle not less than eighteen hours, and during six or seven hours more were so strung up by excitement that it was as if we had been two days without repose.

Fortunately the deputies had not been despoiled of their haversacks when taken prisoners, therefore we had food sufficient to provide us with one hearty meal, and this we ate immediately after the horses were picketed where was grass in abundance.

Not until we were eating did Sidney ask Masters Howell and Hunter anything concerning their adventure, and soon we were in possession of all the facts.

The deputies, finding themselves opposed by six horsemen, surrendered immediately after Sidney and I rode away. They were asked no questions,

nor was there an attempt to search them. The royalist led the prisoners to the lean-to, tied their hands and feet, and left them in charge of the negro, giving orders for him to shoot with intent to kill if either made any effort to cry out for help in case travelers passed that way.

Neither Master Howell nor Master Hunter had any definite idea as to what the scoundrels intended to do with them; but both believed that but for the rescue they would have been taken to Hillsborough and there lodged in jail on a charge of sedition or treason.

"Yes, I recognized one of them," Master Howell said in reply to my question. "He who appeared to be the leader I have seen in Fanning's office, therefore there was no question in my mind but that the party set out from Hillsborough in advance of us. Some one at Maddock's Mill played the traitor."

"Why did they wish to prevent you from presenting the petition to Governor Tryon?" I asked in amazement.

"I do not believe that was their purpose. It could make but little difference if Tryon heard of our wrongs; but it might create a sentiment in our favor among the honest people of Brunswick if we told there what has occurred at Hillsborough. The scheme unquestionably was to prevent information of the outrages being carried into the lower Carolina."

"Do you think we are in danger from others?" I asked.

"Probably not, yet we will travel by night from this out in order to guard against a possible attack. If those fellows sent word ahead that we were on the road and must be stopped, then will there be men ready to detain us; but I am disposed to think that they believed it was in their power to bring our journey to a close, and we shall meet with no serious impediment between here and Brunswick."

"The governor may close our mouths by sending us to prison as traitors to the king," Sidney suggested.

"We shall take good care, my lad, to talk with many citizens of Brunswick before presenting ourselves before him. If it is known generally that we are in town as deputies from the Regulation, who have come in consequence of

certain promises made by the governor's secretary, I do not believe even William Tryon will dare cause our arrest without first showing some proof that we are plotting against the king. He will commit deeds in Hillsborough which he would be afraid to commit in Brunswick or Newbern."

"In other words," Master Hunter added with a laugh, "we are thrusting our heads in the lion's mouth because we believe he dare not make a meal of us until after we have gone back into upper Carolina."

With this the conversation came to a close. Master Howell insisted that we must get all the sleep possible before nightfall, and to such end he proposed that we draw lots to decide who should first go on guard, after which the others were to lie down.

No one questioned the necessity of standing watch. In the first place the horses were to be prevented from straying, and then again it was of the highest importance we should know if a party of horsemen rode past our camping place toward Brunswick, otherwise we might find ourselves following the enemy, instead of being followed.

It was decided by lot that I take the first watch, and at the end of two hours Master Howell was to be aroused.

Those who had the privilege of sleeping soon stretched themselves out in the most comfortable positions that were possible, and ten minutes later I was the only member of the party awake.

CHAPTER V.

AT BRUNSWICK.

During my time of standing sentinel I neither saw nor heard anything to cause alarm or suspicion; but I never had a harder task than that of keeping my eyes open while the others were sleeping. It was as if until my companions lost themselves in slumber I had no sense of weariness, and then, suddenly, I was overcome to such an extent that it seemed almost impossible I could perform the duties of sentry.

I walked to and fro briskly; repeated to myself this hymn or that verse, and now and then groomed the horses in the hope of arousing myself; but all to no purpose. My eyelids drooped as if weighted with lead, and not until I had switched my face sharply with a bit of brush, striking my bare eyeball inadvertently, was I awakened. Then the pain kept me awake until I judged that the time of my vigil had come to an end.

Master Howell arose reluctantly when I shook him vigorously, and asked as he stretched his limbs and yawned prodigiously, whether I had heard anything which might concern us.

Sixty seconds later I was sleeping soundly, and not until late in the afternoon was I sensible that the life yet remained within my tired body.

Then I was surprised by seeing meat cooking before a fire; but soon learned that Master Hunter had been out in search of game, and, fortunately for us, had come across a deer within half a mile of our camping place.

After partaking of a hearty meal the difficulties and dangers of our way seemed to have lessened, and I looked forward to the night's work as a task which might have within it somewhat of pleasure.

Because we had not heard horsemen passing our resting-place, it was believed that our enemies had abandoned the chase, and immediately the late dinner was eaten we set forth, taking less precautions than before, for now it seemed as if we must have outrun danger.

In order that I may not make too many words of what is of little consequence, no further record of the journey shall be made, save to say that on a certain day, near about noon, we rode into Brunswick despite the efforts of Master Edwards and Attorney Fanning to check us.

At the inn, the landlord of which was an acquaintance of Master Howell's, it was given out with considerable emphasis, as if there was something in our official position of which to be proud, that we had come as deputies from the Regulation to petition the governor, and I venture to say that before nightfall every citizen of Brunswick was well aware of what had been done in upper Carolina to preserve the rights of the people.

It was only natural the Brunswickers should be curious to know all that this association so lately sprung into existence was doing, and even we lads were questioned eagerly by those who, because of press of numbers around the deputies, could not otherwise learn of the organized resistance against unjust taxation.

Thus it came about as Master Howell and Hunter desired, that the citizens were well informed as to the reason of our coming before we had asked for an audience with the representative of his majesty in the Carolinas.

Not until the following morning did we present ourselves at the governor's residence, and then we were admitted after being allowed to cool our heels in the guard-room for an hour or more.

Sidney and I had not supposed that we would accompany our companions on this visit of state; but it served the purpose of our gentlemen to introduce us as deputies of equal importance with themselves, with the view, most likely, of giving us lads that fancied protection which would be thrown around the messengers of a reasonably powerful association.

There could be no doubt but that the governor knew by this time why we had visited Brunswick, and, while not daring, perhaps, to refuse us an

audience, satisfied his narrow mind and tyrannical disposition by making us wait in the room occupied by the guard for a certain length of time.

When finally we were admitted to his presence we saw a cruel-faced man, clad carelessly in a dressing-gown, seated at a table in that room which served him as a library, and ranged around the apartment were six soldiers fully armed, fitting protectors for such as he.

As if with the view of proving that we were of but little consequence in comparison with his greatness, he did not so much as glance at us when we first entered; but remained as if engrossed with certain papers that were spread out on the table, until ten minutes or more had elapsed, when he looked up, surveying us with a scornful expression.

Certain it is that he did not frighten either of the party by his lordly manner, and such fact must have been apparent on our faces, for he finally asked in a loud voice, perhaps hoping to cause alarm by his roar, why we had presented ourselves.

Master Howell acted as spokesman, and he advanced a pace as he said boldly:

"May it please your excellency, we, the deputies of a certain association well known in upper Carolina as the Regulation, have ventured to present ourselves with a petition from the Regulators, on the strength of a recommendation from your excellency's secretary, Master David Edwards."

"Your association may be well known in the backwoods; but we have yet to learn of it here," the governor cried angrily.

"That you may do by a perusal of this petition, your excellency," Master Howell said quietly as he laid a folded paper on the table in front of Tryon.

"Two of our people have been imprisoned without due warrant, and when four hundred or more gentlemen of upper Carolina presented themselves at Hillsborough for the purpose of restoring our friends to liberty, Master Edwards urged us to the present procedure, promising faithfully in your name that this matter, together with others of an unlawful nature, should receive your prompt attention."

At this speech, which savored little of fear, the governor took up the petition, glancing at it carelessly, and then throwing it contemptuously on the table, cried in a voice which quivered with passion:

"Return to your homes, and smother this rebellion in the bud, else the penalty will be great. There shall be no association banded against the laws of his most gracious majesty! See to it that your fellows disperse at once, and have a care how you meet in opposition to our will!"

"I pray your excellency to read that which we have brought at risk of our lives," Master Howell said firmly. "You will see that we do not rebel against his majesty's laws; but rather against those who exceed them unlawfully."

"Go home and pay your taxes, or I will sweep the upper Carolina with my troops till it is a wilderness!" the governor cried as if beside himself with rage, and it appeared to me that he was about to give yet more rein to his passion when an officer entered hurriedly, whispering a few words in the angry man's ear.

"Admit him at once," was the command, and then, to my astonishment and fear, in walked one of those two cavaliers who had opposed our passage and afterward made prisoners of the deputies.

The newcomer had all the appearance of one who has traveled far and fast, and after looking around hurriedly as if to satisfy himself that we were really there, he laid a paper on the table in front of the governor.

Then, at a sign from Tryon, he backed out of the room as if in the presence of royalty itself, and the governor hastily took up the written message.

It must have contained something which did not please him, for his brows wrinkled as he read, and after coming to the end he perused it once more with greatest care.

Although having had no experience in such matters, I understood full well that this missive had been sent by David Edwards, and could reason out all the circumstances readily.

Most likely a messenger had been sent back to Hillsborough within a very short time after the escape of the deputies, and even while a portion of the

party were pursuing us. Knowing as he did, that the Regulation was sufficiently strong to dominate upper Carolina if it was forced to extremities, Master Edwards had unquestionably sent a full account of all that had happened to the governor, in order that the latter might not do anything rashly.

That my reasoning was correct I understood when, after some reflection, Tryon, turned toward us once more with something like a smile of friendliness on his cruel face.

"You will excuse me, gentlemen, for having diverted my attention even momentarily from your affair. In these times, when treason is rearing its head against his most gracious majesty a moment's delay may have fatal results. I will read your petition."

Then, as if he had but just understood our request, he perused the document we brought, and having done so said condescendingly:

"This matter shall receive our immediate attention. Return to your homes; explain to your associates that their welfare has my best care, and assure them that within a month I will make a personal visit to Hillsborough. Then these complaints shall be inquired into by impartial judges, and that which is wrong or unjust will be remedied without loss of time."

He bowed, to intimate that the audience was at an end, and we went out of the room, not backward, as had the messenger from Edwards; but as gentlemen should, in a manner calculated to show that we stood on terms of equality with all there.

But for the manner in which he first received us, I would have said that the troubles of our people were well-nigh at an end; but, believing he had spoken us fairly at the last only because of realizing that the Regulation was of great strength, I fancied we had accomplished nothing of good by our coming.

When we were at the inn once more, and could hold converse without fear of eavesdroppers, I learned that the deputies were of much my way of thinking, for Master Howell said with a grim laugh:

"At least, we have pinned Tryon down to the promise that he will come to Hillsborough within a month."

"And then I warrant you that those whose names are on the rolls of the associations will find themselves fast beset by Fanning's henchmen. Our last condition will be worse than the first."

"He will need to bring a strong following with him."

"Not so, my friend," Master Hunter replied gravely. "The weak-kneed among us will profess to believe in his promises, and the Regulation will be reduced to less than an hundred. He may work his will until again are the people so oppressed that alleged rebellion becomes necessary if we would save ourselves from prison."

It was not a cheerful ending to our long journey; but there was nothing more that we could do, save make the people of Brunswick understand yet more thoroughly the situation of affairs in those countries where Fanning and Frohock held the courts of law in their hands.

During the remainder of this day, in accordance with Master Howell's suggestion, we talked with such of the citizens as came to question us, and by nightfall the Brunswickers must have had a fairly good idea of the situation in upper Carolina, where already had four hundred gentlemen declared they would resist the misrule which was crushing them to the earth.

One more day we spent in the town, and then it was as if the citizens had learned all they wished concerning our affairs, for our questioners ceased to be curious, and Master Hunter declared that the time had come when we should return.

"We will set out to-morrow morning," he said, and Master Howell nodded to show that he was of the same mind. "Having described to the association our journey, and that which has taken place here, there will be nothing to do until the governor institutes the promised inquiry into the wrongs of the people."

"Which will result in yet greater oppression," Master Howell added moodily.

"We at least have done our duty, and will again be in the front ranks of the association when the time is ripe for action."

Well, all was done as Master Hunter had said. We were on the return journey shortly after sunrise, and allowed the horses to take that pace which best pleased them, for we had no need to make great speed.

Our haversacks had been well filled at the inn, and we would have no need of searching for game until two days had passed, when it was reasonable to suppose we should be in that section of the country where the planters would provide us with food and shelter.

There was no thought in our minds that any effort would be made to stop us, for now were we carrying a message from the governor, and such an one as would go far toward soothing our neighbors who had so lately been in arms against those who represented the government.

At noon we halted an hour to rest the animals, who were yet quite fresh for the journey, and to partake of the noonday meal. Then we rode leisurely forward again until about five o'clock in the afternoon, when we were arrived at a plantation where was promise of comfortable accommodations for the night.

"It is better to halt here, at the expense of two or three hours, rather than push on and sleep in the open air," Master Howell said as he reined his horse in at the door of the dwelling.

A white man and a negro, one an indentured servant and the other a slave as we afterward learned, appeared in response to our summons, and from them we learned that the planter and his family were in Newbern on a visit to relatives; but this did not prevent us from receiving such hospitality as is famous in the Carolinas.

The negro led our horses to a stable of logs which was situated fifty feet or more in the rear of the main buildings, and the white servant ushered us into a sitting-room that gave access to the broad, vine-covered veranda overlooking the main road.

In this last place we were served with light refreshments until a hearty meal could be prepared, and my comrade and I congratulated ourselves on

having come across such a lodging, when we had expected to sleep in the thicket where flies and mosquitoes would disturb our repose.

Our weapons, saddle-bags and haversacks had been brought into the sitting-room, and we could come at our belongings, if we so desired, by simply stepping through the open window.

The deputies were taking their ease in a couple of hammocks, and we two lads were lounging in huge chairs when the clatter of horses' hoofs aroused us all to curiosity.

Peering out through the vines which formed a curtain in front of the veranda, I saw five horsemen, the leader that same man who had brought the message to the governor while we were having audience, ride past in hot haste and halt a few yards beyond the path leading to the house as they carefully scanned the road.

"Yonder men have been following on our trail," I said, giving words to the thought which was caused by their movements. "Having over-ridden it, they will turn back."

It was as I said.

The horsemen rode slowly back to the house-path, gazed toward the building, and continued on at a walk in the direction from which they had come.

"Can it be that Tryon would try to prevent us from reaching Hillsborough?" Master Hunter said half to himself, and Master Howell replied grimly:

"Those fellows have followed us by his orders, or those of Fanning and Edwards, you may be certain, for they have no personal quarrel with us. It is now known where we are, and I'm of the opinion that we had best make preparations for defense."

"But it is to the interest of the governor that we report to the association his reply to our petition," Master Hunter continued with the air of one trying to read a riddle.

"So it seems to us who are not in the secret. We need not try to solve the problem until preparations for defense have been made, since it is positive

those fellows are on our trail."

I failed to understand how we might turn another's house into our castle; but Master Howell was not troubled by such trifles.

Entering the sitting-room hurriedly, he summoned the white servant who was supposed to be making ready a meal for us, and hurriedly explained to him the situation, concluding by saying:

"It is likely that we shall be attacked before morning. What would your master do if he were at home?"

The fellow shook his head in perplexity, and Master Howell added:

"Having given us shelter we are his guests, and as such he would be bound to aid us, provided we had proven ourselves honest citizens of Carolina. So much, and no more, you shall do. I am of the opinion that they will take away the horses, if possible, and to check such an attempt the animals must be brought nearer the house where we can defend them."

"There is no other stable, sir."

"Is there not a store-room where we can stable them for the night? You can cleanse it to-morrow morning with this to lighten the task," and Master Howell held out three silver coins.

The servant clutched the money eagerly as he said:

"Peter the negro, and myself, are the only servants on the plantation. The horses might be brought into the room which is used as a kitchen during the winter. There is no floor, and a few armfuls of straw would make them comfortable."

"These lads shall assist you in caring for them at once, and look to it that the saddles and bridles are also brought into the house. Do all you can to aid us, and double that amount of silver shall be yours when we ride away."

It is easier to bribe an indentured servant than a slave, because the former may be able to purchase his freedom, and this fellow showed every desire to aid us.

Sidney and I followed him to the rear of the building while Masters Howell and Hunter remained on the veranda with their rifles in hand, and in a few seconds the negro was made to understand what we would do. He brought straw while we led the animals into the house, and when so much had been accomplished the servants and us lads brought a supply of water from the well, filling every convenient vessel, for there was in my mind the thought that we might be called upon to stand a siege.

When we had done this much, and we spent not less than half an hour in the work, Sidney and I went through the house to the veranda where we found the deputies on guard.

I reported as to the arrangements we had made, and Master Howell said approvingly:

"It is well. We are now prepared to give those gentleman a warm reception, unless they have some means which we have overlooked of getting into the house. You lads are to stand guard at the rear of the building, and if a stranger appears, call upon him to halt; if he then advances you will be warranted in shooting. In case the governor thinks to make way with us he will find that he has undertaken quite a task."

"By calling out the soldiers he could soon put an end to our return," Sidney suggested.

"That is exactly what he won't do, especially after we have made our story so public in Brunswick. It is not in Tryon's nature to come out like a gentleman in his usurpation of authority; but he must needs scheme to carry his ends by trickery. If he can dispose of us through the agency of these fellows, well and good, for there is little chance he can be connected with the crime. Have no fear that any public movement will be made to deprive us of freedom or life."

We lads took our rifles and went to the back porch, where we were screened by the vines, and while the white servant prepared supper and the black acted as assistant, we watched for the enemy, feeling ill at ease, as well we might.

After having come to believe that our troubles were at an end with the delivery of the petition, I was particularly cast down at thus learning that

our enemies were inclined to pursue us yet further. It had an ugly look, as if Fanning and Edwards, with the possible consent of the governor, were seeking to take our lives, although, study the matter as I would, it was beyond my poor powers to make out how the rule of the king in the Carolinas would be strengthened by our death.

It seemed more as if the discontent round about Hillsborough would be increased in case we were slain, and that the Regulators would make every effort to avenge the murder of their deputies.

It was all a riddle to me, and after turning the matter over and over again in my mind, I asked Sidney what he made of it.

"Nothing whatsoever," he replied with a long-drawn breath. "I cannot solve the riddle; but this much is certain, that those fellows who followed our trail to this house are the same who made prisoners of Masters Howell and Hunter, and unless we are willing to go to prison somewhere between here and Hillsborough, we stand a good chance of being shot."

"Why do you say 'somewhere between here and Hillsborough'?" I asked in perplexity.

"Because if we are not murdered outright, it will be to Tryon's interest to keep us well hidden from the Regulators, who would use every effort to free us, and we could not be imprisoned secretly either at Brunswick or Hillsborough."

CHAPTER VI.

BESIEGED.

While we lads crouched amid the vines which covered the porch of the dwelling wherein we had entrenched ourselves without due authority from the owner, watching intently for some token that our enemies were creeping up on us, the question came into my mind as to whether a goodly portion of the present trouble did not come from the fact that Master James Hunter was one of the deputies appointed by the association.

Then there came back to me all I had heard regarding the arrest of Masters Husband and William Hunter, a cousin of Deputy Hunter. It was said by some that Fanning had particular reasons for desiring the imprisonment of James, while he did not have a speaking acquaintance with William.

When the arrest was made, or rather when the two Regulators were taken into custody to convenience Messrs. Fanning and Edwards, the wrong Hunter was taken, and he against whom the attorney had been working was appointed one of two to represent the Regulation at an interview with the governor.

It was a vile act, throwing two men into jail on a charge of seditious conduct, simply to pleasure a couple of villains; but even this was not the worst of our treatment at the hands of Governor Tryon and his minions.

I could fill an hundred pages like this with accounts of injustice done us of the Carolinas, and yet set nothing down which might not be verified by reliable witnesses, while every item would be the record of an outrage as gross as that committed in the imprisonment of Masters Husband and Hunter.

If it could have been known throughout all the colonies what we of the Carolinas suffered under the misrule of William Tryon, then would that declaration of liberty which was made in 1776, have been brought about five years earlier.

However, it is not for me to hark back to the beginning of our troubles; I have set down these thoughts because they came into my mind like a flood while Sidney Hubbard and I remained on the alert against those who, unquestionably, had been instigated by men whose duty it was to protect the people, instead of riding them down like foxes on the hunting field.

I had been disheartened by the sudden turn in affairs, and the predictions made by Sidney, until it was to me as if the efforts to assert our rights as honest men would result in the death or imprisonment of all concerned in the undertaking.

Meanwhile, as I thus agitated myself about affairs which would be regulated by Providence, we two lads kept close watch but without seeing or hearing anything of those horsemen, who, as we knew full well, were lurking near at hand to work us some mischief.

When the white servant had prepared our supper, Masters Howell and Sidney went inside the dwelling to partake of the meal, leaving Master Hunter and me on guard, and, later, we two were relieved by the others to take our places at the table.

While Master James Hunter and I were eating, I ventured to ask him what he thought of the situation, and received as reply:

"We are better off here than on the road, although it seems likely our return will be greatly delayed."

"Meaning that you believe those men whom we saw will spend much time trying to capture us?"

"We shall not be able to continue our journey save at the expense of an encounter with those villains, and whether we ever see home again depends, as I believe, upon our being the best marksmen."

Such a prediction did not tend to raise my spirits, as can well be imagined, and straightway all desire for food fled from me.

I left the table without ceremony, and rejoined Sidney, full of determination to shoot with true aim if one of our enemies would present himself as a target.

Until the sun had gone down we watched in vain, and while the twilight was gathering Master Howell announced his intention of venturing out to reconnoiter, for it seemed necessary we should know what disposition had been made of their forces.

Sidney insisted that he or I should be allowed to perform such task, arguing with great force, so I thought, that it would be of but little consequence if one of us lads was captured, while it could not be reckoned anything short of a disaster if harm befell either of the deputies.

Master Howell turned a deaf ear to his arguments and entreaties, replying again and again that he would not put a dangerous duty upon a boy when he was able to perform the task himself.

Even while we strove to restrain him, he went out into the night, as if bent on visiting the stable, and when he had arrived at that building it was no longer possible for us to distinguish his form.

Master Hunter kept watch alone at the front of the house, and in the rear Sidney and I strained our ears for some token of disaster or success.

The deputy had been absent a full half hour, during which time we heard nothing save the movements of the servants, or the stamping of the horses in the winter kitchen, and then suddenly, as if he had risen from the ground, appeared Master Howell.

We lads raised our rifles, not knowing for the instant whether it was friend or foe who had come upon us so silently, and then we heard his voice:

"I have returned; do not fire."

He stood on the porch an instant to tell us in whispers the result of his investigations.

"They have surrounded the buildings in such manner that we cannot leave secretly, and appear to be content with that. As I look at the matter, they, having trapped us, are waiting for reinforcements, or, possibly, officers of the law."

"But you have said that Governor Tryon does not dare to cause our arrest now that the people of Brunswick have heard all the story," I suggested, not a little alarmed by the information that the enemy appeared well content to wait until we might be captured with greater ease.

"It was my proposition that Tryon would not dare arrest us in Brunswick; but now we have left that place, he might work his will without the people being any the wiser."

There was in Master Howell's tone that which convinced me he was seriously disturbed by the condition of affairs, and I understood such was really the case when he added:

"I think it is high time we held a conference of war, and one of you lads had best come with me to the front veranda, while the other remains here on guard."

I motioned Sidney to accompany Master Howell, and he, eager to hear all which might be said, readily acceded to the mute suggestion.

In another moment I was alone, peering out into the darkness with every faculty on the alert, and thus I remained until half an hour or more had passed, when my comrade returned.

"Well?" I asked impatiently, burning to learn the result of the conference, for I had worked myself into a fever, trying to imagine what else we might do save await the preparations of our enemies.

"It is decided that we leave this place about midnight," he said in a cautious whisper; "that is, if you agree to the proposition."

"If I agree!" I repeated in nervous petulance. "What can I have to do with any plan which may be proposed?"

"If we set out it will be at risk of our lives, and the deputies have decided that no move shall be made unless all four of us are fully agreed that

nothing different can be done."

"But how may we go or come at our pleasure if the house is surrounded?"

"We can saddle the horses, and mount while yet in the building. Then it is a case of starting with a rush, hoping that in the darkness those fellows will not be able to shoot us down."

"We are to run away, then?" I asked in surprise, for it had been in my mind that both Master Howell and Master Hunter would insist on fighting, however great the odds.

"It seems necessary to do so if we would see our friends again, and the deputies believe it is of the utmost importance the Regulation be acquainted with the fact that all manner of treachery will be brought to bear, rather than do us justice. Therefore we will run instead of fight. Our horses are as fresh as theirs, and we may be able to give them the slip. In case we are brought to bay, it is better, so the gentlemen have decided, that we stand opposed to five or six men, rather than a large body. Are you agreed?"

"It is useless to ask such a question. I shall do whatsoever the deputies think best."

"Then, if that be your mind, the time may come when you will be called upon to act what appears to me like a cowardly part."

I was amazed by this remark, and it can be readily supposed that I insisted upon an immediate explanation.

"The deputies are agreed that in case we are brought to a standstill, you and I are to make our way to Maddock's Mill without regard to them. They will fight, whatsoever the odds, for the sole purpose of allowing us to escape."

"Why have they grown so careful of us?" I cried, never dreaming of that which would have come instantly into the mind of a quicker-witted lad.

"It is that we may carry the news to our friends. Masters Howell and Hunter will sacrifice their lives in order that the members of the association may be informed of the exact situation of affairs."

I made no promises; timorous though I was, there could be, so I said to myself, no time when I would feel warranted in leaving comrades or companions struggling against a superior force. The Regulation might forever remain in ignorance of what had been said at Brunswick, before I would write myself down such a coward as to seek safety while others of my party were in peril.

Luckily Sidney did not exact a promise from me on this score, and when Master Howell came to where we stood, he believed I had fully agreed to all the propositions.

"Sidney and I will saddle the horses when the time comes, and you and Hunter will only leave your posts in order to mount and make the rush. There is opportunity for us to gain a couple of hours' sleep. I will stand guard in front, Sidney is to remain here, and in due time you and Hunter shall act as sentinels."

I was not disposed for slumber; but this was virtually a command, and without hesitation I went into the sitting-room.

Here I soon fell asleep, despite the fear in my heart, and when Master Howell aroused me, at the expiration of two hours, it was as if I had but just closed my eyes.

Then I performed the part of sentinel, when the hours seemed as long as the time of repose had been short, and it was as if the night had passed before Master Hunter came to announce that the moment for action had arrived.

Then he went back, leaving me with the blood bounding through my veins, and my heart throbbing violently, for I believed that one or more of us would soon be in another world.

As had been agreed upon, Master Howell and Sidney made ready the horses, and the words were passed to the front veranda that that post be vacated.

Now we moved swiftly, mounting the horses while they were within the makeshift of a stable, and when all were in the saddle Master Howell paused to say:

"I will lead the way, then comes Clare, Sidney, and lastly Hunter. Ride in close order, and at full speed."

The indentured servant stood near the door, yet holding the money which had been paid him according to promise, and our leader rode out into the darkness.

At a foot pace we went around the building, until coming to the path leading into the road, when Master Howell struck the spurs deep, his horse darting off like an arrow sent from a bow.

At that same instant came the crack of a rifle; I heard the ball whistling a few inches above my head, and said to myself that if the enemy shot as well as that in the beginning, they must succeed in winging all of us before we were well under way.

The fever of excitement was so great upon me that I cannot well say exactly what happened during five minutes after we emerged from the stable.

I only know that a volley of musketry rang out; that I fired point-blank at a man who suddenly appeared from out a clump of bushes, and cheered when he fell. Then it was as if a fierce conflict was being waged all around us, and that we rode through the showers of bullets until gaining the main road, when our animals stretched themselves to the race.

I came out from the dream into which I had been plunged, when Master Howell shouted to know who had been hurt, and each in turn declared that he was not even scratched.

It seemed almost impossible we could have come through that shower of bullets without being riddled, yet such was the case, and then I wondered whether the horses had fared as well.

My steed was going true; I could feel the play of his muscles beneath me, and knew beyond peradventure that he like myself was yet sound in wind and limb.

"They aimed too high!" Master Howell cried exultantly. "If the scoundrels had turned their attention to crippling the animals, our chances would have been slim. Huzza for the Regulation!"

Then we four who had ridden out from the shadow of death gave voice to our triumph, and from the rear came a yell of rage, telling us that it yet remained to shake off the pursuers who were bent on taking us, dead or alive.

"Keep your horses well in hand," Master Hunter cried. "There's a long race ahead of us, and we must not wind the beasts."

Our leader set the pace, riding only to keep beyond rifle range, and we four came alongside each other until we filled the road so completely that had any unfortunate been ahead on foot we must have trampled him down.

It was possible now to converse, and I fancied also that the animals traveled more easily by thus being in company.

When an hour had passed and we were come to a stream, the deputies and I dismounted, standing side by side in the road, while Sidney gave the horses water enough to wet their throats, and loosened the girths that they might regain their wind, for all four were well nigh blown.

We there stood ready to fire in case the pursuers came up before the steeds were ready for the road again, and word had been passed that we should give our attention to crippling the enemy's horses rather than the men.

During fifteen minutes did we remain with rifles in hand ready to be drawn to the shoulder at the first show of a pursuer, and then the chase was resumed.

We had gained a long start of Governor Tryon's minions; but the halt would enable him to cut down the advantage, and again we rode at racing speed until once more it became necessary to halt.

In this manner was the night spent; we favoring the faithful animals as much as possible, and while they rested, standing shoulder to shoulder ready for a battle.

When morning dawned we could see no signs of the enemy in the road, and this fact troubled me not a little, because I feared that they had taken a short cut unknown to us, and we would soon find them in advance to check our flight.

By riding until nearly noon we arrived at the plantation of William Payne, on whom Master Howell could rely fully, and here we came to a halt, counting to give the horses a long rest.

Our host had two sons, and with such an accession to our numbers we were not greatly dismayed by the prospect of another siege, therefore we dismounted, and my timorousness vanished as I realized that we were now so far from Brunswick there was little fear but that word could be sent to the members of the association even though we should be disabled.

While we ate dinner, which had been hurriedly prepared, and the sons of our host cared for our leg-weary steeds, Master Howell told all the story of our adventures, and the owner of the plantation proposed that one of his boys take a fresh horse for the purpose of making his way to Maddock's Mill with the tidings.

After some little discussion our deputies agreed to this proposition, and before we stretched ourselves out to sleep the lad rode away, counting to change horses at the house of a friend, forty miles distant.

Our mission was thus virtually accomplished, and we composed ourselves for slumber with the satisfaction of knowing that the duty due the association was the same as performed.

Our host and his son agreed to stand watch while we slept, and nothing disturbed us until well into the night, when I was aroused by hearing the owner of the plantation as he entered the room to awaken the deputies. Then I overheard the following conversation:

"Your pursuers are here. The hoof-prints of your horses could be plainly seen on the lane, and all hands were in front of the house before seeming to realize the situation."

"Where are they now?" Master Howell asked quietly as he arose with difficulty from the bed, for his joints were stiff and lame after the hard race.

"I forbade their coming nearer, and warned the party to leave my premises. They asked if two men and two lads were here, and I, fearing lest they might pursue my son, told them the truth."

"That was well done," Master Howell replied approvingly. "Now they may besiege us once more, and we will make no effort to get away unless, perchance, you object to our resisting the governor's servants from your house."

"Do as you will with me and mine. My wrongs are not less than yours, and now is the time when we of the Carolinas must prove ourselves men, or expect to remain under the yoke forever."

"You may be set down as a traitor to the king if we make this house our castle," Master Hunter suggested; but stout Master William Payne was not to be frightened.

"I can't say that I have any quarrel with the king himself; but against his representatives in the Carolinas my hand shall never be lowered. I aroused you only that you may be prepared in case an attack is made."

"We will let the boys sleep, while Hunter and I have a look around," our deputy said in a low voice, and the three men left the room softly, believing we lads were yet asleep.

When they were gone Sidney said as he turned to face me, for we had been sleeping in the same bed:

"So it seems that we are besieged again."

"Did you hear all Master Payne said?"

"Every word."

"We are like to make quite a halt here."

"And can well afford to do so, now that word has been sent on ahead. Young Payne will readily arrive at Maddock's Mill by to-morrow afternoon, if he gets a fresh horse during the night, and we shall soon have reinforcements enough to settle as many as have come."

"If we must fight to get back home, what will be the result once we arrive there?" I asked, a new fear coming over me.

"That is something concerning which we need not trouble ourselves for the present," Sidney replied carelessly.

"Then I'm of the mind that Fanning will speedily find a chance to clap us into jail on a charge of treason, unless the association holds together to the bitter end."

Such mournful conversation might have been continued a long while but for the fact that it was interrupted by a volley of musketry, succeeded by straggling shots which told that our people were replying only when they saw a target.

"It's to be a battle instead of a siege!" Sidney cried as he hurriedly dressed himself, I following his example; but the firing had ceased by the time we gained the kitchen, which apartment was directly below our chamber.

Here we found Master Howell and our host, one at the door and another peering out of a loophole cut in the shutters of a window, and I knew full well that Master Hunter and young Payne were on guard at the front of the building.

"Where can we be of service, sir?" I asked, and Master Payne replied with a grim laugh:

"I reckon you lads will not be needed, save, perhaps, to stand guard later. The gentlemen from Brunswick fired in order to learn if we were prepared to receive them, and I'll answer for it that at least one knows to his cost that we're not to be caught napping."

"How many do they number?" Sidney asked, and Master Howell said gravely:

"Not less than a dozen. The reinforcements have evidently responded to the summons sent from our last halting place."

"We should be able to hold our own until some of the Regulators arrive?"

"Aye, lad, and that is causing me no little uneasiness. By protecting ourselves we shall be giving Tryon an excuse for breaking his word, and before this business comes to an end the upper Carolina will be overrun by the king's soldiers. It is beginning to be rebellion in good earnest!"

CHAPTER VII.

TIMELY AID.

It appeared to me that Master Howell was trying to "lock his stable door after the horse had been stolen," when he mourned the fact that what we were doing in our own defense might be taken as open rebellion.

To my mind the people had rebelled openly and with emphasis when the Regulators rode, four hundred strong, to release Masters Husband and Hunter.

We four who had visited Brunswick to lay before the governor a petition couched in most respectful language, could not be accused of aiding and abetting rebellion when we objected to being shot down or taken prisoners by strangers who had no lawful warrant to deprive honest citizens of their lives or liberty.

As the matter presented itself to my view, those on the outside were the ones who acted in a rebellious manner, and there was no honest judge in the country who would not rule that we had every right to protect ourselves.

Something of this kind I said to Master Howell when he appeared to be bowed down with grief because, as he declared, our people were making a show of what might be called treason, and to my great surprise I found that we who were fighting our way from Brunswick to Hillsborough did not have any place in what it might please the governor to term "open rebellion."

"We four are of no consequence in the outcome of this matter," Master Howell said, condescending to explain to me the situation as it appeared to him, "and yet through us, or, rather, through our distress, will the king's officers most likely declare the upper Carolina under military rule. If we

could continue our journey to Maddock's Mill without interruption, all would be well. Or, if we fought for our lives from this moment until we were killed or come to our journey's end, it would also be of no moment. That which distresses me is, that young Payne will give the Regulators an account of our troubles, and those gentlemen will ride in full force to aid us. Then has come the time for Governor Tryon's minions to declare that the colony is in revolt, and the fact that four hundred armed men have banded together to regulate affairs outside their own country is fair proof that the cry of treason has good foundation."

"Well, and what then?" I made bold to say.

"Then will the king's troops be sent to Hillsborough and the surrounding towns. Fanning and Edwards can work their will on the people, with an armed force at their backs, and when the Regulators oppose the military it will be represented that the whole colony is in revolt."

"That was much the condition of affairs when we left Maddock's Mill," I ventured to suggest.

"Aye, lad; but then we had not opposed ourselves to the king's forces. Now it will be necessary to begin what can be called by no other name than that of treason."

"It alarms you that such should be the case, Master Howell?" I said in a questioning tone.

"Not for myself, lad, not for myself, nor for any of us who are brought to a stand in this house. It is the women and small children of whom I am thinking. We can fight to the bitter end; but they will suffer an hundred deaths while the English soldiers overrun the colony."

"Then would it have been better had we surrendered when we were first besieged."

It was as if this remark stimulated the deputy. His eyes brightened, he straightened himself suddenly, and said as if speaking to a vast assembly, instead of one timorous lad:

"Not so, Clare. I was but considering the sufferings of our own people, and that should not be reckoned as against the grand result. This is indeed open rebellion, and the news of our oppression will flash from province to province until the entire country is aroused. Then, perhaps not until after we are dead, but at some time in the near future, will the rule of the king come to an end in America. We are the instruments selected to begin the way for freedom, and in future ages we will be spoken of as those who brought into existence a free country which shall be as a beacon light to those who are ground beneath the heel of selfish kings!"

From that instant it was as if Master Howell's entire nature had changed. He appeared to be exulting in the danger which surrounded us, and was eager for the fray.

We stood watch until daylight, and then it was possible to see that Master Payne's dwelling was surrounded by fifteen or twenty men, some wearing uniforms, and others clad only in the garb of planters.

The fact of there being soldiers among our besiegers told plainly that Tryon himself planned the outrage, and when such was apparent I heard Master Hunter say in a low tone to Master Howell:

"From this day the Regulation will remain under arms until all the colonies are prepared to take up the struggle against the king's minions! Instead of 'Regulators' we should call ourselves 'Sons of Liberty.'"

And thus it was that the association known as Sons of Liberty sprang into existence at the home of a planter in the Carolinas—that association which was speedily to extend throughout all the colonies as far east as Massachusetts, and south to the limits of the country.

As when we made the last stand, there was no disposition on the part of the enemy to make an attack. We had bettered our situation, and increased the number of rebels, therefore Tryon's minions probably believed it necessary to strengthen their ranks.

During this day we remained on guard and alert, while our enemies were posted just beyond rifle range in such manner as to encircle us completely.

By making a rush after dark, as had been done before, we might readily have broken through the thin line; in fact such a move was suggested by Sidney, but Master Howell said firmly as if he had finally committed his life and fortune to that final result he foresaw:

"We will wait for the Regulators. Since Tryon wishes to force us into open rebellion, he shall be gratified. Shoot down yonder villains if it so be you can; but here we remain until overpowered, or rescued by those who will speedily come to avenge the wrongs which are perpetrated upon all the colony."

We had no opportunity to open fire on the enemy during the day; but when night came, and they drew more closely the circle of guards, we found a target now and then, thus reducing the number until I believe of a verity we might have ventured out and beat them off in a hand-to-hand fight.

It is not well that I spend too many words on the situation at the Payne plantation, for the story is one of careful watch only, with now and then the report of a rifle to tell that we were on the alert. The enemy took turns at using us for targets; but, sheltered as we were behind the walls, they did no injury, while I am confident we disabled not less than four during the time of our arrival and noon of the third day.

Then we saw a cloud of dust in the distance, heard the shouts of horsemen, and soon saw a body of gentlemen full four hundred strong ride down like a whirlwind upon fugitives who had lately been our besiegers.

We sallied forth, and before the fray was come to an end our friends had seven prisoners. None were killed outright so far as I could learn; the remainder had taken the alarm in time to seek safety by flight, and our road to Maddock's Mill lay open before us.

Young Payne had discharged his mission well; the Regulation was in session considering an arrest which had been made for non-payment of taxes, and, waiting only long enough to secure a supply of provisions, had set off for our relief.

The entire party camped on the plantation that night, and before morning came, their plans for the future were fully formed.

It was decided that the gentlemen composing the Regulation should remain under arms until Governor Tryon fulfilled his promise, or ignored it altogether, and during this time of waiting all efforts should be directed toward protecting those who refused to pay the unjust tax.

On this evening Sidney and I were regularly admitted to the ranks of the Sons of Liberty, as if we were indeed men in age, and so wrought up was I by Master Howell's words, that I persuaded myself the colonies would speedily be freed from the rule of a master who had set over us such men as Tryon, Edwards and Fanning.

We left Master Payne's plantation next morning at sunrise, and in due time arrived at Maddock's Mill, where it had been decided the Regulation would have its headquarters.

It was no slight task to provide food and shelter for such a number; but once it was known that the governor evidently intended to play fast and loose with the people of our section, every one, including those who had not deemed it right to join the Regulation, set about bringing in stores of food for both men and horses. Then the men began building shelters, working in squads of five, three, or two, as was mutually agreed upon, and soon the neighborhood of Maddock's Mill resembled a military encampment.

The rebellion began to assume decided form.

As may be fancied, Sidney and I were camp-mates. We built for ourselves a lean-to which would shelter us from the rain at least, and in the rear of it made an enclosure into which the horses could be brought at night.

It was not believed safe for us to go home, even for a few hours, because Edwards and Fanning had men out in every direction picking up a victim here and there, and we lads knew full well that Sandy Wells would take full advantage of the opportunity in case he came upon us where we could not defend ourselves.

The Regulators were waiting to learn whether Tryon would keep the word given to the deputies, and a dull time of it we lads had meanwhile.

Since one day was passed much as another, with nothing by way of excitement save when news came of this or that high-handed proceeding on

the part of the secretary and the attorney, I propose to set down here simply an account of the general happenings in the neighborhood.

The Regulators had scouts out in every direction, and therefore it was we learned, early in July, when we were heartily tired with lounging around camp while it seemed necessary the most active measures should be taken, that Governor Tryon, with an escort of an hundred and sixty soldiers, had arrived in Hillsborough.

This was in accordance with his promise, and those who hoped the colony would not be forced to resist the king's laws were filled with joy, particularly when the governor issued a proclamation declaring that he had come to right the wrongs complained of in the petition delivered to him at Brunswick.

Not a word in his official note to the people was said regarding the Regulators; but the citizens were requested to keep the peace until such time as the several complaints could be acted upon by the courts of law, and it was promised that if they remained quiet all should be done in accordance with the wishes of the majority.

When this proclamation was sent out over the colony there were many who urged that the Regulation be dissolved, lest the fact of so many armed men remaining together might be construed by the governor as outright treason.

As a matter of fact an hundred or more did leave the encampment, returning to their homes, and but for the earnest entreaties of General Hamilton, the deputies, my father, and several others, the Sons of Liberty would have dispersed simply because Tryon and his crew wished it so.

Before one week had passed after the issuance of the proclamation, it could readily be seen that our burdens were to be increased instead of lightened. Twenty or more of those who had left the Regulation and returned home were arrested for non-payment of the poll tax levied to build Tryon's palace.

Edwards and Fanning no longer spoke of pacifying, but of subduing, the people, and warrants were sworn out daily for the purpose of putting into prison those who were absolutely unable to pay the amount demanded.

Fanning's fees were increased until they amounted to ten times as much as the law allowed for court services, and the poor wretch with money or lands who fell into his hands was unmercifully shorn of all his possessions before being set free.

The wickedness was increased twenty-fold, and no man could say at what moment the prison-doors might open to receive him, save we who remained banded together in the encampment at Maddock's Mill.

Then Governor Tryon proceeded to frighten the wretched people by marching with his soldiers from Hillsborough to Mecklenburg, and there coaxing or scaring twenty or more timorous souls to enlist in the army he said should be raised to subdue "the rebellion in upper Carolina."

Then he marched to Salisbury and back to Hillsborough, enlisting recruits wherever men or lads could be cajoled or frightened, and, with an army of an hundred and sixty trained soldiers and about fifty feeble-minded colonists, he proceeded to play the part of king; but with rather poor success.

By this time such of the Sons of Liberty as had returned to their homes and were yet at liberty came back to Maddock's Mill prepared to remain until matters were of a different complexion, and once more the defenders of the colony presented a formidable front to the tyrant.

We numbered upwards of three hundred and eighty, and by advice of General Hamilton our camp was moved nearer Hillsborough in order that we might protect the country roundabout.

In answer to what he was pleased to term a "threat," on our part, Tryon called out the militia of the colony, threatening direst vengeance upon those who dare disregard the call. By such means he added twenty or more to his army, and once again were the sheriffs sent to collect taxes, each officer guarded by a squad of ten soldiers.

Now was come the time when the Regulation believed something more should be done than remaining idly in camp.

We were told off into squads of twenty-five, and day after day we rode here or there as our scouts reported the movements of the sheriff, driving back

the officials and their guards as if they had been so many sheep.

When the guard of the tax-collectors were increased in numbers, our detachments were added to, and in every case we sent back the scurvy rascals. Sometimes they plucked up courage to exchange shots with us, when we always managed to disable one or more; but as a rule they beat a hasty retreat whenever we came in sight.

We had orders not to shoot unless we were attacked, and it was hard at times to obey, particularly when, in the course of our forays, Sidney and I saw Sandy Wells at the head of a dozen soldiers destroying the household goods of a widow with one son of seventeen, who could not pay the money demanded.

Before the middle of August, however, we made the governor and his crew understand that we were masters of that section of country, and instead of sending out sheriffs on fruitless errands, Tryon set about strengthening his position as if fearing we might attempt to capture Hillsborough.

That town was a fortified camp, and none of the royalists dared ride three miles in either direction.

It goes without saying that neither Edwards, Fanning, nor any member of the sheriff's posse trusted himself outside the town. General Hamilton had given orders that we were to capture any of Tryon's officers which we might come across, and keen were all for such game.

I would willingly have given my horse and rifle, all the property I owned, for the privilege of bringing into camp as my prisoner the attorney Fanning. Although we were under strict orders not to shed blood, save in defense of our own, I question if that black-hearted lawyer's life would have been worth a moment's purchase once he was in our power.

Among Tryon's many proclamations at this time was one which stated that on the twenty-second of September would be begun the trials of those who were confined in jail for any offense, and without question the case of Masters Husband and William Hunter would then be called. It also pleased the representative of the king to declare that "since charges had been preferred against Edmund Fanning, attorney, he would be called upon to render an account of his doings."

No one among the Sons of Liberty believed the wretch who had caused so much misery would be regularly tried; but all were curious to see how Tryon might save his minion when so many and such serious charges could, and would, be made against him.

I have tried to set down here an outline of what Sidney and I did during all that long summer while we waited for the royal governor to do us justice, which had been so long withheld. And by telling it in the fewest possible words, we are now come to three days before the time set for the trials, or, in other words, to the nineteenth of September, in the year of grace 1768.

The Sons of Liberty were resolved that there should be ample evidence against Fanning, whatever the cost, therefore from among the members of the association eight were selected who could swear truthfully that the attorney had defrauded them of several considerable sums of money.

It was believed that, unless protected in some manner, these witnesses would be arrested immediately they showed themselves in Hillsborough, therefore the officers of the Regulation prepared a paper stating that in case these men, whose names were set down therein, should be interfered with in any manner while they were in town to serve as witnesses, the Regulators would immediately make an assault. It was further stated that the lives of the governor and his associates depended entirely upon the manner in which our people were treated, for it would be the duty of every Son of Liberty to seek out the principal officials during the assault, for the purpose of shooting them down.

This was open rebellion, and no mistake; but in order to prevent Tryon from declaring that we had intimidated the courts of justice, there was added to the document the agreement that no member of the association would interfere in any manner whatsoever with the judges or the officials of the court, while the cases were being conducted in a way agreeably with the laws of the king.

This document was sent to the governor by one of our scouts who, going into town, secretly gave it to a royalist for transmission, and, before it could be delivered the venturesome man had rejoined us.

Nor was this all the association did in order to secure fair and impartial trials for Fanning as well our friends.

It was decided by the association in council, that while we remained at such a distance from Hillsborough Tryon might take upon himself the risk of conducting matters without regard to our just demands; therefore the camp was moved once more, and this time to a small hill overlooking the town, and hardly more than half a mile from the court-house.

Here we felled trees to serve as breastworks, and otherwise guarded against an attack, for many of us believed that as soon as the Sons of Liberty showed themselves, the so-called king's forces would make a desperate attack, alleging as the reason therefor that they were in fear we might attempt to take possession of the town.

It was on the morning of the twentieth of September when we rode up the hill in full view of Governor Tryon's forces; but no demonstration was made against us. The people could see that we were preparing to resist an attack; but they remained as if paralyzed with astonishment.

Near nightfall came a mounted soldier bearing a white flag, who demanded in the governor's name the reason for our display of force, and General Hamilton replied to the question.

"This is no display of force," he said. "We have come as citizens of upper Carolina to safeguard several witnesses, and have no mind to interfere in any way with the proceedings. Say to Governor Tryon that we shall remain until the close of the session, and that never a man of us will ride into town while the people are given the rights accorded to them by the king and parliament. If, however, there should be an attempt to deprive a witness of his liberty, we shall ride down like a whirlwind, carrying out to the utmost the plan which we have already had the honor to submit to the governor."

The man rode back, and before night came we could see that Tryon's residence was guarded by three-score men, a fact which caused Master Howell to say scornfully:

"I wonder if the coward thinks to save himself from our vengeance, with sixty recruits? We will overturn them, if there be any act of treachery, before William Tryon can sign his name!"

After that we waited in anxious suspense, but constantly on the alert, for the day when law and order would be established in upper Carolina, or it might be known beyond peradventure that we must depend upon ourselves entirely for liberty and the opportunity to live upon our own lands.

CHAPTER VIII.

SANDY WELLS.

As early as sunrise on the morning of September twenty-first, twenty-eight hours or more before the time set for the trial of our friends, the people from the country roundabout began to gather, every man, woman and child eager to learn at the earliest possible moment what might be the outcome of this first attempt to check the course of the king's minions.

Before nightfall it was said that there were not less than three thousand people in and around Hillsborough. On every hand as far as the eye could reach, the visitors were camped; some brought two or three bed-quilts, which they put up on crotched sticks and a long sapling as a ridge-pole, a tent that was made to accommodate as many as could crawl beneath it. Others utilized their carts as sleeping quarters, the body of the vehicle serving as the upper story of the dwelling, and the ground immediately beneath it as the ground floor; to the wheels were tethered the horses or oxen, and he who slept in the "chamber" of such a lodging was in danger of being awakened many times while the cattle munched at the hay which served as a bed.

Now a few of the visitors reckoned on sleeping upon the ground wherever darkness overtook them, and many there were who had believed it would be possible to get a shelter in the town, never dreaming that nearly every man, woman and child in upper Carolina would come to the trial, during which was to be settled the question of their individual rights.

Some of the visitors had brought with them a goodly supply of provisions, while others, more improvident, came with nothing save a hearty appetite, and these last went from party to party asking food as of right, until all appeared to be supplied.

Every house in the town was filled to overflowing, so I was told, at nine o'clock on the morning of the day before the trial was to take place. Every tree which could be seen from our camp had one or more beneath the shelter of its branches, and in order to prevent our encampment from being literally over-run, it was necessary to station fifty men as guards to keep back our friends.

Take it all in all it was such a sight as I had never seen before, and do not expect to witness again. I had not believed there were so many people in the upper Carolina as were now gathered here, and every one appeared to be feverishly eager to make certain Masters Husband and Hunter would receive a fair trial.

Sidney and I had come off from sentinel duty at sunrise, when the crowd began to pour in, and we stood literally fascinated by the scene, never so much as thinking of breakfast, until the forenoon was nearly half spent, by which time the valley between us and the town was densely packed with human beings.

"I wonder what Tryon thinks of this scene?" my comrade said musingly as he looked across the sea of heads from which came a perfect Babel of noise. "He must realize by this time that his imitation army could not make much progress against such a gathering."

"Aye, and yet it is to his advantage, if he counts on playing us false," I replied, seized by a sudden thought. "The Regulators could not enter the town whatever might be the necessity for their so doing, save at the expense of trampling hundreds beneath the feet of their horses."

"That is a danger which I had not considered," my comrade said with a long indrawing of the breath as when one brings himself to face a sudden and immediate danger. "Governor Tryon is guarded by his enemies, and yet if they turned upon him he would be swept from off the face of the earth like so much chaff before the wind."

"The disaster would be appalling if these people should take it into their heads to rise against him!" I cried, shuddering as if the work of slaughter was about to begin. "The soldiers could mow great swaths through the

crowd at every discharge of their muskets, and hundreds would be killed before the remainder found space in which to move."

"He will not dare work an injustice upon the prisoners!" Sidney cried after a long pause, and I, sickening as I realized what might happen if a sudden panic arose, or in case an act of violence was committed, drew my comrade away from contemplation of the scene, as I said:

"Why speculate as to possibilities? No disaster can come upon them during this day at least, and there is time enough in which to cross a bridge when we have arrived at it. Let us go in search of something to eat."

It was not necessary to spend very much time in this last quest; each visitor who had relatives among the Regulators brought something in the way of provisions as a treat, with the result that our larder was filled to running over, and it was almost impossible to take a dozen steps in either direction without receiving a hearty invitation "to have something from home."

Up to this time none of Sidney's relatives or mine had put in an appearance, and I was feeling decidedly disappointed, although I had no good reason for believing that my mother would come all the way from Alamance simply to learn what might be the result of Governor Tryon's investigations.

When we had satisfied our hunger, however, and were about to visit General Hamilton's headquarters in order to learn whether we would be called upon for further guard duty that day, I was rejoiced beyond words to see my mother, in company with Sidney's parents, looking here and there anxiously, disappointed at not readily finding father or myself.

It is not necessary to say that within a very few seconds I was clasped in her dear arms, and for the time being I almost forgot that such a tyrant as Tryon ever had an existence.

When I had spent an hour in her company, my father joined us, and at the same moment Sidney shouted for me to come with him—where, I did not at the instant understand.

"It is my intention to stay very near my mother this day," I said petulantly, as he went toward the river even while I was advancing. "She will be setting out for home immediately after the trials have been brought to a

close, and I have no idea of wasting even a moment which might be spent in her company."

"Give her a chance to talk with your father," Sidney said laughingly. "It appears to me as if the visitors were in some mischief down this way, and I cannot find any of the Regulators who are willing to look into the matter."

"If it was of consequence there would be no lack of men to attend to it," I said petulantly, and then I became interested immediately as I saw a throng of an hundred or more, who appeared to be deeply intent upon something in their midst.

"Most likely they are having some kind of a game," Sidney said when I came alongside; "but just before you showed yourself I fancied I heard cries for help, and it seems as if we should know the reason for the gathering. Unless we of the association have our eyes about us this day there will be rough play which may develop into a fight, as I heard General Hamilton say."

By this time we were among those of the throng who were in the outer ring, and I heard such cries as: "Drown the scoundrel!" "Be sure he don't get away till we from Chatham have put our mark on him!" "He's needed a lesson this many a day, and now is the time to give it to him!"

The crowd was so dense as each member of it pressed toward the center, that Sidney and I were forced to literally fight our way forward, and no less than ten minutes were spent in such task, during which time we plainly heard cries for help in a voice which sounded strangely familiar to me.

Then, finally, we were in the very midst of the gathering, and had before us what promised to be a tragedy which might bring shame and reproach upon us all, unless it was speedily checked.

As many men as could seize upon him, held in their grasp Sandy Wells, whose legs and arms were tied securely, and whose clothing had been torn to tatters by the rough usage he had received.

His captors were industriously engaged in kicking him when we gained a place by his side, and at every blow they called aloud the name of some citizen of the Carolinas who had been ill-treated at his hands.

"We're going to square accounts for all our neighbors, and then dump you in the river," one of the men cried vindictively, and I could see a huge rock, around which was a rope, lying near at hand to fasten on his body when the tormentors were ready to put an end to their victim.

Now it cannot be supposed that either Sidney or I had any affection for the sheriff's officer; but yet we could not stand idly by while he was being murdered.

In addition to such pity as common humanity dictated, it suddenly occurred to me that if the mob killed an officer of the law the Regulation would be accused by Governor Tryon of having committed the deed, and then would be good reason why the entire upper portion of the colony should be put under strict martial rule. If this murder was done the Sons of Liberty would be branded as assassins, and with some reason, therefore I whispered to Sidney, although without the slightest idea as to how we two might prevent the enraged men from working their will:

"We must put an end to this, and that right quickly, else will the man be killed before our eyes."

There was in his mind the same thought as had come into mine, and he turned to look me full in the face as he said, almost shouting in order that I might hear the words above the uproar:

"It may cost us our lives to interfere! I do not recognize any of these men, and they will refuse to listen."

At this moment Sandy Wells caught sight of us, and, stretching out his bound hands, cried imploringly:

"Save me, lads! For God's sake don't allow me to be murdered!"

"That we won't!" I cried, suddenly forgetting that I was running my nose into very serious danger until we could make that maddened desperate mob understand who we were, which last would require some time while the tumult was so great.

Forcing myself with a rush between two of those who had a hold upon Sandy, I seized the prisoner by the arm as I cried with the full force of my

lungs:

"You are ruining the cause of freedom when you lay violent hands upon this man! Have a care, or there'll be mischief done to more than him!"

I had hardly finished speaking before half a dozen rushed forward, one seizing me by the throat, despite all Sidney's efforts to hold him back, and crying:

"Here's another of Tryon's friends! we'll drop him into the stream to bear the tax-collector company!"

I tried in vain to speak; but the fellow had my throat as if in a vise, and it was impossible to so much as whisper.

As the mob pressed yet further I was forced downward until I lay across Sandy's body, and Sidney strove valiantly to make himself heard as he cried:

"He whom you have there is Clare Butler, one of the Regulators! I am Sidney Hubbard, also a member of the association! Do you hear? We are of the Regulation, and are trying to prevent you from bringing yet greater wrongs upon the colony!"

Before it was possible for Sidney to utter many words the men had bound me hand and foot, after the same fashion as was Sandy, and at that moment I believed, and feel certain to this day, that death was very near me. It was only a question as to whether my comrade could make himself heard before I was pitched overboard.

Already I could hear shouts from those in the rear demanding that I be "finished" before Sandy's score was paid off, and more than one threatened to take a hand in the business if it was not brought to a speedy close.

"Drown the villain! Let Tryon understand that he can't play fast and loose with us!" one of the crowd shouted, and another added:

"Waste no time over him; but let us pay our dues to the tax-collector while he is drowning."

Those in the rear were so eager to expedite matters that they flung themselves forward until the men who held me were forced to turn and defend themselves lest they be trodden under foot, and this temporary delay, I firmly believe, was all that saved my life.

Had the members of the mob not fought with each other to gain a better place in which to witness the spectacle, of a verity I would have been flung into the river.

"We are two lads who acted as escort to the deputies when they went to Brunswick!" Sidney shouted during a momentary lull in the tumult, and one of those nearest him caught the import of the words.

"Who are you?" the man cried, and Sidney replied, yelling in the fellow's ear to make certain the words were understood:

"Regulators! Members of the association! But for the lad you are threatening to drown, the deputies might not have escaped from those whom Tryon sent in pursuit of us!"

Now it was Sidney had assistance in his efforts to procure for us a hearing, for the man set about making his neighbor acquainted with the facts, and in a twinkling a third understood that they had been trying to kill their friends.

When perhaps five minutes had passed, and time moved slowly to me who was expecting each instant that some impatient one would pitch me over the river bank, those in the middle of the throng came to know what we had been trying to tell them, and in a very few seconds afterward I was released from my bonds.

"It was a close shave for you," he who had been holding me by the throat said, as I stood before him gasping for breath. "We made certain you were trying to save the tax-collector."

"That is exactly what we were doing," I replied, speaking with difficulty because my windpipe was sore from the pressure so lately put upon it.

"Then you must be friendly to Tryon, else you would not speak a good word for that villain whom we count on killing as we would a rat!"

"It must not be done!" I cried frantically, raising my voice so that those in the immediate vicinity might hear. "If you kill him it will be said that it was done by orders of the Regulation, and Tryon will have right on his side when he overruns the country with soldiers. To raise your hands against an officer of the county is to weave a noose for those brave men in prison who will look to-morrow for your assistance! Nothing would please Tryon better than to have a reasonable excuse for throwing us all into jail!"

Then, as my voice failed, Sidney took up the theme:

"How much do you harm Tryon by killing Sandy Wells? The governor cares nothing about such as he, and would gladly reward the man who, by committing murder almost in the encampment of the Regulators, should give the king's minions power over us! Turn the tax-collector over to us. We will take him to General Hamilton, who is bound to see that he be held a prisoner, and to-morrow, if Tryon and Fanning play us false, we shall have one on whom to retaliate."

"Keep him till to-morrow!" a voice cried, and straightway I began to have hope that we might finally succeed in our purpose.

Some of the mob came to understand that which we would beat into their thick skulls, and with the knowledge of what the murder of a king's officer might mean for all in that section, whether innocent or guilty, came the impulse to wash their own hands of any participation in the outrage.

For the time being they forgot their victim while discussing each with another the situation as we had shown it, and now was come the time when I could cut Sandy's bonds.

"Get to your feet and keep close behind Sidney and me," I whispered. "Do as I bid you, and it may be that we three can make our way inside the lines of the encampment."

"I'll do whatever you say," Sandy replied in the tone of one whose life has just been saved, as indeed his had, and I whispered in Sidney's ear, for the tumult had so far subsided that it was possible to speak with some degree of privacy:

"Work gradually toward the encampment while you talk. If we can attract the attention of the Regulators our point is gained."

Then I turned to argue with the man nearest me, showing him how much it would advantage us if we could have the tax-collector as our prisoner until the trial in the court had come to an end, and all the while pressing gently forward, step by step, toward our line of guards.

Sandy, knowing that his only chance for life was in keeping close to us lads, for if he had attempted to gain the village an hundred hands would have been laid upon him in anger, obeyed my commands to the letter, pressing me so hard at times that I found it difficult to keep my footing.

In this manner we succeeded, after more than an hour had passed, in approaching within twenty feet of the encampment line, and the remainder of the task was simple.

We had but to attract the attention of the guard, and in a twinkling half a dozen Regulators were on the spot.

Hurriedly I told our friends of what had been on foot, and Sandy Wells was marched directly within the lines, while those who would follow were forced by the guards to keep their distance.

The men who had come to our rescue believed it proper the prisoner should be taken to that lean-to known as "headquarters," and soon the miserable wretch was telling his story to our commander.

"Why did you show yourself such a simpleton as to venture into the midst of those whom you had harassed?" the old general asked with a laugh, for I believe he was secretly pleased at seeing the tax-collector in such a plight.

"I came across the river to speak with some friends of mine who were come ——" Sandy began, and one of our party interrupted him by saying:

"I didn't suppose you had a friend outside of Hillsborough, and but precious few in the town!"

"This was a family from Chatham whom I have known many years——"

"I venture to say you never tried to collect illegal taxes from them!"

"Let the man tell the story," General Hamilton interrupted, and Sandy continued:

"They were so near the town that I didn't think any one would dare lay hands on me; but before I was comfortably seated under their wagon half a dozen men seized me. I was dragged up the stream to that point where the bank is high and steep, and there the life was nearly kicked out of me."

Sandy concluded the story by explaining how we had chanced to go to his rescue, and what happened after we arrived at the scene.

"You two lads have done well!" the old general said emphatically. "It would have been a sorry day's work for the people in this section if yonder rascal had been killed. The one question now in my mind is, what we shall do with him. I don't want such scurvy knaves in camp."

Hearing this Sandy dropped on his knees, begging the general not to send him outside the lines of the encampment lest he be killed, and, after waiting a moment without hearing anything by way of suggestion as to what should be done with the fellow, Sidney said:

"If it please you, Master Hamilton, Clare and I will take charge of him until to-morrow. I think he will do as we command, and it's only a question of keeping him away from the visitors."

"You may take him and welcome," the general said in a tone of relief. "It may not be safe to make too great a display of the rascal even in camp, for we have among us many whom he has woefully distressed."

"Always acting under orders, sir, always under orders!" Sandy cried, yet on his knees.

"You would be more of a man if you took your orders from a different source," the general said sharply, and then motioned for us to lead him away.

"You lads have saved my life," Sandy began when we three were walking toward the lean-to Sidney and I had built, "and if I can ever do anything in return, you shall understand that I know how to be grateful."

"We've done nothing for which we expect to be rewarded," Sidney replied with a gesture of impatience. "You can't fancy that we bear you any very good-will, therefore what we did was for the good of the colony."

"Never mind why you did it; I shall never forget what I owe."

Then we were come to the lean-to, and once there the question arose as to what we should do with our charge. If he was left to wander around the encampment alone, some of the men would undoubtedly ill-treat him, and we were not disposed to waste time which should be spent in the company of our dear ones, looking after him.

It was Sandy himself who solved the question for us, by saying:

"Leave me here; I can hide beneath the brush which forms your bed, and you may be certain I shan't be such a fool as to venture out."

It was a good idea, and after he had burrowed beneath the pine branches until no trace of him could be seen, I went to seek my mother.

CHAPTER IX.

TRYON'S DEMONSTRATION.

Although we, meaning Sidney and I, had saved a man's life, it was but a trifling incident to the majority, so intense was the interest in the outcome of the trial to be held on the morrow.

The welfare of the colony, and, perhaps, the lives of hundreds of our people depended upon what would be done next day in the Hillsborough court-house, and with such a great stake at hazard, the citizens might well be excused for giving but little heed to the fact that a tax-collector had been very near death.

Those who paid any particular attention to the events which I have just set down, viewed the entire proceeding as but the first move in the game betwixt rulers and those who are ruled, and if any disquietude was felt, it arose from the fact that the more superstitious took Sandy Wells' escape from death as a token that our oppressors would win the legal battle, or contrive some way by which it might be turned into a farce.

When I rejoined my parents I found them looking decidedly uncomfortable in mind, and it was possible to guess the reason for their anxiety when mother said to me in a low tone as she clasped my hand lovingly:

"My son, in case it should not be prudent to return home at once, I feel confident you will conduct yourself as if my eyes were upon you all the time."

"Then father thinks Tryon will get the best of us to-morrow?" I cried, looking up quickly.

"It is possible that, despite all our show of force, the king's party may outwit us, or force the judges to decide in Tryon's favor," my father replied thoughtfully.

"If that should happen the people would make quick work of the traitors," I said, thinking of the scene I had just witnessed.

"No one can say when or how a gathering like this is to be swerved from its purpose. Within four and twenty hours the situation may appear entirely different to those who now cry out against the king's minions."

"But the Regulators will hold steadfast," I said quickly. "Having announced themselves as true Sons of Liberty, they cannot give up the struggle while right is on their side."

"I know not what may be the result of to-morrow's trial," my father replied gravely, "and it is of little use to speculate, as I have already been led to do by certain questions your mother asked. We shall know the outcome in due season."

"But you have intimated to her that it may be several weeks before I return home, as if believing the result will be in favor of Tryon's party," I insisted.

"I have said that it might become necessary for the Regulation to remain in session some time and of course, since you are a member, it will be needful to remain in camp."

I understood that father had indulged in more forebodings while conversing privately with mother, than he cared to have made known to me, and was not surprised thereat. It had been in my mind for many hours that the governor could and would influence the decision of the court, if he believed it might be done with safety so far as he personally was concerned, and it would not have caused me astonishment had I been told that the case was already settled without regard to any evidence which might be submitted.

The judges upon the bench would be Chief Justice Martin Howard, with Maurice Moore and Richard Henderson as his associates.

It had been said more than once that to these gentlemen Tryon's desire was of more importance than the king's written law, and even General Hamilton

was quoted as having declared that the words of the decisions in the cases which were to come up on the morrow would have been dictated by the man who made of justice a mockery.

However, when I looked around upon the vast assembly, and realized that the governor knew beyond peradventure that all these people would cry out against any additional wrongs, even to the extent of resorting to arms, I could not believe he would dare trifle with them.

Mother, observing the mood into which I had fallen, bade me forget her words, but not the substance of them, and to change the current of thought suggested that father and myself escort her around the encampment in order that she might meet our friends.

We were on the point of acceding to what was really a proposition, when one of the Regulators came up hurriedly with the word:

"The members of the association are ordered to fall into line, mounted, and fully armed."

It was a command to be obeyed on the instant, and as I ran toward my camp to make preparations, I wondered what could have happened to give color to such a warlike proceeding.

So far as I was able to see, everything appeared in much the same condition as when we had rescued Sandy, yet there could be no question but that danger threatened from some quarter.

Sidney was by my side before I arrived at the lean-to, and his first question was as to whether I knew the meaning of the command.

"I can see nothing to cause alarm, and yet General Hamilton is far too cautious to do anything unnecessarily which might provoke a conflict," I replied. "At such a time as this it needs but a spark to set all these men aflame, for after the many wrongs committed in the king's name they are like to so much tinder, and our forming into ranks will arouse them at once."

"If Sandy Wells can stir up the visitors to the point of murder, it stands our officers in hand to go slowly and with exceeding caution," Sidney said in so

grave a tone that I looked at him in surprise.

When we began saddling our horses, which had been kept within the enclosure that day lest they might be frightened away, or stolen, the collector was alarmed, and, poking his head out from under the brushpile, asked in a voice trembling with apprehension:

"What is the matter? Have any others from the sheriff's office been so reckless as to follow my example by coming across the river?"

"We don't know what is on foot," Sidney replied; "but certain it is that we are called out for duty. Take my advice and keep under cover till night, when we will make an effort to send you over to the town."

Sandy disappeared like a flash, and despite the fears in my mind I could not repress the smile which was provoked by a glimpse of his face.

The day was exceedingly warm, and his hiding-place must have been close indeed, for not a breath of air could reach him beneath all that brush. His cheeks were flushed crimson, and the perspiration oozed from every pore, only to be covered with pine needles which adhered to the skin as if glued there.

We were not long in answering the call, and once my comrade and I were on the brow of the hill overlooking the town, where the command was being formed, it was possible to understand why we had been summoned.

Across that sea of heads, just in front of the court-house, was Governor Tryon's army, drawn up as if for action. We could see that every man was fully armed, and all the officers in position, ready for immediate movement.

"What is the meaning of that display of force?" I asked in surprise, and the man nearest me replied grimly:

"That is what all of us would like to know. It may be that Tryon is only showing the visitors what he can muster in case of a riot, and yet such would be a foolish move, for it simply proves that this multitude could make short work of them. If I stood in Tryon's shoes I should hesitate about showing my hand so plainly."

"The fellow is no fool, however much of a knave he may be," one of the Regulators who had heard the reply said quickly. "I warrant those soldiers are not there to overawe the people."

"Then why have they been called out?" Sidney asked impatiently.

"In my opinion they will march across the river, or, at least, to a point mighty near this camp."

"Meaning that the governor counts on showing fight?" I asked in dismay.

"You are getting beyond me; but the question is likely to be answered very soon, for the men are in motion."

As he spoke the command wheeled into files, and advanced in order of fours directly toward us. At the head of the column rode three officers tricked out with gold lace and feathers; but we could see readily that Tryon himself was not among them.

By this time the people, who had been aroused by seeing us form in line as if to resist an attack, now perceived what was happening on the other side of the river, and straightway a murmuring sound arose which was at the same time menacing and disquieting.

I could see that the male visitors were hurrying the women and children around to the other side of the hill, as if expecting a battle was imminent, while the younger men and older lads were collecting into a solid mass.

"If yonder fellows were armed, Tryon's recruits would have a rough time of it," Sidney said with a laugh as he pointed at the throng which was edging toward the hill as if to support us.

"God forbid that such should be the case, else Hillsborough would be a shambles this night," a horseman near me said in a low tone. "If Tryon begins blood-letting to-day, he and we alike will rue it."

The soldiers advanced in something like regular order until they were come to the river bank, and there, not more than two hundred yards from where the Regulators and their horses remained like statues, they came to a halt.

The three officers who had led the column rode into the stream to a point midway across the ford, where they also halted.

"It is a parley!" I heard some one near me mutter, and then came a cry from that officer whose uniform bore the greatest amount of gold lace:

"Is there any one who professes to command your force?"

General Hamilton, attended by Master James Hunter and my father, rode to the line of the encampment, and the old Scotchman lifted his hat in answer to the question.

"Who am I addressing?" the officer asked, and then it was that I recognized him as the governor's secretary.

"That you know full well, David Edwards!" our old commander shouted; "but lest you may think I'm afraid to bring myself under the ban of your mock court, I'll repeat it. I am Ninian Bell Hamilton, a freeholder of this colony, president of that association known as the Regulation, and bending the knee to no one outside of bonny Scotland!"

What a shout went up from the people as the old gentleman thus boldly announced himself! It was as if the hill literally trembled because of the tumult, and not until a good five minutes had passed was it possible for Master Edwards to make himself heard.

Then, when the people were hoarse from much shouting, the secretary cried:

"In the name of the king I bid you disperse!"

"Wherefore?" General Hamilton asked sharply. "Is it not allowed that the people may assemble when their court of law is about to decide upon the fate of two most worthy members of this colony?"

"It is not lawful to menace the king's officers while they are in discharge of their duty."

"It is you who are menacing, my good man. We have come here in orderly fashion, and were doing our best to preserve order when you marched out in full war array."

"You are inciting the people to deeds of violence. It is hardly an hour since one of his majesty's officers was foully murdered by you who call yourselves Regulators, and I demand that those who had any hand in that cowardly deed be delivered up to his excellency's guard, whereof I am temporarily in command."

"Whatever is the rascal talking about?" I heard General Hamilton mutter; but after Master Hunter had spoken with him, he looked around as if in search of some person.

I made bold to spur my horse forward a few paces, believing I understood what the general would have, and immediately he motioned me nearer.

"Have you that rascally tax-collector in your charge, my lad?"

"Aye, sir; that is to say, he was in our camp half an hour since."

"Bring him out here, and we will see if he's the man yonder popinjay prates about so loudly."

I rode back to our lean-to without loss of time, and once there called to Sandy.

He poked his head out from amid the brush like a turtle, and because of the pine needles which covered his face the best friend he had in the world would have failed to recognize him.

"The governor's troops have sent for you," I said curtly, intent only on performing my duty in the shortest possible space of time. "You are to come with me."

"I don't dare, lad, I don't dare!" he cried in an agony of terror. "You alone amid all this throng cannot protect me!"

"There will be no throng where you are to go. The Regulators are drawn up in line, and I give you my word they will brook no interference from those who were near to doing murder."

Instead of coming out, he drew back till I could see no more than the top of his head, and I was angered because of the delay.

"The general has sent for you, and I am not willing to waste time. If you are not by my side before it is possible to count ten, I'll put a bullet into your head as you lie there!"

Although I would not have done such a thing to save my right hand, the coward must have believed I was in deadly earnest, for he crept out, shaking with fear like a man suffering from an ague fit.

"Now march by the side of my horse, holding to the stirrup," I said sharply. "It will be well so long as you obey orders; but once I see any show of running away, my bullet will make a target of your carcass."

"How could I run away while on every hand are those who would murder me?" he asked with a whine. "If the people see me I am undone."

"The governor's troops have come to conduct you to the town, and surely you may trust them!" I cried.

Sandy shook his head doubtfully; he was in that frame of mind where he trusted no one, and his terror was so great as to excite pity.

I contrived, however, by a liberal use of threats, to keep him by me until I had arrived at General Hamilton's side, and then the old Scotchman bade me advance with Sandy until I was midway between himself and the three officers.

"Is that the man you accuse us of murdering?" the general asked when I had obeyed his order, and I could see a look of surprise come over Master Edwards' face.

"Is it Sandy Wells, of the sheriff's office?" he asked; but my prisoner remained silent, whereupon I prodded him in the side, whispering as I did so:

"Speak out, man! Do you distrust your own friends?"

"I'm not certain if I have any," he said mournfully, and then so far plucked up courage as to reply in a thin, tremulous voice:

"Aye, sir, I am Sandy Wells."

"We heard that you had been murdered," Master Edwards said, much as if disappointed because such was not the fact.

"I was indeed very near death; but those who call themselves Regulators rescued me from the vile men who accuse me of having worked them harm because of obeying the sheriff's orders."

"Is that the man you declared had been murdered?" General Hamilton shouted, and after some delay Master Edwards replied:

"That is the man."

"Send him forward, lad, and let those brave gentlemen take the fellow without delay to his excellency, who will be in distress of mind until after having assured himself that he is in the land of the living."

Master Edwards wheeled about as if to join his force, and General Hamilton shouted:

"Turn back, David Edwards, and take him who has caused you so much trouble! Why do you not grasp the gallant gentleman's hand?"

"Come back, please, dear Master Edwards!" Sandy shouted. "Else I shall be killed, for the Regulators evidently will have no more of me!"

At this pathetic appeal the people burst into a roar of laughter which was like unto the shrieking of a hurricane, and not until he had crossed to the other side of the river did Master Edwards turn his head.

Then his cheeks were flaming red as with shame, and I fearing lest we might let slip this opportunity of safely delivering our prisoner, said to Sandy:

"Run forward, man, now that you have the opportunity! It is not certain Sidney and I can smuggle you into the town, and you may come to grief on this side the river, no matter how close you hide yourself."

The tax-collector hesitated only an instant, and then seeing that there were none between him and the line of red-coated soldiers, took to his heels, crying at the full force of his lungs:

"Wait for me, Master Edwards! For the love of heaven don't leave me here to be murdered, dear Master Edwards!"

"Wait for the lost sheep which we have restored to you, Master Secretary!" General Hamilton shouted, and the people were once more convulsed with laughter.

They roared and shrieked in mirth until Sandy was by the side of the angry secretary, and jeered both the tax-collector and the soldiers until the governor's guard fairly ran toward the court-house.

Meanwhile I had ridden back to my place in the line, and, arriving there, heard one horseman say to his neighbor:

"There will be no further thought of foul play, now that the people are amused; but if those two lads had not rescued the tax-collector when he was nigh to death, we should have a pretty hornets' nest about our ears by this time."

It filled me with pride as I realized that Sidney and I had done so much for the cause, and I could well understand how important was our work of mercy, by glancing at the governor's troops.

Had Sandy Wells been killed, as he would have been but for us two lads, then had Tryon such a weapon against us as must have doomed the Regulation to everlasting shame and contempt.

We held our line until the governor's soldiers disappeared behind the court-house, and then the command was given to break ranks, after which General Hamilton rode up to Sidney and me, saying as he faced about to check our forward movement:

"I thank you, lads, in the name of the Regulation, for having made it possible for us to throw ridicule upon the enemy. May you ride long in the ranks of the Sons of Liberty!"

I was as proud as any turkey cock at being publicly praised by one of the foremost men in the colony, and when we were alone in our lean-to Sidney said:

"I reckon we ought to be well satisfied with ourselves. There's many a one in this company who would give half he possessed to win such words as we received from the general."

"But for you Sandy would have been killed, and the governor had just cause to imprison every Regulator he could come at. I have taken my share of the praise, but without having earned it."

"I say you're entitled to as much as myself," the lad cried hotly. "I had no idea anything very serious was on foot when I dragged you from your mother, and once we were in the crowd it was impossible to do other than exactly as we did."

Sidney's generous heart prompted him to give me a full share in the work when I had but followed him, and during the remainder of that day I took good care to make every one who spoke of the matter understand exactly the position of affairs.

When my horse had been tethered I sought out mother once more, and she sang my praises till my cheeks were red with something very like shame, for she would not listen to the explanations I made; but insisted on calling me "a brave lad" who was an honor to his parents.

A stranger who had come suddenly upon us during the afternoon of this day would have found it difficult to believe that we were ready for, and expecting, mischief on the morrow.

The scene on the hill and nearabout the river was rather one of peace and good-will. Neighbors and friends seemed bent on a holiday, with no thought of care, and yet their merry-making was carried on between two small armies, each prepared to meet the other in deadly conflict if provocation was given.

It was a scene of gaiety which might be entirely changed by the morrow, and then instead of smiles one could expect to see tears; instead of laughter, to hear groans of agony, unless God should put it in the heart of William Tryon to deal justly and lawfully by those over whom the king had set him.

It was with some such thoughts as these that I looked down from the brow of the hill upon the joyous throng, and my heart grew sick with

apprehension as I speculated upon that which the morrow's sun might bring to light.

CHAPTER X.

THE LONG NIGHT.

The excitement of the people appeared to increase rather than diminish as the night approached.

The appearance of the king's soldiers had disturbed them in their merry-making, and brought to their minds the possibilities of the morrow. A view of the two armed bodies, drawn up one against the other, told more clearly of the danger which threatened than words could have done, and the cautious began to ask if it would not be well to send the women and children away.

Dull-witted though I am, I could not fail to observe the people casting furtive glances toward the town, as if fearing to see issuing from it those who would work some injury in the name of the king.

The sounds of laughter were replaced by deep mutterings, and instead of lounging here or there with their families, the men and boys moved restlessly from one point to another, watching jealously every motion of the Regulators.

It was much as if we were all walking to and fro in a magazine of powder, each with a lighted match in his hand, and that the explosion was a foregone conclusion, the only question being as to exactly when it would occur.

I understood that others besides myself took much the same view of the situation, when the officers of the Regulation gave orders concerning that which should be done during the night.

All the company were ordered to go on duty at sunset, remaining under arms until morning, ready for any sudden emergency. The men were

especially commanded not to stray away from the limits of the encampment, and forty were told off to do guard duty when ten could have patrolled the camp thoroughly under ordinary circumstances.

All these preparations told that our leaders were anxious regarding the possibility of treachery on the part of the royalists, which was not to be wondered at in view of all that had happened.

When it was reported in Hillsborough that Sandy Wells had been murdered, Tryon and Fanning saw an opportunity of setting us down before the world at large as murderers and knaves who should, in justice to a law-abiding community, be committed to jail.

When they learned that we had kept our hands clean, that we had done our best to preserve the peace, it might well be expected some other plan to ruin us would be tried, and General Hamilton was far too wise a man to neglect any opportunity for additional defense.

It was also evident that the people generally were of the belief that the royalists would attempt to do us a mischief, and, as I have said, they moved around restlessly, watching keenly all that was taking place on the opposite side of the river.

Had the king's troops come toward the ford a second time, I believe of a verity that trouble would have ensued even though the soldiers advanced with peaceful intent.

Sidney and I were stationed as sentinels at that part of the line which overlooked the town, with orders to observe closely all that might be taking place on the opposite side of the river, and to report immediately at headquarters any unusual movement, either on the part of the royalists or visitors.

Every inch of the line which marked the bounds of the encampment was constantly traversed that night. The guards were stationed twenty feet apart, and it was expressly commanded that each man should advance until he met the sentinel on his right, when he was to wheel about and proceed in the opposite direction until meeting the Regulators on his left, continuing this throughout the hours of darkness.

The numerous fires kindled by the visitors with which to cook supper, or keep off the insects, served to illumine the scene, and on the opposite side of the river one could see the streets closely packed with human beings, who counted to spend the night in the open air.

It was eight o'clock in the evening, and I was yet doing guard duty, when a sudden outburst of noise from near about the court-house startled us, for it seemed to be the signal of that uprising or outbreak which we had been fearing might occur before morning.

At first it was no more than angry cries and yelps of pain; but these increased steadily until it seemed as if a riot was well under way.

There was no need of carrying any information to the headquarters' shanty. General Hamilton was on the guard line very near to my post, within two minutes after the first cries were heard, and he remained there in a listening attitude, turning his head this way and that like the dog who seeks to find a lost trail.

A dozen or more of the chief men were with him, and I heard one of them ask anxiously:

"Can you guess why trouble should have begun at this time? I believed all the hot heads among our friends were on this side of the river."

"So they are, else would the brawl have been fanned into a battle long before this. Master Hunter," he cried sharply to the deputy, "form your men into line at the river bank to prevent any from leaving the encampment, and lose no time in doing so."

At the call for the guards to advance into line I stepped forward; but stopped very suddenly as the general seized me by the collar of my shirt.

"You and the comrade who aided in saving Sandy Wells' life are to wait here that I may have a moment's speech with you." Then, raising his voice, he cried, "Hunter, give the word as soon as you have a force at the riverbank sufficient to hold this throng in check!"

"The entire Regulation will be none too many for such service as that."

"Station the guards first, and then call out the remainder of the force. It stands us in hand to hold all on this side the river, and also keep peace among them."

I was at some little trouble to find Sidney, he having gone to the further end of the line when the word was given to "fall in"; but I succeeded in withdrawing him from the ranks just as the men went forward into position at the river bank.

When we two lads stood before him, the general said in a low tone as if to prevent any other from hearing the discourse:

"It is in my mind that yonder riot has been begun by orders of Tryon or Fanning, that they may have some excuse for filling the jail before morning, as well as to cast discredit upon the Regulation. You lads have shown yourselves quick-witted, and I have no doubt that you will be able to hold your own in case Tryon and his crew are provoking a brawl. Cross the river at once; mingle with those who are taking part in the disturbance, and learn all you can regarding the beginning of the trouble."

"Our lines are in position!" Master Hunter cried, and the general replied:

"Very well. Hold the people here, and allow none to cross save the two who may speedily come with my permission to do as they please."

We lads waited twenty seconds or more to learn if Master Hamilton had any further commands for us, and since he did not speak, Sidney plucked me by the sleeve as a signal that we should set out.

The general was looking at us when we moved off, therefore did I know that we had received all the orders he had to give.

On coming to the water's edge we walked up the stream until finding Master Hunter, and then, in a low tone, explained what we had been ordered to do.

He immediately directed the men to give us passage, and hurriedly we forded the stream, bending our steps toward the court-house after having gained the opposite bank.

It was not a simple matter to make our way through the crowded street. By this time nearly all the people who had encamped in the open air were astir, and every man and boy was pressing eagerly forward to that point from whence came the outcries.

By dint of using our elbows sharply, and forcing aside without ceremony those who barred the way, we succeeded, at the risk of embroiling ourselves in private quarrels, in gaining a position near the center of the disturbance, when it was possible to perceive at a glance that General Hamilton was correct in his surmises.

The visitors were not raising their hands against the soldiers save when great provocation was given; but here and there I could see those who were in some way connected with the government, and among them Sandy Wells, making their way from point to point, dealing blows and uttering insults well calculated to raise a disturbance.

Whenever one of the visitors attempted to defend himself, or would have punished the insulter, the minions of Tryon raised a great hue and cry to bring the soldiers to that point, after which they slipped off to create a disturbance at some other point.

But for the fact that the visitors had been warned against giving the governor an opportunity for complaint, a riot would have been begun within a very few minutes, and with such a degree of violence that it might have increased to a regular battle; but as it was, our people behaved with remarkable moderation.

I believed that we might do much good by advice, and suggested to Sidney that we go hastily around among the throng, explaining what was the evident purpose of the governor's minions, at the same time advising every one to cross the river immediately, lest by their behavior Tryon should have some color of a reason for postponing the cases which had been set down for a hearing next day.

He was of my opinion, and without delay we began our work, hurrying here or there with such good effect that the people began to fall back before the mischief breeders, instead of pressing forward.

This was not at all to the liking of those who desired to provoke a breach of the peace, and they redoubled their efforts, offering yet greater indignities to the unresisting citizens.

Foremost among these was Sandy Wells, and I made it my business to gain a position close by his side, when I said, holding him by the arm until the words had been uttered:

"Sidney Hubbard and I saved your life this day, as you well know. It can readily be seen what you are trying to do, and unless you cease your efforts I will take good care before the sun sets to-morrow, to inflame every man's mind against you. That fate which was escaped this afternoon shall overtake you within the next four and twenty hours, even though Tryon gives you shelter in his own quarters."

Sandy was a rank coward, as I well knew, and when my hold of his sleeve was relaxed he slunk away among the soldiers, nor did I see him again that night.

During more than an hour Sidney and I continued our efforts, sometimes threatened by the soldiers or Tryon's emissaries, and then the throng had so far dispersed that there were not enough hot-heads left to make any very great disturbance, even though they felt disposed to resist the troops.

"Now the enemies of the colony can do no more than foment an ordinary brawl, which is not what Tryon most desires, and I believe our work here is done in accordance with the general's orders," Sidney said to me as we met among the foremost of the small crowd, within a short distance of where the uniformed men were drawn up in line. "If we are recognized you may be certain those fellows will use every effort to lodge us in jail, and it is wise to beat a retreat while we may."

I was of much the same opinion, and, after gathering half a dozen of the wilder spirits in our wake, we set off toward the ford, hooted and jeered at by those who had most signally failed in the task assigned them.

The sudden change in the situation of affairs was truly surprising. When we two lads first crossed the river we found the streets literally choked with men, women and children who counted on remaining there with the hope of

gaining admittance to the court-house as soon as the day dawned; but now it was as if the earth had opened and swallowed all these people.

We did not meet with twenty as we went toward the ford; they had wisely crossed the river, and, once on the opposite side, the Regulators would keep them quiet.

We had checked the governor's scheme, not through force of arms, but simply by removing those who might unwittingly have aided him in his unlawful efforts.

Once the visitors were on that side of the river held by the Regulators, they were unable to go back; but all who called themselves Sons of Liberty would be forced to remain on duty during the entire night in order to hold in check those who counted themselves friendly to the cause.

As a matter of course Sidney and I reported to General Hamilton as soon as possible, and when we had concluded our story the old Scotchman said in a tone of satisfaction:

"I knew full well I could depend upon you lads to do whatsoever was wise. By sending the people over here you have accomplished a good work, and once again is Tryon defeated by your unaided efforts. The Regulation has good reason to count you as valuable members, and when the time comes that this colony can reward the services of those who have aided her, as come it will in due season, I hope I may be alive to make certain you are not neglected."

According to my way of thinking we were already rewarded by such words as these, and but for the darkness Master Hamilton would have seen my cheeks crimsoned with shame because he had given us far more than we deserved.

It was but natural that there should be considerable confusion on our side of the river; all who had lately changed their camping places were seeking for new quarters, and already the slope of the hill outside the lines of our encampment was literally covered with human beings.

The late comers were compelled to find a resting-place on the other side of the elevation, and thus were our horsemen literally hemmed in. If it should

become necessary to make a quick movement, it would require some time to clear the ground in order to avoid trampling the visitors beneath the hoofs of our horses.

Every member of the Regulation was now doing guard duty, and as soon as Sidney and I had concluded our interview with the general, we joined our comrades, when the weary work of pacing to and fro was resumed.

At the river front remained a line of Regulators who allowed any person to come over; but refused passage to such as would have gone back, and thus we held the key to the situation so far as keeping the peace was concerned.

Until this last move of Governor Tryon's I think the majority of our people believed the king's officers would not dare do other than give the prisoners a fair trial, although perhaps no one was convinced that it was more than a farce to bring Fanning before the bar.

Now, however, when we had good proof as to the lengths Tryon was ready to go, and could see plainly that he was using every effort to place the Regulation in a false light before the world, there was much doubt as to the outcome of the cases in court.

The Regulators on duty discussed the matter among themselves as if it was a foregone conclusion that might, not right, would rule, and such of the visitors as I heard conversing were loud in their declarations that justice must prevail even though it should be purchased by force.

"There is likely to be hot times to-morrow," Sidney said to me as we halted an instant when everything seemed peaceful. "If we are brought face to face with Tryon's army, much blood will be shed on both sides before the question is settled definitely."

"But that blood will cement the colonies in such manner that oppression in one will be felt by all the others. We shall have effected a union, and what are our lives in comparison to such a consummation?" a voice said, and, turning, I saw Master James Hunter, who had come up in time to overhear our conversation.

"Then you believe we shall fight a battle to-morrow, sir?" I made bold to say, and he replied with a sigh:

"Of that I am not so certain. If we do, the colonies will declare for freedom against the king's rule. If peace is preserved throughout the morrow, then must greater wrongs be endured in order to provoke the people into demanding their full rights."

Having said this the deputy continued on his rounds, and we two lads no longer had any desire to discuss the situation, for it had become so grave, according to Master Hunter, that a bloody battle between us and those on the opposite side of the river seemed suddenly to be really desirable.

During the remainder of that long night we lads did our full share of guard duty, I dwelling upon the possibilities until the old timorousness came upon me, and I was almost a coward.

It seemed to me that death would come within a few hours, and I was already marked out as one of his victims. I found myself wondering if I could march up to the guns of the enemy without betraying the cowardice in my heart, and otherwise spending the time in a very foolish fashion for one who must play the part of soldier.

Never had the dawning of a new day been so much of a relief to me as then. The gray light of morning revealed the multitude sleeping peacefully, and on the opposite bank not even a wreath of smoke showed above the chimney-tops.

The scene brought relief to me, and by the time the sun rose I was able to keep down the fear in my heart, so that no one might suspect that I was in very fact a coward.

It was a wonderful scene when the visitors awakened to life, and began making ready for the coming events which were of concern to all dwelling in America. This day's sun would see the dawn of freedom, or a postponement of that spirit which must in the near future descend upon our people.

The officers of the Regulation went from camp to camp, cautioning the visitors against making any demonstration before the trials at the court-house were brought to a close, and at the ford a group of our best citizens was performing the same task.

If the citizens of upper Carolina made any error on this day it would not be from lack of advice from those who were in a position to know what might be best for the colony.

The one aim of the people was to reach the court-house in order to gain admission as spectators, and although the building would not accommodate one in every hundred who were eager to enter, the thousands flocked thither, jostling and pushing each other in order to get a position among the foremost.

General Hamilton did all a man could to persuade them into remaining at a respectful distance, pointing out the uselessness of expecting to gain admittance; but yet they made their way into the town until our encampment was deserted by all save the better informed—say five hundred men, women and children.

We of the Regulators were ordered to get breakfast as best we might, and then fall into the ranks again, for we were to remain under arms the entire day lest our force might be needed in defense of the citizens.

"Are we like to be called upon for any serious service, sir?" I asked of Master Hunter, who chanced to pass where I was partaking of the morning meal with my parents, and he replied:

"It is hardly probable. Tryon will not attempt any more tricks, now that the time of opening court is so near at hand, and I believe our people will keep the peace, at least until after the decision of the judges is made known."

Then the deputy called my father aside, and the two held such long and earnest converse that I believed our officers were of the opinion the trial would be no more than a farce.

This idea was strengthened in my mind when mother showed such tender affection as I would leave her to take my place in the line which was being formed.

She bade me farewell as if believing we might never meet again, and despite all her efforts the tears came as she spoke.

I was not heartened by this evidence of fear, as may well be imagined, and hurried away to feed my horse in order that I might hide the evidences of my own emotion.

Half an hour later we of the Regulation were in something approaching a military formation, with our horses tethered just in the rear where we might be able to get at them without loss of time, and then came the most trying moment of all-waiting for Governor Tryon to show how far he dared to go in opposition to the law and the rights of the people.

The square around the court-house was black with citizens awaiting an opportunity to enter the building. In the midst of this mass could be seen two files of soldiers standing shoulder to shoulder in order to keep open a passage for the officers and witnesses, and a short distance away were the governor's troops under arms in case it should please our oppressor to order an attack upon the helpless throng.

CHAPTER XI.

THE TRIAL.

Now the trial was so near at hand—when in a few hours we should know beyond peradventure to what lengths Tryon would go in his villainy towards the people of the Carolinas we no longer discussed the possibilities of the near future.

If Masters Husband and William Hunter were set free, as indeed could be the only just verdict of the judges, and if Fanning was convicted of having extorted money from the people without even the color of the law to sustain him, then would our colony be peaceful; but I question if one among all those horsemen who awaited the signal to disperse quietly or to ride to their deaths, believed that justice would triumph.

Even two lads like Sidney and myself understood that the governor would deny us our rights, and the thoughts of what might come to those we loved before the sun had disappeared behind the hills, rendered us dumb.

I did not see any of the gentlemen conversing. I threw myself at full length on the grass close by Sidney's side, and would hardly have heard him had he spoken.

My eyes were fixed upon the court-house, surrounded as it was by that vast throng of people, and I noted every movement, however slight.

When the judges and the officers of the court marched through the lane formed by the weapons of the soldiers, I saw them plainly, and could almost imagine that the voice of the sheriff rang in my ears as he uttered the words which opened the sitting.

My father and four other Regulators had gone into town in order to give evidence against Fanning, and to combat the charge of "riotous conduct" which had been preferred against our friends.

All the other gentlemen of our company remained on the hillside, save Master Hamilton, who stood on the highest point in the encampment where he might see any signal which our people should give.

The forenoon passed, and I remained like one in a stupor. The noon hour went by, and I had no sensation of hunger. Some of our companions ate; but they were the ones known to be lukewarm to the cause.

As I came afterward to know, it was near about two o'clock in the afternoon when a low hoarse murmur which was like unto nothing save the growl of an enraged beast sounded on our ears. It rose louder and louder, gathering in angry menace each instant, until it was of such volume, that one could hardly have heard a peal of thunder above it, and then we knew full well that Governor Tryon had trampled all the laws under his foot—that it was our duty to become rebels in fact, by rushing upon the villainous representative of the king and cutting him down.

Then came one from the town running at full speed, and when having come near enough to make his voice heard, he shouted:

"Master Husband has been acquitted; but both William and James Hunter and Master Hamilton have been adjudged guilty, and are fined one thousand pounds each, in addition to imprisonment for six months!"

"But James Hunter and Master Hamilton had not been even charged with crime!" one of the Regulators cried, doubting the truth of the news.

"Very true; yet they were tried just the same. Master James Hunter was taken into custody as he entered the court-room to give evidence against Fanning, and a warrant is already issued for Master Hamilton," the messenger added.

Then Sidney shouted:

"What about Fanning? Has he been acquitted?"

"It is much the same. He was tried on seven counts for extortion, found guilty, and sentenced to pay one penny on each indictment. Seven pence to be paid by the rascally lawyer, and one thousand pounds each by the Hunters and Master Hamilton!"

"And the people?" Master Howell demanded. "What do they say?"

"You can hear for yourself," the man replied, forced to shout even though he stood close beside us by this time, because of the tumult in the vicinity of the court-house. "Before the trial had come to an end the building was filled with soldiers, while the remainder of the governor's force encircled it. If a fight is begun our friends will be shot down by hundreds, with no opportunity to strike a blow save with their bare fists."

Without waiting for the word of command every Regulator mounted his horse, and all of us waited for the signal from our commander, who had drawn near to hear the report made by the messenger.

He stood with his chin on his breast like one stunned, neither looking up nor speaking, while the cries from the opposite side of the river increased in fury each instant.

"Are we to sit here while our friends are imprisoned without cause?" a horseman near me asked angrily, and Master Hamilton raised his head as if to make reply, when some one shouted:

"Here comes Master Husband! They have set him free!"

The man who had been in jail nearly six months for having dared to say that Tryon had no authority to levy a tax to build himself a palace, could be seen walking rapidly toward the ford, and all understood that nothing would be done by us until he arrived.

Master Hamilton rode down to meet him, and the two remained in private converse five minutes or more before coming up to where we awaited them with the utmost impatience.

Then it was that our commander spoke:

"Gentlemen, it is our duty to prevent the people of upper Carolina from beginning a conflict with the king's troops. We must not permit ourselves to

commit any act of violence against the governor until after due deliberation, for all which we do now is the same as if we moved against the king. By Master Husband's advice, we shall ride into town, and do our best to prevent a conflict which would cost the lives of hundreds of our friends and neighbors. I beseech you that, however great the provocation, all this company keep well together in military formation, and obey every order to the letter. Later, when some of those who are absent can take part in our deliberations as is their right, we will settle upon a course of action."

Some one offered Master Husband a horse, on which he rode by the side of our leader as we crossed the river and went from thence to the court-house, or, I should say, as near as it was possible to advance.

The vast throng were inflamed by anger. They shouted threats against the soldiers, who were evidently alarmed by the demonstration, and had General Hamilton given the signal to make an attack, I believe of a verity that every man, whether armed or not, would have joined the fray.

At seeing us ride up the citizens shouted yet more loudly; but when we halted, they turned about to learn the reason of our delay in giving Tryon a lesson, and Master Hamilton cried out to them, speaking so loudly that every word must have been heard by those who yet remained in the court-room.

"We, the Regulation, beg that you will not put your lives in jeopardy while unprepared for battle. If you will disperse, each sending his women and children home out of danger, the Regulators will meet you in solemn deliberation this evening when our plan of action shall be decided upon."

"And are we to let Tryon and Fanning sneak away?" one of the throng asked angrily.

"Not so, my friend. While the Regulators are under arms you know full well that no one can leave Hillsborough without our permission. The cause will not suffer by this delay, and we shall be in better position to demand that which you have failed of receiving this day—justice. Send your families home, collect your weapons, and join us who have sworn to drive the oppressors out of upper Carolina."

If Tryon was in the court-room, as many of the throng declared, then he had heard every word spoken by our commander, and I venture to say he felt ill at ease, for it was plain to be seen that if the Regulators should be reinforced by these men who were raising their voices against the farce of a trial, he stood in great danger of being made prisoner.

He might use the court-house as a fortification, and could hold it two or three days, perhaps; but we would take good care that he did not send any messengers to Brunswick or Newberne, and there could be but one ending to the affair.

The people seemed to understand all this, for straightway they began to move toward the river, followed by their families, and in less than half an hour few save the Regulators remained around the building.

The soldiers who had been stationed outside now crowded inside the court-house, never waiting for orders to move, and we were left like jailers who are satisfied with holding their prisoners in closed cells.

Master Hamilton told off a dozen men for sentinels at each side of the building, and as many more in the rear, with orders to shoot down any who attempted to escape from the windows, while the main portion of our force remained thirty yards or more from the front doors.

It looked much as if an attack was to be made upon the king's representatives despite all Master Hamilton had said regarding the advisability of waiting for reflection and concerted plans.

Our commander remained by himself, midway between the front rank and the building, as if expecting that which occurred before we had been in position five minutes.

Then it was that David Edwards, the governor's secretary, appeared at one of the windows, and cried warningly:

"In the name of his excellency, Governor William Tryon, I bid ye disperse! Those who remain do so under the pain and penalty of being adjudged in rebellion against his most gracious majesty."

"We are in rebellion against tyranny and injustice," Master Hamilton replied in a loud voice which had in it no tone of menace. "It is our purpose to remain here until the wrong committed this day has been righted, and he who ventures out from among you in the meantime will do so at the expense of his life."

"But this is neither more nor less than armed rebellion against the king," Edwards cried as if suddenly understanding that we were in a position to enforce our demand.

"I repeat that we are not here against the king, but to uphold the laws which Tryon and his minions have trampled in the dust. We of the Regulators number five hundred men; within two hours we shall have as many more in our ranks, and it does not need much calculation on your part to prove that the power is with us, as the rebellion against his majesty is with you."

Master Edwards disappeared, and I was expecting each moment that the soldiers within the building would open fire upon us, when my father appeared at the door, holding up his hand to attract attention.

"It is William Butler, one of the Regulators!" Master Hamilton shouted for the benefit of those who might not have recognized my father. "Let him come out!"

Our commander advanced to my father's side, and the two held long converse, after which both came forward toward our troop.

Then appeared once more at the window, Master Edwards, who cried out:

"Will you allow that I hold a conference with you in private?"

"Meaning in your own name, or that of the governor?" Master Hamilton asked sharply.

"I would bring to you a message from his excellency."

"You may come," our commander said after whispering with my father; "but I shall repeat at my pleasure, to these gentlemen, all which you may say."

Again the secretary disappeared, to show himself at the door a moment later, and General Hamilton remained motionless, forcing Master Edwards to approach him.

The two gentlemen saluted, exchanged a few words, and then half a dozen of our leaders were summoned to what appeared to be a council of war participated in by representatives of both armies.

Much time was spent by these gentlemen in consultation; but, finally, it appeared as if some plan had been arranged to the satisfaction of all. Master Edwards returned to the court-house; our leaders fell back into line, where we remained half an hour or more wondering what was to be the upshot of the matter, when suddenly Masters James and William Hunter, and three other citizens who had been held prisoners, came out of the door.

While one might have counted five we were held speechless with astonishment, and then our people began to cheer, for it seemed at the moment as if we had in fact beaten the governor in a game of his own making.

Before the shouts died away the command was given for the sentinels to come in; the troop was formed in fours, and we rode away, heading for the encampment on the hill.

Our leaders were grave, probably because they alone knew at what price this temporary triumph had been purchased; but the remainder of the party were wild with joy, for we imagined ourselves victors.

Before fording the river we were joined by nearly an hundred mounted men who had obeyed Master Hamilton's instructions to take their families home and return armed, and throughout the night we received accessions to our force until the Regulators were more than a thousand strong.

It can well be supposed that all the company were burning with curiosity to learn more concerning the bargain which had resulted in the release of the prisoners; but our commander gave no sign of being in haste to explain matters.

"The Regulation will meet to-night, and the whole matter shall be laid before it," he said gravely when Master Howell, bolder than the others,

ventured to ask for particulars.

Sidney and I, when we were occupying our old lean-to once more, speculated earnestly as to what the people had, through Master Hamilton, promised as the price of the prisoners' release; but we had made little headway when Master James Hunter, the deputy, approached our shelter on his way across the encampment.

After our experience in his company he seemed rather like a comrade than a mere acquaintance, and Sidney did not hesitate about asking the questions we were so eager to have answered.

"As yet we have really made no bargain, lads," Master Hunter said as he seated himself in a friendly way near us. "The governor promised, for the sole purpose of averting bloodshed, so he declared, to release those of us who were sentenced to imprisonment and fine, in consideration of the Regulators returning to camp, and keeping with them such as might arrive bent on rebellious acts, until to-morrow morning. Then, so the secretary stated, some proposal looking to peace will be made."

"It seems much as if Tryon was backing down from the high horse he has been riding in the Carolinas," Sidney said with a laugh.

"He had no choice in this case," Master Hunter replied. "The Regulators held him like a rat in a trap, and if a battle had ensued his own precious body would have been endangered. My only fear is that he counts, by such delay, on getting the best of us in some way."

"We shall be stronger to-morrow morning than we are now," I ventured to suggest. "The people are coming in rapidly, and soon we shall outnumber his force five to one."

"All of which is very true, and because he must have understood that such would be the case, I am the more suspicious of his honesty in this matter."

Then it was I dared ask Master Hunter to tell us all that had occurred in the court-house, and he began by saying:

"There is very little to the story, lad, for unless I'm much mistaken, Tryon, Edwards and Fanning had the program arranged last night. When I entered

the room the sheriff made me prisoner without so much as producing a warrant. Not until late in the forenoon were the others brought in, and then the story of our misdeeds was quickly told by men like Sandy Wells. Our defense was cut down in every way; we were not allowed to call our witnesses, and checked when we would have argued our case. There was no verdict given when the trial closed. The case of Fanning was called, and of all the witnesses we had brought, only two were allowed to give in their testimony. Fanning argued that he was forced to charge extortionate fees in order to gain a livelihood; that it was generally understood court officers should demand sufficient to provide them with a fair salary, and then pleaded guilty as to the indictments so far as the facts were concerned, but insisted he was innocent according to the spirit of the law."

"I suppose *he* was allowed ample time in which to argue his case," Sidney interrupted.

"As to that you may be certain; it was only the witnesses appearing against him who were admonished not to waste the court's time. Then we were sentenced, and after ten minutes or more the judges had agreed that Fanning should pay seven pence for the crime of extorting hundreds of pounds from the poor. We would have been sent into the prison at once but for the fact of your arrival. It could readily be seen that Tryon was really alarmed by the cries of those outside, and when the Regulators arrived he went into the next room with the judges, Fanning and Edwards. The rest you know as well as I. We who sat in the dock were ordered to follow the secretary, and, to our great surprise, were set free."

"Then we are to remain here quietly until tomorrow morning?" Sidney asked.

"That is the proposition."

"And what will the governor be doing meanwhile?"

"I cannot say. It is possible he has troops on the way from Brunswick or Newberne, as Master Husband suggests; but I am not of the same opinion. He would most certainly have brought to Hillsborough all the force that could be raised, before the trial began, for it must be humiliating to be obliged to make any terms with us."

"He counts on some treachery I'll be bound!" Sidney exclaimed, and Master Hunter said with a sigh:

"I have the same fear, lad. To release us after we had been sentenced was a harder task for him than if he had set Husband and my brother free last week. We shall find that he can play double, while our people hold so strictly to the truth that they are not willing to believe a lickspittle like the governor would stoop to tell a deliberate lie."

Having said this Master Hunter went on his way, and we lads could do no more than speculate upon the probability of our having put Tryon in such a trap that he would be forced to deal honestly with us.

Late that evening, when there were not less than one hundred armed men in the encampment, the Regulation was called to order, and Master Hamilton opened the meeting by telling the same story we two lads had previously heard from Master Hunter. He concluded by saying:

"Believing that humanity demanded us to avert bloodshed at any price short of honor, the officers of the Regulation decided on a truce of twenty hours in consideration of the freedom of the prisoners. We ask you to hold the promise we made as if each of you had personally given his word to it. Tomorrow we shall have another proposition from the governor, and then will be the time when we must decide as to our future course."

Many gentlemen spoke on the same subject, all agreeing that we could do no less than adhere strictly to the promise our commander had given, and then the meeting was dissolved.

Having had no sleep on the previous night, I was right glad to crawl into the bed of pine branches which Sidney and I called our own, and not until the sun showed his face next morning did I awaken.

Because a truce had been declared, there was no need of standing guard, and all our company enjoyed a full night's rest.

As soon as breakfast had been eaten we lounged around the camp, remaining where we could overlook the town, and waited for some word from the governor, speculating meanwhile as to what proposition it might please him to make.

Noon came, and no messenger appeared.

At one o'clock my father was sent across the river to learn why we had not heard from Tryon, and he returned with a reply that we "would be well satisfied in a few hours."

This message was given by a servant at the governor's headquarters; my father had seen neither the governor, his secretary, nor Fanning.

There was no little grumbling because we were thus kept waiting when the truce was for twenty hours only; but never a man dreamed of breaking his word. Such perfidy as that was left for his excellency, William Tryon, he who claimed to be the king's honorable representative.

My mother had gone home; she went away the afternoon previous when the women and children were asked to leave the vicinity, and as we waited for that message which was so long delayed, I was truly thankful she had not remained, for it came into my mind that there would be a troublous, rather than a peaceful, ending.

The sun was no more than half an hour high in the heavens when we saw one who appeared to be a servant, come out of the governor's house and walk swiftly toward the ford.

It did not seem possible Tryon would send other than one of his officers on a mission to the Regulation, and yet I believed that now was come the time when we were to hear from his excellency.

The man halted at the opposite bank of the river, unfolded a huge document, and began reading that which told us to what a depth of infamy William Tryon was willing to descend in order to carry his point.

CHAPTER XII.

THE PROCLAMATION.

It can well be understood with what eagerness we listened to the messenger as he read from the paper in a loud tone; but he remained at such a distance that I found it impossible to catch every word, although the general purport was made sufficiently plain.

The fellow, whom we afterward came to know was one of the clerks from the sheriff's office, regaled us with a high-sounding proclamation from the governor, in which his excellency graciously pardoned all the Regulators save thirteen, whose names were twice repeated in order that there should be no mistake.

I set them down here that the world may know who were the patriots of upper Carolina in the opinion of William Tryon:

"James Hunter, Ninian Bell Hamilton, Peter Craven, Isaack Jackson, Herman Husband, Matthew Hamilton, William Payne, Malichi Tyke, William Moffat, Christopher Nation, Solomon Goff, John O'Neil, and Rednap Howell."

When the clerk ceased reading and marched back from whence he came, we on the hillside looked at each other in silent amazement while one might have counted twenty, and then on the instant every tongue was loosened.

All that had been gained by the truce was an act of outlawry against our best men, and Fanning was still the trusted servant of the king!

The one thought in the minds of all was to seize the person of the villain who held a commission from the crown as governor of the Carolinas, and a thousand voices were crying out against delay.

The officers of the Regulation held a brief consultation, and then came that command which all expected and demanded.

"To horse, gentlemen! The moment has arrived when we must declare ourselves against the king, unless he redresses our wrongs by recalling such officials as have misruled the colony!" General Hamilton cried in a loud tone, and he had no more than concluded before every Regulator was in the saddle burning to avenge the insult offered by Tryon.

The earth literally trembled beneath the hoofs of a thousand horses as we rode at full speed to the ford, then across the river, and on to the governor's residence.

The royal "army" remained on guard until we were come to within an hundred yards, and then they scattered like chaff before the wind, running in every direction, crying for quarter.

No attention was given to the cowards. Tryon, Fanning and Edwards were the men we counted on teaching a lesson, and the dwelling was surrounded in a twinkling.

Fifty gentlemen entered the building, some of them to reappear a few moments later with the fellow who had read the proclamation.

"Tryon! Tryon!" our people shouted in anger, and then came the truth which, in our simplicity and honesty, we had not suspected.

"Tryon and his henchmen left town last night escorted by twenty men!" one of those who had come out with the prisoner shouted, and we who heard the words gazed in open-mouthed astonishment, failing on the instant to understand that the villainous representative of the king had simply proposed the truce in order that he might save his own precious body.

The clerk, fearing for his life, and hoping to save it by answering the questions which were literally hurled at him, told the entire story twenty times over, until we came to realize that the three rascals had set off at full speed immediately after sunset on the day previous. By this time they were half-way to Brunswick, and however good our steeds, there was no possibility we could overtake them.

Unless we might hold the governor of the colony as our prisoner, rebellion would avail us little, save that we should retain possession of upper Carolina until such time as he could send an overwhelming force against us.

There was not a man in the ranks of the Regulators who did not realize that Tryon had outwitted us, and that our only hope lay in remaining together year after year until the other colonies should be willing to join us in the struggle for liberty.

And in the meantime, while holding out against the king, how might we gain means of subsistence? The richest among us owned only so much land, and this could not be tilled if we were forced to fight day after day to retain possession of a small extent of territory.

When all this was fully understood as we sat in our saddles near about the governor's house, I saw this man and that, the bravest among us, give way to tears, and for the time being it seemed to me that the cause of liberty was crushed.

I could not then foresee that in the principal towns of the eastern colonies would spring up branches of our association, styled "Sons of Liberty," who would resist, as we had done, the unjust demands of an unjust king until the beacon lights of rebellion were kindled on every hill. I could not foresee that massacre at Lexington and at Concord which was needed to arouse the people until no sacrifice appeared too great, so that we purchased liberty for those who should live after us.

In silence, each man hanging his head as if having suffered an ignominious defeat, instead of allowing ourselves to be tricked because of believing that a gentleman's word was sacred, we returned to the encampment on the hill, and were there formed in line for what I believed would be the last time.

There were more than Sidney and myself who looked as if bowed down with sorrow, and when we most needed words of encouragement they came from our commander, that noble old man who was, by the proclamation of one false to all the instincts of a gentleman, an outlaw on whose head a price was shortly to be set.

"Gentlemen of the Regulation," General Hamilton began, speaking loud and clear as becomes an honest man who knows in his heart that he is in the true

path, "we have been deceived, and are thereby cast down by sorrow. At a time when it appeared as if we held the threads which could be woven fairly to the interests of this colony, we have, by trusting in the words of one who has no honor in his heart, lost all our advantage; but we would be proving ourselves faint-hearted indeed if such a misfortune was accepted as final defeat. Now more than ever, must we struggle against wrong and oppression. It is not necessary you should again swear to be true to the cause; neither will it be of service to remain together just now, therefore I have this to propose, and it is for you to decide if it be the proper course: Let us disperse, each going to his home, there to remain one month; at the expiration of such time we will meet at Maddock's Mill to settle upon a further course of action."

The idea that we should remain as the Regulation, subject at any time to a call from our leaders, heartened us wonderfully, and with one accord our people agreed that Master Hamilton's plan should be adopted.

We broke ranks, each vowing friendship for his comrades, and entire devotion to the cause, and then went our several ways home firmly believing that in due course of time the purpose of the Regulation would be accomplished.

And now has come the time when I must hasten over the months and even years, without entering into details as to what Sidney or I did while we waited an opportunity to strike a blow for our distressed country.

True to the proposition of Master Hamilton, we met once each month, either at Maddock's Mill, or some other place equally central, and thus kept pace with the events which particularly concerned us of the Carolinas.

Tryon remained in Newbern in his palace which had been paid for by money wrung from a people who at times actually suffered for food, and flattered himself that he had finally destroyed the germs of rebellion that had been sowed by his own tyranny.

Contrary to our expectations, he did not make any decided effort to get into his clutches those of the Regulation whom he had declared outlaws, and it was quite as well that he remained quiet on that score, for a thousand of the king's soldiers could not have taken them from us.

The sheriffs of the counties in the upper Carolinas, knowing full well that the Regulation was neither crushed nor disheartened, no longer attempted to collect the unjust taxes, and thus it was that our people had been benefited in some slight degree.

We cultivated our lands, moved about at will without fear of being molested during nearly two years, and then, on a certain day in September, Sidney came to my home in hot haste, acting as messenger of the Regulation.

Word had come from Newbern that the Superior Court was to be convened on the 24th day of the month, and then would efforts be made to secure the bodies of those whom Tryon had styled "outlaws."

Master Hamilton, who yet remained in command of the Regulators, despite his many years, had decided that our wisest method of procedure was to interfere at the outset, claiming that we had the right to make certain that justice, not the will of Governor Tryon, should influence the decisions given by judges who were inclined to listen to the orders of the governor rather than the evidence before them.

It can well be supposed that neither my father nor myself lost any time in saddling our horses, and within twenty-four hours we were at the old encampment which overlooked the town of Hillsborough.

This time we were perfect masters of the situation. Tryon, believing the Regulation had been crushed out of existence, neglected to send soldiers to overawe us, and twenty of our people took possession of the court-house, while the remainder occupied the hill on the opposite side of the river ready to cross whenever a signal should be given that the services of armed men were necessary.

Because of our superior numbers, there was little chance the king's minions could do very much harm, therefore we were not held to rigid military discipline, and Sidney Hubbard and myself had no difficulty in obtaining permission to accompany that party which was to make certain no wrongs were inflicted upon us in the name of the law.

When we arrived at the court-house, having left our horses on the opposite side of the river, we found there but one judge, and he the man above all others who was ready to give such verdicts as would please the governor. It

is needless for me to set down the fact that this man was Richard Henderson.

Seeing our party enter the building Fanning took it upon himself to ask that we be put out, and not allowed to enter even the yard, because, as he said, there were outlaws among us who had come for no other purpose than to create a disturbance.

All those of whom he thus spoke had suffered many wrongs at the hands of this same attorney, and foremost in the list of the oppressed were Herman Husband, the two Hunters, and Rednap Howell, not one of whom felt inclined to take additional abuse from such a traitor as Fanning.

That they acted hastily in the matter, I must admit; but at the same time one should remember the wrongs they had received. The miserable cur of an attorney had no sooner ceased speaking than the gentlemen I have named, aided by all the Regulators present, seized Fanning roughly and literally dragged him into the courtyard, where Sidney and I were set over him as guards until such time as our people might be at liberty to attend to him properly.

Because of being thus occupied, I did not see that which followed; but later in the day my comrade and I were told that our people demanded the trial of those belonging to the Regulation who had been declared outlaws, which was no more than just, since the court had been called together for that sole purpose.

It was not the purpose of Judge Henderson to give the Regulators a fair trial, and, therefore, in order to outwit us, he declared the court adjourned for the day.

Then he left the building, walking swiftly through the yard as if expecting to be roughly treated, and once he was out of sight our party set about giving Fanning a lesson.

He was taken across the river to our encampment, being dragged by the heels a portion of the way, and there we held a little court of our own, the decisions of which I dare venture to say were more in accordance with strict justice than any Judge Richardson would have delivered.

It was decided that Fanning should be beaten with rods in the presence of the Regulation, and Masters Husband and James Hunter were the gentlemen selected to inflict the punishment, therefore it can well be fancied that it was done in proper fashion.

We kept the attorney with us during the night, and next morning all our company rode over to Hillsborough, only to find that the brave judge had run away during the night, after declaring that the court was adjourned until one year from that day. He could not pronounce the sentences which Tryon demanded, therefore had no idea of being forced to act honestly for once in his life.

Well, some of the hotter heads, taking advantage of the general confusion, utterly destroyed Fanning's house, beating him again before setting the scoundrel at liberty.

This done we went home once more, agreeing to meet each month as before.

I can best tell the remainder of my story, up to the time when Governor Tryon decided to wage war upon us, by quoting from a history of the Carolinas which I have lately seen; and while it is written from the standpoint of the royalists, it is correct as to the acts and movements of our enemy: ^[2] "Judge Henderson, who was driven from the bench, called upon Tryon to restore order in his district. The governor perceived that a temporizing policy would no longer be expedient, and resolved to employ the military force to subdue the rebellious spirit of the Regulators. He deferred operations, however, until the meeting of the Legislature, in December.

"Herman Husband was a member of the Lower House, from Orange, and there were others in that body who sympathized with the oppressed people. Various measures were proposed to weaken the strength of the Regulators; and among others, four new counties were formed of portions of Orange, Cumberland, and Johnson. These counties were named Guilford, Chatham, Wake and Surrey. Finally, when the Legislature was about to adjourn without authorizing a military expedition, information came that the Regulators had assembled at Cross Creek, with the intention of marching upon Newbern, having heard that Husband had been imprisoned."

Now at this point I must interrupt the historian in order to explain that we of the Regulation did indeed make this march. We knew full well that Tryon both hated and feared Herman Husband, and, therefore, kept one or more of our people in Newbern all the time the Legislature was assembled in order that the news, if there was any of importance, might be sent without loss of time to our leaders.

It is a fact that Tryon even went so far as to prefer charges against Master Husband, and that the council caused his arrest and imprisonment. Word to this effect was brought to us at once, and we set out for Cross Creek; but Governor Tryon had his spies out, and when it was known that the Regulators, a thousand strong, were riding to aid one of their number who was illegally deprived of his liberty, the council made haste to examine the charges against Master Husband.

They finally decided, in order to save their own worthless skins, that the charges were not sustained, and set the prisoner at liberty, imploring him to ride with all speed in order to prevent us from entering Newbern.

He met us at Cross Creek, and we escorted him home; but this time it was decided that the Regulation go into camp at Maddock's Mill, and there remain ready for war until it was learned how far our enemy proposed to go in his effort to exterminate us, for that was what he had boldly said he would do. Now we will copy once more from the printed story of our struggle:

"The Assembly immediately voted two thousand dollars for the use of the governor. The alarmed chief magistrate fortified his palace, and placed the town in a state of defense. He also issued a proclamation, and orders to the colonels of the counties in the vicinity, to have the militia in readiness. These precautions were unnecessary, for the Regulators, after crossing the Haw, a few miles above Pittsborough, to the number of more than one thousand, met Husband on his way home, and retraced their steps.

"The governor soon issued another proclamation, prohibiting the sale of powder, shot, or lead, until further notice. This was to prevent the Regulators supplying themselves with munitions of war. This measure added fuel to the flame of excitement, and finally, the governor becoming again alarmed, he made a virtual declaration of war, through his council.

That body authorized him to raise a sufficient force to march into the rebellious districts and establish law and order.

"The governor issued a circular to the colonels, ordering them to select fifty volunteers from their respective regiments and send them to Newbern. With about three hundred militiamen, a small train of artillery, some baggage wagons, and several personal friends, Tryon left Newbern on the 24th of April. On the 4th of May he encamped on the Eno, having been reinforced by detachments on the way. General Hugh Waddel was directed to collect the forces from the western counties, rendezvous at Salisbury, and join the governor in Orange County."

It goes without saying that while these preparations were being made, whereby Tryon counted on driving us from the face of the earth, our spies were scattered around the country plentifully, and, therefore, we knew exactly the size of his force, and how it was made up, when he went into camp.

Colonel Joseph Leech commanded the infantry, Captain Moore the artillery, and Captain Neale a company of rangers. On his way to the Eno Tryon was joined by a detachment from Hanover, under Colonel John Ashe; another from Carteret, under Colonel Craig; another from Johnston, under Colonel William Thompson; another from Beaufort, under Colonel Needham Bryan; another from Wake, under Colonel Johnson Hinton; and at his camp on the Eno he was joined by Fanning, with a corps of clerks, constables, sheriffs and others.

CHAPTER XIII.

WAR DECLARED.

At last the Regulation had forced Governor Tryon to acknowledge it as an adversary, and this afforded the members no slight amount of satisfaction.

Until he marched out of Newbern with the militia, it had been his good pleasure to treat us as a lot of malcontents who should be dealt with by constables or sheriffs, and in his proclamations, or statements made to the people of other colonies, he was careful to so word his communications as to make it appear that the people of the upper Carolinas, instead of being banded together for a specific purpose, were simply rioting and plundering.

And I doubt not but that many of the colonists considered us a gang of bullies who had set their faces against law and order, never understanding that ours was a purpose which lay close to the heart of every true citizen, until that day came when he marched out against us.

We, the Regulators, were encamped on William Payne's plantation when the news came that our enemy had left Newbern after giving orders that he be joined on the route to the Eno by this force or that, and Master Rednap Howell said gleefully as he heard of that movement which might result in the death of many of our company:

"It is the first cheering news we have had brought to us during the past two years. Now must it be known in the other colonies that we are standing up for liberty, and, instead of believing us to be a few hot-heads, the people will understand that our party is a strong one, otherwise there would be no need for the governor to come out with such a force."

And Master Butler added:

"Tryon must fight this time, instead of sitting in his palace and ordering that this or that gentleman be thrown into prison. We have more than half attained our end when the other colonies understand for what principle we are holding out."

In fact, this move of Tryon's caused the greatest possible satisfaction among our people, who had been running hither and thither for the past two years without opportunity of making public the oppression against which they had risen in arms. Never a member of our party who questioned as to what our leaders would do; it was to all of us a settled fact that we would meet the government as speedily as might be, and in anticipation of the command we began furbishing up our equipments, or looking after the horses to make certain they were in condition for a forced march.

By this time Sidney and I were eighteen years of age, and no longer considered ourselves boys. Since having been permitted to join the Regulation we had been credited with doing good work, never flinching from a severe task or holding back because of danger, and thus we rode with the company as equals.

I believe we two lads were more eager than any of our companions to meet Tryon's forces in the open field; for it was our firm belief that the Regulators would win the first battle fought and we burned with impatience to show what we could do as soldiers.

"I never felt well inclined toward Governor Tryon until this moment," Sidney said in a matter-of-fact tone as we overhauled our saddle-girths to make certain they were in good condition. "Now it is very much as if he had suddenly become our friend, because of having boldly taken the field against us."

"According to the report of our scouts, he must outnumber us two to one," I ventured to suggest.

"The result will be the same if four against one is the odds. We must win, and what a relief it will be to ride forward with a definite aim, instead of going here and there without effecting anything, as we have been doing these two years past."

"I agree with you on the last, Sidney; but holding our own against twice our force is a different matter."

The lad looked at me scrutinizingly for an instant, and then asked banteringly:

"Are you beginning to show the white feather just when our affairs look the most promising, Clare?"

"Not a bit of it," I replied indignantly. "To my mind it is no evidence of cowardice to count well the situation and strength of the enemy."

"But you went farther, and was near to questioning whether Tryon's force might not worst us, simply because of its size."

"And why might I not question it? A full thousand of his men are citizens of the Carolinas, and should be our equals in both riding and fighting."

"So they would were the cause the same; but they fight on the side of oppression, while we are striving to do that which shall be of benefit to every person in the American colonies."

I did not attempt to continue what was rapidly becoming an argument, simply because it was useless just then. I believed it was folly to claim that gentlemen of the Carolinas who did not hold to our opinions were our inferiors: but knew full well that it would be impossible to persuade my comrade to look at the matter in the same light I did.

It is a sad mistake to think that ourselves and our adherents are better men than those who oppose us, and that, I think, has been fully proven by this time.

I was ready to say that our cause was just, while theirs was not, and further than such a statement I would not go.

Finding that I was not inclined for a wordy quarrel, Sidney ceased boasting of what the Regulators could do, and set about speculating as to whether Tryon would remain on the Eno until we could come up with him, until suddenly, at the moment our people were least expecting it, word was passed through the camp that we were to fall into line, unmounted, to hear an important announcement from the commander.

"I wish we had been summoned to appear ready for marching," my comrade said almost petulantly as he made his preparations for obeying by washing his hands, which were covered with the grease he had been applying to his bridle. "This talk of an 'announcement' has in it a suspicion that the Regulators are not to break camp immediately."

"Don't begin to look after trouble," I replied with a laugh, knowing well Sidney's disposition. "If we do not set out this night, the Regulators will take the road to-morrow, and I'll warrant we see Tryon's soldiers in good time."

There were many others besides Sidney who felt a certain degree of irritation because we were to hear words, instead of commands which would result in setting the entire company in motion toward the enemy; but all of us soon learned that Master Hamilton had no idea of trying to evade a pitched battle.

"Since this association was formed, it has been the custom to discuss any important movement with all the company, therefore have you been summoned," our commander said when we had been formed in a hollow square with him in our midst. "It is not necessary for me to promise that you shall be led against the enemy at the earliest fitting moment, and I also declare that you shall not be allowed to hurl yourselves upon the government troops like an unruly mob. When we have made ready, Governor Tryon shall see us. Our scouts have brought in the information that General Waddel is halted with a small force at Salisbury, awaiting the arrival of powder from Charleston. The Regulators need that powder, and I propose that we take it. Two hundred men well mounted will be sufficient for the enterprise, and in order that there shall be no charge of favoritism made against me, instead of detailing a force of such size, I ask that the best mounted among you step three paces to the rear, in token that you are willing to make the venture."

The old gentleman had hardly more than ceased speaking when the entire company moved back as if with one accord, thus showing that every man of us was eager for active service, and that each one believed his horse superior to all the others.

Master Hamilton laughed heartily, and then asked that none but the youngest volunteer for the service, and do so by stepping forward into the former position.

Once more was the square formed in the first position, for not a man was willing to be left behind at such a time.

It was positive that all the company could not be spared for a service which might be performed by two hundred men, and I wondered how the matter could be arranged without causing jealousy.

Then our commander explained that it would be unwise to go for the powder with such a large company, and announced that since we could not settle the matter among ourselves, he would be forced to decide for us.

"We will begin with William Husband and count from one to five in regular order," he said at length. "Every fifth man is to fall out of line and make immediate preparations for a forced march."

Sidney was standing by my side, and, fearing lest one should be taken and the other left, I whispered hurriedly to him:

"Move up until you are the fifth from me, and then if one goes the other will be with him. I would be as sad to leave you behind, as you would to see me stay in case you drew the lucky number."

He agreed at once, for Sidney was a true comrade in every sense of the word, and hardly had he taken up a new position when Master Husband began the count.

My breath came thick and fast as the numbers sounded nearer and nearer, so fearful was I lest the number should doom me to stay in camp when glory might be earned, and I had so worked myself into a fever that when the man standing next beside me spoke the word "four," it was almost impossible for me to add the next number.

I fell out of line silently, and one of those who had been selected to remain behind, thinking I was afraid to venture on the enterprise, whispered eagerly:

"I'll swap my new saddle for your old one, if you'll give me your chance."

"I'd not consent if you threw into the bargain the best horse in the company," I replied, and an instant later Sidney and I were shaking hands vigorously in token of delight because of our good fortune.

It can well be supposed that we were not many moments making ready for the expedition, and when we came to the center of the encampment, where the lucky ones were assembling, it was learned that Master Rednap Howell had been selected as the leader of our party.

The only orders Master Hamilton had to give were announced in the hearing of all. We were to ride toward Salisbury until arriving at the bank of the Yadkin, which river was to be crossed in order that we might come upon General Waddel from Cabarras County, thus hoping to give him the impression that the Regulators were south of him, instead of in the course taken up by Tryon.

Master Hamilton was good enough to explain that he believed beyond a peradventure we would soon fight with the governor's forces; but it was his hope that we might meet them elsewhere than near about our own homes.

A ride of between eighty and ninety miles was before us; but we gave little heed to the distance, since each yard traversed brought us so much nearer the enemy, and I venture to say that a more eager, happy party of men never set out to provoke a battle.

When I say that the Regulators were in sore need of powder, it can be understood that this venture of ours meant more than the worrying of General Waddel; we were depending upon him for ammunition with which to wage battle against Tryon.

In less than an hour from the time when we had been summoned to hear Master Hamilton's announcement, our company of two hundred were riding away from the encampment, envied by every man who was forced to remain behind.

Many a time since Governor Tryon gave us the slip at Hillsborough had we ridden across the country in company; but never before with the certainty before us that we might measure strength with the oppressors of the colony if it so pleased us, and this fact it was which put us in such wondrous spirits.

It was the first opportunity we had had of striking a blow, and we were determined to give a good account of ourselves, regardless of the numbers to which we might find ourselves opposed.

We rode at an easy pace, believing there was no urgent need for haste; but did not draw rein until sunset, when Master Howell gave the word to halt and unsaddle.

"There is plenty of water and grass here," he said in explanation, "and the animals need a rest, not having the same spur to exertion as was given us with the news that Waddel might be where we could get at him."

Each man carried his share of the provisions, and as soon as the horses had been cared for, we ate a hearty supper, knowing that many hours might elapse before another opportunity for satisfying hunger presented itself.

At the end of two hours we were in the saddle again, and we rode until near two o'clock in the morning, with but one short halt, when the company had arrived at the bank of the Yadkin.

Now was come the time when scouts should be sent out lest we come upon the enemy before gaining possession of the powder, and it was near daybreak before the march was resumed.

By that time we had learned that General Waddel's force was in Salisbury, and counting on remaining there until the ammunition train came up.

Two miles below was a ford where we might cross the river without swimming the horses, and when the sun showed himself we were headed at full speed for the road leading from Charlotte to Salisbury, over which it had been reported that the powder would be sent.

Our horses were well blown; but we had made good time, and the only thing which might prevent the venture from being a success, was that General Waddel had already received the ammunition.

"If it turns out that we are too late to intercept the convoy, we must try conclusions with Waddel," one of our party said when we were waiting on the west side of the river for our people to get into line, and, overhearing the remark, Master Howell said emphatically:

"Don't fear that we'll miss of getting our hands on the powder. We'll have a try for it even though it becomes necessary to face all the men Tryon has brought with him."

But that we were in an enemy's country our people would have cheered this statement; but as it was the men contented themselves with raising their hats to such a leader, and then we rode on, now intent only on finding a hiding-place where we might remain until scouts had been sent out to learn the condition of affairs.

Eager though Sidney and I were to come face to face with those who wore the king's uniform, both were well pleased when the word was given to halt and make camp under cover. We had ridden nearly four and twenty hours, and although our hearts were stout for a battle, our bodies were sadly in need of a rest.

We had halted by the side of the road between Charlotte and Salisbury, along which the powder must pass if it had not done so already, and on either side the highway were groves of live oak where five hundred men and horses might readily have found a hiding-place.

Five were told off as sentinels to give the alarm when the ammunition train came in sight, and five more were detailed to scout in the direction of Charlotte to make certain the powder was yet to the south of our hiding-place.

Neither Sidney nor I envied those who were obliged to remain in the saddle yet longer. If, four and twenty hours previous, there had been an opportunity to act as scouts, we two lads would have been willing to fight for the honor; but now we congratulated each other on the possibility of gaining a little sleep before the battle was begun.

We tethered our horses near by; placed saddles and bridles where they might be come at in a hurry, and laid ourselves down in a thicket of small oaks, falling asleep almost as soon as we touched the ground.

It was sunset when I awakened, and looked about me fearing, by some unlucky chance, the company had got away without my knowledge; but my mind was soon set at rest by seeing a score or more of men lounging near at hand as if discussing some matter of importance.

Without stopping to awaken Sidney, I went toward them, and soon learned that our journey had not been in vain. The scouts had come in with the report that the powder and its convoy had not yet arrived at Charlotte, therefore we had only to wait patiently for the desired opportunity.

I was also told that Master Howell had stationed guards three miles down the road, in order that we might have timely warning of the movements of the train, and there was nothing for us to do but pass the time as best we might, providing all hands were ready for a quick jump at the word of command.

When we first halted I was so sore in body from long riding that I believed four and twenty hours of a rest would not be sufficient to satisfy me; but within half an hour after awakening and being told that there was no doubt as to the coming of our game, I was eager to be in the saddle once more.

Although our sentinels were four miles away, and would come into camp at their best pace on hearing or seeing the ammunition train, the word was passed that no man should speak above a whisper, while the horses were to be guarded closely lest by whinnying they betray our whereabouts.

Then came a most trying time of waiting, when we crouched in the darkness close by our accouterments that there might be no delay in laying hands on them immediately the alarm was given, and expecting each instant to be engaged in deadly conflict.

Sidney and I were side by side, not making any attempt to start a conversation because our nerves were strung too tightly to admit of anything like ordinary topics, and I do not remember of passing such dreary, dismal moments.

One had ample time in which to figure all the chances in favor of his being killed or wounded, and to speculate upon the probabilities of success. It seemed as if each moment was ten times its usual length, while the hours were like entire days.

Once when I believed it must be near morning, and was looking up at the sky for the first faint light of the coming dawn, I heard Master Howell say that it yet lacked a quarter of an hour to being midnight, and then both patience and courage oozed out at my finger ends. The cold chill of fear ran

up and down my spine, and I believe that had the enemy made his appearance just at that moment, I should have been forced to fight against an inclination to run away.

It is needless and impossible to try to give any correct story as to that night when we waited for the enemy, fearing because success was so necessary to our cause, that, by some blunder or unforeseen accident, we might fail.

The sun had risen, showing haggard faces amid that thicket of live oaks, when we heard among the underbrush some distance away, that crashing which tells of a heavy body trying to force its way through the foliage.

Every man of us sprang to his feet and held his horse's bridle ready, when we saw one of the scouts in company with a sentinel.

"The train will be here within an hour!" was the whisper, and even though the time when we might meet the foe was so far in the future, I ran with all speed to saddle my steed, exulting and at the same moment timorous.

CHAPTER XIV.

THE CONVOY.

After the first flush of excitement had died away, leaving in its stead that tremulous calm which is caused by exceeding great courage or abject fear, we of the Regulation went about our task in proper order and with due precaution.

It was Sidney who, when I was exultant and excited to the verge of doing some foolish thing, brought me to a realization of the situation by saying scornfully:

"I'm beginning to grow ashamed of the Regulators. To see them running around here as if bereft of reason simply because a rascally corporal's guard of a convoy is coming this way, one would say they had never seen service. Is there like to be so much of credit in the capture of ten or twenty men by a force of two hundred, that each fellow burns with a desire to be in the front rank?"

For a moment I was ashamed at having shown so much emotion over what was really nothing more than an incident, and then there came to my mind the knowledge that this capture meant more to us of the Regulation than would the taking of a force twice our size, and I said decidedly, angry with myself for having been disconcerted by Sidney's scorn:

"One whose heart is with the cause cannot fail of being excited and anxious at such a time, no matter how small may be the force with which we are to contend. It is the idea that the powder is sadly needed by our people, which causes our company to be unduly excited. Every man realizes the importance of doing the task well, and, quite naturally, fears lest it be not performed thoroughly."

Sidney had no reply to make, and I fancy he was somewhat ashamed of having spoken disparagingly of his companions.

Then the word was passed in a whisper for each man to conceal himself and his horse as near the edge of the road as possible, remaining there in readiness to spring out at the first word of command.

A squad of ten was sent a quarter of a mile to the north in order to intercept any who might succeed in making their way past the main body, and our preparations were complete.

I understood that the word for the attack would not be given until the convoy was opposite the center of our line, so that we might completely encircle it to prevent escape in either direction.

Then came half an hour of suppressed excitement, during which I could distinctly hear the beating of my own heart, and finally, the rumble of wheels in the distance, proclaiming the near approach of our prey.

The train consisted of two heavily laden carts convoyed by twenty men, as I could see when the force was nearly opposite my hiding-place, and these details had no more than been noted when Master Howell's voice rang out like a trumpet:

"At them, lads! At them, and make certain none escape you!" To those we were about to attack it must have seemed as if the thicket itself suddenly sprang out toward them, and before they had time to draw up in line ready to receive us, the party was completely surrounded.

I would have been ashamed had there been no show of resistance, for the convoy was made up of Carolinians, and, whether they were for the king or the people, it behooved them to display courage.

At the word we could have shot all the little company down, most likely at the first volley, and in order to save bloodshed Master Howell cried sharply:

"Surrender, you of the convoy! We are full two hundred strong, and there is no good reason why you should throw away your lives!"

While one might have counted ten a deep silence, save for the pawing or stamping of the horses, fell upon all that gathering in the road, and then the

leader of the convoy, having seen that there was no hope of accomplishing anything by resistance, said curtly:

"We can do no less than obey your order to surrender."

"Lay your arms on the wagons, after having dismounted, and then march toward the south."

No one spoke while this command was being obeyed until, the men having marched down the road a dozen yards or more from the hindermost wagon, Master Howell called upon them to halt.

Then ten men were told off with orders to guard the prisoners, and when this squad had taken position near the convoy, our leader said in the tone of one who has already mapped out his course of action:

"You will march your squad well to the westward of Salisbury, and endeavor to gain our headquarters. Do not take any chances of coming in contact with Waddel's force, and see to it that not a man escapes. You may set off at once, gentlemen."

The prisoners were first searched to make certain they had no weapons concealed about them, and then the little party rode slowly up toward Salisbury counting on striking into the thicket before coming within dangerous distance of the town.

When the party had disappeared in the distance, we set about taking possession of the ammunition.

As a matter of course it was impossible for us to take the wagons with us, therefore each man was ordered to carry such portion of the powder as he could strap to his saddle, and we set about the work, the greater number of us stripping off our outer shirts, which we converted into bags by tying up the neck and sleeves.

So great was the supply that even when each trooper had all he could conveniently carry, there yet remained a full third of the whole, and this we proceeded to destroy by pouring it into the tiny creek which bordered the western side of the road. Then the horses were unharnessed and set free

from the carts, which we left where they were in the highway, and our company formed in line once more.

I had supposed that we would be ordered to join the main body of Regulators; but in this I speedily found myself mistaken, for we rode directly to the Yadkin River, and crossed it, going immediately into camp in a grove of live oaks.

Once this had been done Master Howell sent off five men as scouts, and soon we came to know that this last detachment was gone to spy upon General Waddel's force.

"Yes," our leader said decidedly in reply to a question from one of the older men, "I count on attacking the force which is now at Salisbury. It would be little less than criminal to let slip such an opportunity as is now before us. Waddel is short of ammunition, now we have captured his supply, and I'm of the opinion that he will make an effort to join Tryon, in which case we have him at our mercy. It will not cause us more than two days in time, and we shall be doing great service by preventing the union of the forces."

Now indeed were we doing something in aid of the cause, and my heart leaped high with joy, for it was reasonable to suppose that, in case our leader accomplished all he had set himself, the main body of the Regulators could readily take care of Governor Tryon's army.

It was at this time, although we did not come to know of it until after several days, that Master Rednap Howell showed himself to be a great leader, inasmuch as he caused to be conveyed to General Waddel, without trouble or inconvenience to ourselves, that information which we desired him to have, and the task was performed in this fashion:

Those who had in charge the captured convoy were instructed to allow one of them to escape, after the party were so far north of Salisbury that there would be little likelihood of pursuit, and then it was certain the fugitive would take refuge with Waddel's force.

All this was done in accordance with Master Howell's orders, and thus it came about that when we were on the easterly bank of the Yadkin, the general came to the conclusion that his wisest course would be to join

Tryon with the least possible delay, regardless of the fact that the powder had been lost.

Within twelve hours after we had made a camp in ambush, one of our spies came hot foot from Salisbury with the word that the king's forces at that town were making ready for the march. In addition to this information we learned considerably to our surprise, that Waddel's men were in a state of disorder nearly approaching mutiny. With but few exceptions they were members of the militia, and openly avowed that they would not fight under any consideration; others were favorably inclined toward the Regulation, and already had many deserted.

We were unprepared for such good news; but it did not require much reflection for Master Howell to hit upon a course of action which promised success.

Without delay two of our party, the eldest among us, were sent with all speed under a flag of truce for an interview with the general. They were instructed to warn the commander to remain where he was, or retreat to the coast, as might best please him, otherwise we would at once engage him.

It was only natural Waddel should believe that the entire force of Regulators was within striking distance, and while his men were so sadly disorganized he could not well risk an encounter.

We remained in hiding, ready to mount at a moment's notice, and before our messengers returned one of the scouts came in with the word that the militia was crossing the river, evidently bent on making at least one effort to join Tryon.

Five minutes after this information was received we were riding out of the thicket toward that road which it would be necessary for the general to take if he counted on meeting the governor, and within two hours we were in advance of the king's poor soldiers, ready and eager for an engagement.

It was only natural that Sidney and I should be among those who most desired to be led against the enemy, for now, the first time in two years, might we add to whatsoever good reputation we had made as Regulators, and we put aside the possible danger in the belief that we would succeed in distinguishing ourselves.

Skirmishers were sent out to learn when the enemy approached, and the remainder of us waited in anxious expectancy the moment when we might come face to face with the foe.

In this we were doomed to disappointment, however.

Waddel also had skirmishers in advance, and immediately his men came in touch with ours they retreated, and soon word was brought that the entire force was retreating across the river again.

Now began a chase, when our horses were fresh, but handicapped considerably by the loads of powder they carried, and we were positive success would be ours whenever we could come within range of the foe.

All evidence of military formation was lost sight of as we forded or swam our horses across the river, and in less than half an hour we were among the rear guard; but even this did not satisfy Master Howell. He believed the time had come when we might make prisoners of the entire force, and panted for the glory of capturing General Waddel himself.

To effect this fifty of us whose horses were fleetest, and among the number Sidney and I, were directed to make a detour across the country in order to strike the enemy in front before he could gain shelter in Salisbury, holding him there at whatsoever cost until the force was absolutely surrounded.

How we rode that day! The horses were sent forward at racing speed, regardless of the danger that they might be foundered by carrying such a weight, and Sidney and I were among the foremost when we broke cover directly in advance of the retreating column.

"Look after the general!" Sidney shouted as we pressed on, our horses running neck and neck. "Now has come the time when we can make names for ourselves which will not soon be forgotten!"

We could see the leader and his officers plainly, and rode directly toward them without taking heed as to whether we were followed; but there yet remained a sufficient number of the men who were loyal to the king to prevent us from carrying out the plan.

We speedily found ourselves confronted by a squad of twenty or more who stood bravely in line while their officers rode swiftly away, and this little party must be attended to before it might be safe to push on in pursuit of the prize.

We drew back within the shelter of a clump of trees, where we were joined by a dozen or more of our men, and then began the first real fight in which I ever took part.

There was no room in my mind for fear. I thought only of what might be done if we could disperse the party, and I fired and reloaded without realizing that my one desire was to take human lives.

The militia held their ground well, and both sides were at a disadvantage because of trying to take aim while in the saddle. With such marksmen as we had among us that squad of the king's men should all have been disabled within ten minutes, and yet half an hour passed without any perceptible advantage on either side.

Three of our men were down, and four of theirs had dismounted or been knocked out of the saddle; but by such time the general and his officers had surely succeeded in making good their escape.

From the sounds of firing which came from every direction we knew full well that all our party was engaged, and the question had just come into my mind as to whether this force of Waddel's had been as badly demoralized as we were led to believe, when I heard shouts in the rear, and a moment later saw Master Howell ride up with eight or ten men at his back.

"Throw down your arms, and surrender!" he cried to our adversaries. "The remainder of the command have yielded, and you can do Tryon no good by holding out longer!"

In a twinkling the men came forward empty-handed, and the fight was won; but I failed to feel any great elation because of what we had lost, while Sidney was furious with rage.

"But for their holding out, we two might have captured Waddel with, perhaps, some of his officers. It is a clear case of cheating, and we have got the worst of it!"

"Don't look a gift horse in the mouth," I cried laughingly, for my sorrow was dissipated by Sidney's rage. "We never counted very surely on capturing the general, and should thank our lucky stars that we have deprived him of his force, for thus have we weakened Tryon."

He would not be consoled for the lost opportunity of distinguishing himself, and for a moment I really believed he was on the point of striking the disarmed men who had baffled his desires.

There was no reason why we should not feel proud of our work. We had captured the ammunition, which was the first task set us, and, in addition held as prisoners a force which Governor Tryon counted on as adding to his own. Surely we had done well, and if the remainder of the Regulators could do as much, then was it certain Tryon would be driven in shame from this portion of the colony.

Now it was that we had more prisoners than were convenient. As a matter of fact it would be impossible to feed them during the march to the Alamance where we counted on meeting our companions-in-arms, to say nothing of providing them with horses, for not more than half the number were mounted, therefore Master Howell called for a consultation in which all hands were to take part.

It was not necessary to spend very much breath over the question as to whether we would try to hold them captives. They must be disposed of in some manner, and without loss of time; but yet our duty was to make certain they did not join Tryon.

After hearing such propositions as our people had to make, and some of them were wild indeed, Master Howell raised the question as to whether it would not be wise to release them on parole?

This was the solution to the whole matter, and if he had so stated it at first, we would have decided within a few seconds.

On being consulted, our prisoners declared that they would readily take an oath not to bear arms against us until after having been properly exchanged, and all seemed pleased at being able to get out of the scrape so easily.

The men were formed in a hollow square, and each was required to repeat the oath Master Howell administered, after which we parted company, the paroled force going toward Charlotte, and we riding at full speed toward the Alamance, for it was to be expected that Tryon would go there to seek us.

I would it were possible for me to set down all the details of our movements; but the yarn has already been spun out to such a length that much which might, possibly, be interesting to strangers must be omitted.

It suffices to say that within three days after this encounter with General Waddel's force, we of the two hundred which had been sent out to gather in a supply of ammunition rejoined the main body of Regulators, and much rejoicing was there in camp after our story had been told.

It was as if each of us had done something remarkable, to judge of the treatment we received, and certain it was that those who had been weak-kneed regarding our chances of a successful opposition to Tryon, straightway became convinced that we could force him to retreat when the two forces came together.

During our absence it had been decided by our leaders that we would await the enemy on the banks of the Alamance, and there was no good reason to change the plan after we returned. We now had plenty of powder, and the women from roundabout melted lead into bullets until our wants were fully supplied.

We had already fought and captured a full third of the force Governor Tryon counted on bringing with him, and this was done by only two hundred of our people, therefore it seemed positive that when we met them, a thousand Regulators against no more than fifteen hundred militia and a few companies of soldiers, the result would be in our favor.

Twenty men or more were sent out as scouts and the remainder of our company lounged idly in camp, when, as a matter of fact, every moment should have been spent in fortifying the position.

More than one of our people suggested that it would be a good plan to throw up breastworks, but our leaders gave no heed to the suggestion, and for the reason that they were suddenly plunged into distress not unmixed with dismay.

Our old commander, the man upon whom all relied at such a time, was taken with a most serious illness, and it was believed that his days on this earth were few.

It was necessary to carry the old gentleman to a dwelling, and half a dozen of our best men undertook this duty, leaving the command of the force to Herman Husband, that member of the force in which we placed implicit confidence.

As I look back upon that time, when all were confident regarding the future, it seems indeed strange that we should have selected as Master Hamilton's successor the only member of our company who would play us false.

It was as if the gallant Master Hamilton had but just been carried away from us, when the scouts came in with the news that Tryon was approaching, having heard of General Waddel's defeat.

Then it was we leaned upon Master Husband, that man for whom we had risked our lives three several times in order that he might be spared imprisonment, and learned in the end that he was no more than a broken reed.

CHAPTER XV.

THE BATTLE.

It was as if we had no sooner learned that Tryon was near at hand than he came almost upon us.

Just at sunset on the 13th day of May in the year of grace 1771, our scouts came in with the report that the governor's force was encamped hardly more than six miles away, and was sending out skirmishers to ascertain our position.

Master Husband's opinion was, and now he had become the leader we learned that he could be very obstinate once his mind was made up, that our scouts should be drawn in lest, peradventure, some of them be captured.

Thus it was we remained all in ignorance of what the enemy might be doing until, at about eight o'clock in the evening, our sentinels captured two of the king's men who were out reconnoitering, bringing them into camp.

These were none other than Colonel John Ashe and Captain John Walker.

Now has come the moment when I must write of what we did to disgrace the Regulation, because surely it was a disgrace for civilized men claiming to be at war, to act as did the Regulators through the advice, or, I might almost say, the commands of, Master Husband.

As we learned afterward, our new leader fancied he had cause for enmity against the two gentlemen whom our sentinels had taken prisoners, and within half an hour after they were brought into camp, he ordered both tied to a tree and severely whipped.

It was an outrage which cannot be excused, however partial one may feel toward that organization which first nourished the spirit of liberty among

the American people. Yet it was done, and to Master Husband must be given the blame.

In the Carolinas Colonel Ashe and Captain Walker were looked upon as worthy gentlemen even by those whose politics were of a different complexion, and that we should flog them like slaves, nay, even in a more brutal fashion than one would whip his own chattels, was dire disgrace.

Had Master Husband delayed even ten minutes after making the proposal for punishment, our people would have cried out against the outrage; but it seemed almost as if the Regulators were paralyzed by the mere suggestion of such an act as had never before disgraced them, and a few of the meaner spirits carried the order into execution while the remainder of the company were literally stupefied.

This was the first wrong done, so far as I knew, by the Regulation, and nineteen out of every twenty condemned it as brutal and uncalled-for.

When the punishment was concluded, however, kindly hands took charge of the unfortunate gentlemen, and if words could have soothed their wounds, then of a verity had they been made whole while yet the sting of the lash was upon their flesh.

Master Husband knew full well that he was censured by the majority of the company, and it was as if from that moment he took the entire command into his hands, determined that we should have no voice in whatsoever was done.

Thus it was that that brave company of gentlemen followed blindly a leader who was very shortly to prove himself a rank coward, raising no mutiny as would have been done under other circumstances, because we were facing the enemy and bickerings might bring about a disaster.

When some of us would have accompanied Colonel Ashe and Captain Walker to Tryon's camp under a flag of truce, Master Husband sternly forbade any such procedure, and declared that he should hold the gentlemen prisoners until after the enemy had retreated, or been whipped in battle.

Next morning, instead of sending out skirmishers, our leader appeared to think that a written notice from him would be sufficient to disperse the

king's men, and accordingly he wrote what it pleased him to call a "proclamation," setting forth the fact that the governor had come contrary to law into counties over which he had abandoned control, and demanded that he should send answer within four hours explaining when it would please him to retreat.

We had among us the Reverend David Caldwell of Orange, that good minister who followed such of his congregation as belonged to the Regulation, knowing full well a battle was imminent, and believing he might acceptably serve God and his fellow-man at the time when death was about to seize upon some of us.

Master Caldwell had been among those who spoke the loudest against Master Husband's brutality of the previous evening; but now he accepted the position of messenger in the hope that he might prevail upon Tryon to draw off and thus avert bloodshed.

The good man disdained to use a flag of truce; but set off trusting that his cloth would protect him, as indeed it did, for he was speedily given audience with the enemy.

Governor Tryon received the clergyman graciously; but excused himself from making a reply to the ill-advised proclamation until noon of the following day, because, as he said, until then there would not be time to discuss the matter with such of his officers as were entitled to consideration.

However, he gave the parson the most positive assurance that no blood should be shed unless the Regulators began the battle; in other words, he bound himself to keep his force in leash unless we made an unprovoked assault.

When Master Caldwell came within our lines again, he had a long interview with Master Husband, the substance of which none of us knew thoroughly; but it was whispered among the more knowing, that the parson had insisted on liberty being given to the two prisoners, and our leader had flatly refused.

Master Howell and a dozen others who had shared the command of the company with General Hamilton, were loud in their complaints because Master Husband refused to send out scouts, and, finally, after no little

bickerings which would have swelled into open mutiny but for the situation of affairs, they left the bigoted man to himself, and sent secretly a dozen or more to spy upon the enemy.

By this means we knew that during the night Governor Tryon's force had crossed the Alamance and marched silently along the Salisbury road until within half a mile of our camp, where they were formed in battle order by daybreak.

All this we of the rank and file knew; but our leader remained in ignorance, and had no suspicion that Parson Caldwell paid a second visit to the governor before breakfast was served our men, receiving from him another promise that blood would not be shed by his force without provocation; but now, having gained the position he desired, Tryon demanded as the price of peace, that the Regulation should surrender unconditionally.

This he charged Master Caldwell to repeat to our leader, and when Master Husband heard it he showed himself, for a short time, as one who understood somewhat of warfare, for as soon as might be thereafter he marched us down the road until we were halted within three hundred yards of the governor's army.

Now did it appear as if the battle was to be fought by words rather than bullets, for Tryon sent forward under flag of truce a magistrate from Orange County, who read a lot of high-sounding words to the effect that we were ordered by the chief ruler of the colony to disperse within an hour.

Then was come the time when we should have set spurs to our horses and dashed into the king's lines, for of a verity could we have put them in full flight within ten minutes; but Master Husband, beginning to feel the influence of that cowardly fit which so beset him shortly afterward, ordered Robert Thompson, a gentleman well known among us all as being of a most peaceful and amiable disposition but prone at all times to speak his mind, to go into the governor's lines and learn what arrangements might be made for the settlement of the difficulty.

This command was given secretly, else would Master Thompson never have been allowed to go forth on such an errand when we were prepared and eager to measure strength with the enemy.

However, he went, and we remained in the saddle mystified, wondering why any parley should be held, until we saw our comrade halt in front of the governor himself.

Now this which I am to about to relate was afterward told me by a member of Tryon's force. As a matter of course all that we of the Regulation could see was the movements of the men.

When Master Thompson advanced to the governor, he was told abruptly, and without even the ordinary civility which is due from one gentleman to another, to make his way to the rear as a prisoner.

Indignant because of such perfidy, he told the brute Tryon some very plain truths regarding his actions in the Carolinas, and wheeled about to return to our lines.

My eyes were upon him at the moment, and Sidney had expressed his satisfaction at seeing Master Thompson coming toward us in such a resolute manner, when I saw Tryon seize a musket from the hands of a militiaman, and shoot the Regulator dead.

At the same instant it was as if the governor realized what he had done, for the smoke of the musket had hardly more than cleared away before we saw a flag of truce advance; but the murder of Robert Thompson was sufficient to arouse us all, and an hundred rifles were immediately emptied upon the bearer of the flag.

Then it was that we would have advanced without waiting for orders from Master Husband, but that Parson Caldwell rode swiftly up and down the line between us and the enemy, imploring the Regulators to disperse rather than bring civil war upon the colony.

We could not fire upon a man like Master Caldwell, neither was it in our hearts to ride him down, as we must have done had a charge been made at that moment; but Tryon, losing his senses through rage, as it seemed to me, gave the word for the militia to fire.

Not a man obeyed the order.

Parson Caldwell continued to urge that we have forbearance, and again Tryon called out for his men to shoot, this time addressing the artillery as well as militia.

It was as if both sides were listening to the entreaties of the clergyman, when the bully Tryon, maddened with rage, rose in his stirrups as he shouted frantically:

"Fire! Fire on them or on me!"

This order was given to the entire force, and the men obeyed.

How many of our people fell I know not. On the instant there came before my eyes a red mist; my brain swam, and I only know that there was but one desire in my heart, which was to kill—to kill the brute who had neither the instincts of a man nor the courage of a woman!

We Regulators fired rapidly as we could load and discharge our pieces, and then suddenly Sidney shouted:

"Come forward, lads! Spur your horses hard and we may take those cannon, for the men who work them act faint-hearted! Follow me!"

An hundred or more of us responded to this call. Riding forward at full speed we literally swept the cannoneers from their pieces, and this done, after many lives had paid the price, we saw that man to whom General Hamilton had entrusted the command of the gallant Regulators, ride like a coward down the road a short distance, and then into the thicket.

Verily I believe there was not one among us save he who would have shown the white feather even in order to save his own life, and we cursed him—while we battled against the enemy we cursed him!

What followed I know not of my own knowledge. It was as if a fever had seized upon me, and when reason returned Sidney and I were in the jail at Hillsborough, where we remained many a long, dreary month before finally being allowed to return to our homes under parole.

Here is an account as I have seen it set down by another who wrote at a later day, when all the facts were known, and in his words shall be told the remainder of the distressing story which began so bravely, and ended in

shame and in death. ^[3] "Some young men among the Regulators rushed forward and took possession of the cannons. They did not know how to manage them, and soon abandoned them. The military now fired with vigor, and the Regulators fell back to a ledge of rocks on the verge of a ravine, not, however, until their ammunition was exhausted.

"Nine of the Regulators and twenty-seven of the militia fell in that conflict, and a great number on both sides were wounded. Tryon, in his report, said, 'The loss of our army in killed, wounded, and missing amounted to about sixty men.'

"The admitted excesses of the Regulators afford no excuse for the cruelty of Tryon after the battle on the Alamance. With the implacable spirit of revenge, he spent his wrath upon his prisoners, and some of his acts were worthy only of a barbarian. He exacted an oath of allegiance from the people; levied contributions of provisions; chastised those who dared to offend him; and at Hillsborough he offered a large reward for the bodies of Husband and other Regulators, 'dead or alive.'

"At Hillsborough he held a court-martial for the trial of his prisoners. Twelve were condemned to suffer death; six were reprieved, and the others were hung. His thirst for revenge satiated, Tryon returned to his palace at Newbern, where he remained but a short time, having been called to the administration of affairs in the province of New York.

"The movements of the Regulators and the result of the battle on the Alamance form an important episode in the history of our Revolution. Their resistance arose from oppressions more personal and real than those which aroused the people of New England. It was not wholly the abstract idea of freedom for which they contended; their strife consisted of efforts to relieve themselves of actual burdens. While the tea-duty was but a 'pepper-corn tribute,' imposing no real burden upon the industry of the people in New England, extortion in every form, and not to be evaded, was eating out the substance of the working men in North Carolina. Implied despotism armed the New Englanders; actual despotism panoplied the Carolinians. Each were equally patriotic, and deserve our reverent gratitude. The defeat on the Alamance did not break the spirit of the patriots; and many, determined no longer to suffer the oppressions of extortioners, abandoned their homes,

with their wives and children, went beyond the mountains, and began settlements in the fertile valleys of the Tennessee."

THE END.

FOOTNOTES

[1] Benson J. Lossing, "Field Book of the Revolution."

[2] Lossing's "Field Book of the Revolution."

[3] Lossing's "Field Book of the Revolution."

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